

Indian Telegraph Rules, 1951

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Union of India - Act

Indian Telegraph Rules, 1951

UNION OF INDIA

India

Indian Telegraph Rules, 1951

Rule INDIAN-TELEGRAPH-RULES-1951 of 1951

Published on 3 December 1990

Commenced on 3 December 1990

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Indian Telegraph Rules, 1951

Published vide Notification G.S.R. 933(E), dated 3.12.1990

1892.

S.R.O. 1546. G.S.R. 214 (E), dated 21st February, 2000. - In exercise of the powers conferred by Section 7 of the Indian Telegraph Act, 1885 (XIII of 1885), and in supersession of the Indian Telegraph Rules, 1932, the Central Government hereby makes the following rules:

Preliminary

1.

Short title and extent.

(1)

These rules may be called the Indian Telegraph Rules, 1951.

(2)

They extend to the whole of India.

Part I ? General

2.

Definitions.

- In these rules, unless the context otherwise requires,-----

(a)

"Answer Back Code", means a combination of characters used to provide a short code to identify the subscriber.

(i)

"Auto transmitter", means an apparatus used for transmission of perforated tapes;

(ii)

"Call", means a conversation between two or more subscribers connected to the same exchange and includes a conversation with such other service connected with the telephone system as may be specified by the Telegraph Authority;

(ab)

["Bureau Fax Service", means a telecommunication service offered through a Telegraph Office or a Telecommunication Centre, providing telecommunication facilities to the public for the purpose of transmitting documents (and not exclusively photographs) by compatible facsimile machines and involving a distant reproduction of the originals in the form of graphics, hand written or printed material].

[Inserted by G.S.R. 933(E), dated 3.12.1990]

(b)

"Called Person", means a subscriber with whom a caller wishes to speak.

(c)

(i)

"Caller", means a subscriber who registers his demand for a trunk call;

(ii)

"Collect Call", means a call for which the person booking the trunk call specifies, while booking it, that he wishes the call to be paid for by the called party;

[ca]

[Inserted by G.S.R. 74, dated 18.1.1991]

"Central Telegraph Office", means the Principal Telegraph Office in a city, where there are more than one Telegraph Officer;

(d)

"Combined Office" means a post office which is in telegraphic communication with a Government telegraph office, or at which telegrams may be handed in for despatch by messenger to the nearest telegraph office for onward transmission;

(i)

"Commutator Board" means an equipment for terminating telegraph circuits so as to facilitate interconnection between any two desired circuits.

(ii)

"Credit Card Facility" means a facility where under a subscriber or his representative who has applied for and been issued under such terms and conditions, as may be prescribed by the telegraph authority with a Credit Card, may make trunk calls from any telephone, public or private, to any other telephone and have the charges debited against the telephone subscriber specified in the Credit Card;

(e)

"Departmental Exchange" means a telephone exchange which is installed, maintained and controlled by the Telegraph Authority.

(i)

["Electronic Exchange" means an electronically operated and maintained Telephone Exchange of the 'stored programme controlled type' which uses a computer for the establishment of telephone calls.

[Inserted by G.S.R. 560(E), dated 27.5.1992]

(ii)

"Non-Electronic Exchange" means a Telephone Exchange other than an Electronic Exchange];

(f)

[* * *]

[Omitted by G.S.R. 74, dated 18.1.1991]

(i)

"Dialling Unit" means an equipment associated with the subscriber's teleprinter machine to enable calls being set up automatically;

(g)

"Direct Exchange Line" is a Telephone connection directly working on a departmental exchange.

(h)

"Director General" means the Director General of Posts and Telegraphs;

(i)

"Divisional Engineer" means the Divisional Engineer, Telegraph or Telephones and includes all Heads of Telephone District and any other officer who may be empowered to discharge the functions of the Divisional Engineer under these rules;

(j)

"Double Period or Unit" means a period in excess of three minutes but not in excess of six minutes;

(k)

"Exchange System" means any Departmental Telephone Exchange or Exchanges and any license connected therewith declared by the Telegraph Authority to be an exchange system.

(l)

"Extension" means a subsidiary telephone connection having access to the exchange line with or without the intervention of the main station;

(m)

"External Extension" means the extension other than an internal extension;

(n)

"Fixed Time Call" means a trunk call between two numbers which is to be put through at or about a specified time;

(o)

"Flat Rate System" means a system of charging on telephones under which a subscriber is required to pay a fixed annual rental for the line connecting his telephone to any exchange within the exchange system, but not any call fees for local calls from his telephones;

(p)

"Government Telegraph Office" includes [* * *]

[Word departmental omitted by G.S.R. 74 dated 18th January, 1991 (w.e.f. 18th January, 1991).]

telegraph offices and combined offices.

(pa)

["interface device" means a device through which internal wiring in the premises of a person to whom a telephone service has been sanctioned interfaced with the external line, cable and exchange equipment];

[Inserted by G.S.R. 516(E), dated 23.6.1995]

(q)

"internal extension" means an extension located in the same building in which the main connection is working;

(r)

"international telephone service" means a trunk call service between India and any other country except Ceylon, Nepal and Pakistan;

(s)

"Interpolated Public Call Office" means a public call office which is opened on a trunk line between two exchanges;

(t)

"junction line" means a line connecting any two exchanges in an exchange, system or connecting a departmental exchange with a private branch exchange or an exchange of a licensee or a privately owned exchange.

(u)

"Late fee" means a fee payable, in addition to the prescribed call charges for a local or trunk call, made from or to a

Public Office outside its regular working hours;

(v)

"Licensed telegraph office" means a telegraph office maintained and worked for the purpose of receiving and transmitting paid telegrams under a licence granted under Section 4 of the Indian Telegraph Act, 1885 (13 of 1885

).

(w)

["Local Area" in respect of an exchange system means the area coterminous with the Short Distance Charging Area (SDCA) or where the Telegraph Authority has declared any area served by an exchange system to be the local area for the purpose of telephone connections, then, such declared area].

[Substituted by G.S.R. 494(E), dated 12.8.1998]

Foot Notes: (1) All existing local areas shall be deemed to have been revised with effect from 00.00 hours of 15th August, 1998, as per above definition.

(2)

Details of revised local area boundaries of the exchange system will be published by local Telecommunication Authority in the newspapers in circulation at the stations concerned.

(x)

"Local call" means a call from a subscriber's line to another line on any exchange within the same exchange system;

(y)

(i)

"Local circuit" means a circuit provided between a telegraph office and the party's premises.

(ii)

"Local leads" means the circuit provided between a Voice Frequency Telegraph Station, carrier station or Trunk exchange on one side and party's premises on the other;

(z)

"Measured Rate system" means a system of a charging of telephone under which a subscriber pay a fixed annual rental for the line connecting his telephone to any exchange within the exchange system and entitles him to make calls free of charge up to a specified number of call units during a fixed period, each call unit in excess of that number being charged at the prescribed rates;

(aa)

Message rate system" means a system of charging on telephones under which a subscriber, besides paying a fixed annual rental for the line connecting his telephone to any exchange within the exchange system, is also required to pay call fees for each call from his telephone at rates prescribed for such calls;

(bb)

"Messenger service" means a facility at Public Telephones for a particular called person at a given address being sent for under such conditions and on payment of such charges as the Telegraph Authority may prescribe;

(bba)

"Metered demand service" means manual trunk telephone service established between stations where the charging is effected automatically on the calling subscriber's telephone meter not involving preparation of trunk call tickets;

(bbb)

(i)

"Number-to Number Call" is a trunk call exchanged between a specified telephone number at one station and another specified telephone number at another station;

(ccc)

["Rural Subscriber" means a person to whom a telephone service has been provided in a rural area by means of an installation under these rules or under an agreement.]

[Inserted by G.S.R. 818(E), dated 27.12.1995]

(cc)

"Own your Telephone scheme" means a scheme under which the subscriber makes an initial lump sum payment towards the rental for the line connecting his telephone to any exchange within the exchange system, and in consideration thereof is allowed a reduction in the annual rental payable by him for a specified period;

(dd)

"Parent exchange" to public Telephones is the telephone exchange to which it is directly connected;

(ee)

"Particular person call" means a trunk call where the caller wishes to speak to a specified person;

(ff)

"Party line connection" is a telephone connection where 2 or more parties share in a common line to a departmental exchange;

(i)

"Person-to Person call" is a trunk call arranged from a specified individual at one station to another specified individual at another station whether these persons be subscribers or not;

(gg)

"Phonogram" means a telegraphic message sent to or received from a telegraph office by a subscriber over the telephone;

(hh)

"Postal receiving office" means a post office which is not in telegraphic communication with a Government telegraph office but at which inland telegrams may be handed in for despatch by post, without additional charge, to a telegraph office for onward transmission.

(ii)

"Postmaster-General" means a Postmaster General as defined in Section 2 of the Indian Post Office Act, 1898 (4 of 1898);

(i)

"Printing perforator" means an apparatus used for preparing perforated tapes which can be fed through an auto transmitter;

(jj)

"Private branch exchange" means an exchange provided for any one party and connected to a departmental exchange;

(kk)

"Private exchange" means a telephone exchange provided exclusively for the use of an organisation or an individual and not connected to the public network;

(ll)

"Private wires" are those which connect two subscribers through a departmental exchange system whether a private wire relay set is installed at the exchange or not and are not connected to the local telephone system and to the general trunk net work;

(mm)

"Private wire junction" means a line connecting two private exchanger;

(nn)

"Public telephone" means a telephone office for the use of the general public during specified hours on payment of the prescribed fees;

(i)

"Local Public Telephone" means a public call office connected to an exchange and situated within the local area of an exchange system;

(ii)

"Interpolated Public Telephone" means a public call office not connected to an exchange by a separate line of its own but interpolated on a direct trunk line between two exchanges;

(iii)

"Long Distance Public Telephone" means a public call office which is not a local public telephone or an interpolated public call office.

(iv)

"Reversed Charge Call" means a trunk call which a person is authorised to make from any public telephone to a specified telephone number without pre-payment of the charges for such a call, the charges being recoverable from the called subscriber;

(oo)

"Single Period or Unit" means a period of three minutes or part thereof;

(pp)

"Subscriber" means a person to whom a telephone service has been provided by means of an installation under these rules or under an agreement;

(qq)

"Subscription Fixed Time Call" means a fixed time call between two numbers for 5 or more consecutive days excluding Sundays and Telegraph holidays;

(rr)

"Telecommunication" means any transmission, emission or reception signs, signals, writing, images, sounds of intelligences of any nature, by wire, radio, visual or other electromagnetic system;

(rra)

["Telecommunication Centre" means a centre which provides telecommunication facilities for booking local, trunk and subscriber dialled telephone calls, and for booking and transmission of telex and facsimile (FAX) messages and telegrams at a single location];

[Inserted by G.S.R. 74, dated 18.1.1991]

(ss)

["Telegram" means written or printed matter intended to be transmitted by telegraphy and includes a "radio-telegram" or a photo-telegram;

[Substituted by G.S.R. 190, dated 18.2.1984]

(i)

"Telegraph Circuit" means a medium used for dissemination of written matter or messages;

(ii)

['FAX telegram', means a document transmitted through Bureau FAX Service whose copy is retained by the Telegraph Officer or Telecommunication Centre].]

(tt)

["Telegraph Office" means an office which deals mainly with booking, transmission, reception and delivery of telegrams and which is established, maintained and worked under the direction and control of the Director-General];

[Substituted by G.S.R. 74, dated 18.1.1991]

(uu)

"Telegraphy" means a system of telecommunication for the transmission of written matter by the use of a signal code;

(vv)

"Telephony" means a system of telecommunications set up for the transmission of speech or other sound;

(i)

"Teleprinter Machine" means an apparatus used on the terminal of a telegraph circuit for printing messages;

(ii)

"Ticker Connection" means a circuit provided between the main office of a News Agency and its constituents in the same station;

(vva)

["Teleprinter Exchange (Telex)" includes a notional telex exchange installed, maintained and controlled by the Telegraph Authority, from where the telex connections may be provided to the subscribers;

[Inserted by G.S.R. 719(E), dated 18.8.1987]

Explanation.- For the purposes of this clause, Notional telex exchange shall mean an exchange serving a group of subscribers having distinct dialling code and distinct charging fees through a distant EDX and notional telex exchange may be opened in place of a teleprinter exchange (telex), Multiplexer or Concentrator at any town or city based on the techno-economic considerations; the local area of a notional telex exchange having five kms. radial distance from the nearest local telephone exchange or from the main local exchange in case of a multi-exchange area. The subscribers connected to a notional telex exchange shall pay rent and call charges as if they were being served from a real teleprinter exchange (telex) established at the local telephone exchange].

(ww)

"Trunk Call" means a call on a trunk line;

(xx)

"Trunk Line" means a telephone line connecting an exchange system with another exchange system or a public call office on which a fee is levied for a conversation on the basis of the duration of the conversation;

(yy)

"Subscriber Trunk Dialling facility (STD)" means the facility whereby subscribers can obtain trunk calls without the assistance of operators, by the use of the dial provided;

(zza)

"Non-exchange lines" are those which connect two subscribers without any Departmental Exchange intervening.

(zzb)

"Long Distance Charging Area (LDCA)" means one of the several areas in which the country is divided by the Telegraph Authority and declared as such for the purpose of charging for trunk calls;

(zzc)

"Long Distance Charging Centres (LDCC)" means a particular Trunk Exchange in a long distance charging area declared as such by the Telegraph Authority for the purpose of charging for Long Distance Calls;

(zzd)

["Short Distance Charging Area" (SDCA)" means one of the several areas in which a long distance charging area is divided by the telegraph authority and declared as such for the purpose of charging for trunk calls;

[Inserted by G.S.R. 587 (E), dated 10.6.1992]

(zze)

"Short Distance Charging Centres (SDCC)" means a particular exchange in a short distance charging area declared as such by the telegraph authority for the purpose of charging trunk calls].

(aaa)

"Fire Alarm Service" means a service consisting of a Switch Board at the Fire Brigade Station with lines extending up to Telephone instruments in the Fire Alarm Pillars;

(bbb)

"Rifle Range Connection" means a telephone communication between the Markers' hut at a Rifle Range and the different firing points along the Range.

3.

(1)

All telegraphs shall be established, maintained and worked in such a manner as not to obstruct or repeatedly interrupt any wireless telegraph service functioning within or without India, or the wireless signalling between any fixed, land or mobile stations of the Armed Forces of the Union or the wireless signalling exchanged between any fixed or mobile stations of the Armed Forces of the Union and any station abroad.

(2)

Noting in sub-rule (1) shall prevent the use of wireless telegraphs for the purpose of making or answering bona fide distress calls or distress message, in any manner, thought fit.

(3)

Except as provided in sub-rule (2), if any person contravenes the provisions of sub-rule (1) he shall be punishable with fine as provided in sub-section (3) of Section 7 of the Indian Telegraph Act, 1885.

4.

Frequency allocations and call signs of the Armed Forces of the Union wireless installation shall be treated as secret information.

5.

The accuracy of Telegrams is not guaranteed,
and all telegrams shall be deemed to be sent subject to acceptance by the sender of all risks arising from non-delivery, errors or delays.

6.

Translation of Telegrams.

- At telegraph offices in places other than the Presidency towns, every assistance possible shall be afforded to the public in the translation of telegrams into English for despatch and in the translation of telegrams received into the language of the place. No fee for this service shall be claimed or given.

7.

Secrecy.

- Save in pursuance of his official duty or in obedience to the direction of a competent authority, a telegraph officer shall not disclose, to any person other than the sender or the addressee or the authorised representative of either, the contents of any telegram.

Part II ? Rules-For Inland Telegrams

General

8.

"Inland Telegram" means any telegram the disposal of which does not involve transmission to or from any telegraph office beyond the limits of India.

9.

Acceptance of Inland Telegrams.

- Inland telegrams shall be accepted for transmission at all telegraph offices, and postal receiving offices, and may, under certain conditions, be accepted by village postmen and at military field telegraph offices.

10.

Inland telegrams handed in at Postal Receiving Offices for forwarding them to the nearest telegraph office by special messenger shall be accepted on payment of portage charges by the sender.

11.

[Deleted.]

12.

Inland telegrams other than press telegrams (rules 131 to 142) may be telephoned by the telephone subscribers for onward transmission, without pre-payment to such [telegraph offices]

[Substituted by G.S.R. 74 dated 22.2.1991]

and combined offices as the Head of the Circle may authorise in this behalf on condition that all charges (rule 62) due on such telegrams shall be paid for on the deposit account system (rule 68) or through telephone bills where such a system of payment has been introduced, within the prescribed time limit in each case, or in cash. Inland reply telegram forms shall be accepted in lieu of telegraph charges in cash, subject to the provisions of rules 95 to 97.

13.

Telegrams may be posted from foreign countries to a telegraph office at an Indian port for onward transmission as inland telegrams without prepayment on condition that the charges due on such telegrams shall be recovered from the addressee in the manner provided by rule 71.

14.

[Deleted.]

15.

All inland paid telegrams, except telegrams at reduced press rates (rules 133 and 134), may be transmitted without additional charge between any Government telegraph office and any licensed telegraph office.

16.

Acceptance of telegrams on payment of late fee.

(1)

Inland telegrams (other than telegrams intended for transmission to canal telegraph offices), foreign telegrams including letter-telegrams and radio-telegrams shall be accepted at Government Telegraph Offices or at such Railway Telegraph Offices as may, from time to time, be specified by the Director-General, for transmission at any time, subject to payment of a late fee, if at the time of presentation of the telegram, the office at which it is handed in, or the office to which it is addressed, or any intermediate office through which it must pass, is closed :

Provided that at places where there is more than one telegraph office, one office or in the case of places specified by the Director-General in this behalf more than one office shall be made available for use by the public during closed hours, and no other office in such place shall in such case accept telegrams for despatch on payment of late fees. Such other offices shall exhibit a notice in a place where it can be read from outside, directing intending senders of telegrams to the nearest open telegraph office, or if there is no open telegraph office, to the nearest telegraph office which is available for the despatch of telegrams on payment of late fees.

(2)

[The late fee payable for a telegram shall be calculated at the rate of "Rupees Three" for each closed office, within

Indian limits, which is required to deal with the telegram and shall be paid to the telegraphists in the concerned offices].
[Substituted for the words "rupees two as rupees three" by G.S.R. 955(E), dated 20.12.1990]
[Deleted]

[Provision deleted G.I. Deptt. of Telecom. Letter No. 3-39/90-R, dated 9.7.1991]

(3)

If the attention of a closed office cannot be gained, the late fee collected for that office shall be refunded, but no refund shall in any case be made of the late fee for any office which has dealt with a late fee telegram.

17.

Objectionable Telegrams.

- Telegraph offices shall refuse to accept or forward any telegram or any part of a telegram of a mainly objectionable or alarming character. In cases of doubt the matter shall be referred by the officer-in-charge of the telegraph office to a Secretary to Government or other officer nominated by the State Government from time to time for this purpose, if the office is located at a seat of Government, or to the Chief Civil or Military Officer if the office is located elsewhere.

Mode Of Writing

18.

No letters, characters or devices shall be included in a telegraphic message in Roman or Devanagari script except those shown as admissible under this Rule, namely :-

(a)

Letters/Characters

(b)

Figures

1.

, 2, 3, 4, 5, 6, 7, 8, 9, 0

Note. - (i) There are no telegraphic signals for Roman numerals.

Note. - (ii) Numerals, if any, to be used in Devanagari telegrams shall be the International form of numerals (Rule 18A).

Note. - (iii) Half consonants (Halant characters) are admissible.

(c)

Stops and other signs

Full stop (.), Comma (,), Colon (:), Note of interrogation (?), Apostrophe ('), Hyphen or dash(- -), Brackets or sign of a parenthesis () or Bars of division(/)

(d)

Service Indications and Conventional signs/(See rules 29 to 31)

RP

Reply paid

Rupees and Paise

(Rule 94)

PC

Telegrams with

Telegraphic notification of delivery ordinary (Rule 106)

XP

Porterage charges

paid (Rule 127)

POST

To be delivered at

destination by post (Rules 84, 117, 118, 129 and 130)

OPEN

To be delivered

open (Rule 87)

MTF

More to follow

[Rule 156(2)]

EOM

End of message

[Rule 136(2)]

STATE

State Telegrams

(Rule 148)

TF

(denotes the

Telephone Number)

To be delivered by

telephone (rule 36)

TL

(denotes telex

numbers)

To be delivered by

Telex (rule 36-A)

(e)

The multiplication sign (x) may be used but will be replaced in transmission by the letter 'x' which will be counted as one character in the group in which it appears. Group and symbols such as 1", 9" cannot be reproduced in transmission but senders may substitute for them an equivalent which can be telegraphed, e.g., for the expressions quoted above, 30 power a (or 30a), firstly secondly, B in diamond.

(f)

Notwithstanding anything contained in this rule the expression 30A, 30B, etc., 30 a, 30b, etc, 30 bis, 30 fir, etc. 30', 30", etc, 311, 302 etc. indicating a house number on an address shall be accepted as written, in whatsoever part of a telegram they may appear. In transmission the number will be separated from the letters or figures accompanying it by an oblique bar, which, for the purpose of calculating the charge, shall not be counted as a character in the group of figures or figures and letters composing the house number, whether the sender has or has not written the bar on the copy tenders for transmission.

18.

-A. Acceptance of telegrams in Indian languages written in Devanagari characters.

- Notwithstanding anything contained in rule 18, any Telegraph office in India, authorised in this behalf by the Director-General, Postmaster General, General Manager, Telephones, Controller of Postal Services or Director of Post and Telegraphs may accept telegrams in Indian languages written in Devanagari characters; the numerals, if any, to be used in such telegram shall be international form of numerals. The service will be available only in respect of specified offices.

18.

-B. Application of Indian Telegraph Rules, 1951 to Telegrams in Devanagari characters.

- The Indian Telegraph Rules, 1951, shall be applicable to telegrams in Devanagari character mutatis mutandis unless specified otherwise.

19.

Erasures, etc.

- Every footnote, insertion, erasure, correction in a telegram presented for transmission shall be initialled by the sender or by his representative in token of approval.

20.

Language, etc.

- Inland private telegrams may be expressed in plain language or in secret language (e.g. Code or Cipher), but a combination in the same telegram of figures and letters, having a secret meaning, shall not be permitted.

Plain Language Telegrams

21.

"Plain language"

means in the case of inland telegrams language which offers an intelligible Sense in English, in any of the modern

languages of India or in any foreign language, and which is expressed in character admissible under rules 18 and 18A, each word and each expression having the meaning normally assigned to it the language to which it belongs.

22.

"Telegram in plain language"

means a telegram of which the text is wholly in plain language provided that a telegram in plain language may contain registered addresses, commercial marks, exchange quotations, letters representing the signals of the International Code of Signals, abbreviations in current use in ordinary or commercial correspondence, such as rsvp, fob, c/o, svp, c/o, or any similar expression the meaning of which is understood in the office of origin, or in the case of bank or similar telegrams, a check word placed at the beginning of the text and not exceeding 5 letters or 5 figures in length.

Secret Language

23.

Secret language is formed of

:-

(a)

Code words composed exclusively of letters having a secret meaning;

(b)

Cipher composed of international form of Indian numerals or Devanagari letters having a secret meaning.

Code Telegrams

24.

Code telegram means a telegram of which the text is composed of

-

(a)

artificial words, or

(b)

real words not used with the meaning normally assigned to them in the language to which they belong and consequently not forming intelligible phrases in one or more of the languages authorised for telegraphic correspondence in plain language, or

(c)

a mixture of real words and artificial words. Artificial words constructed for the purpose of this rule shall not contain the accented letters.

25.

Code words shall not contain more than 5 of the characters admissible under rule 18 and shall contain at least one vowel. The vowels are a, e, i, o, u and y the groups ac, aa, ao, oe, ue, and ch in the code words shall be counted as two letters each.

"The name of the Code used for the wording of a secret language telegram shall be furnished by the sender if required by the office of origin or of destination which will not be charged for."

"In Devanagari characters also the code words shall not contain more than 5 characters inclusive of at least one of the following matras, which shall be reckoned as one character for this purpose.

26.

Groups which do not fulfil the conditions of rules 24 and 25 above shall be classed as letter cipher (rule 27) and charged accordingly. Groups formed by combining two or more plain language words contrary to the usage of the language shall not be admitted. (See also rule 57).

Cipher Telegrams

27.

(1)

"Cipher telegram" means a telegram the text of which is composed of-

(a)

International form of Indian numerals or groups or series of such numerals with a secret meaning or of letters (excluding the accented letters or groups of series of letters) with a secret meaning, or

(b)

words, names, expressions or combination of letters not fulfilling the conditions of plain language (rule 21) or code (rule

24).

(2)

The combination of figures and letters, figures or letters and signs in one group with a secret meaning, shall not be permitted. Letter cipher shall be arranged in groups of five letters.

(3)

The groups referred to in rule 25 shall not be considered as letter cipher, i.e., as letters having a secret meaning.

Note. - The characters and Devanagiri characters in half or in full with a dot or dash (halant) under them shall not be admissible for use in Devanagiri code or cipher telegrams (rules 23 to 27).

28.

Telegrams in secret, language shall be charged at the ordinary or urgent rates, as the case may be.

Service Indications

29.

Service indications as specified in rule 18(d) may be included in a telegram. Such indication shall be written by the sender in the space, provided for that purpose in the telegram form.

30.

In the case of multiple telegram, service indication, if any, shall be written by the sender before each address to which they relate, provided that the service indication for collation in the case of such telegram shall be deemed to be sufficiently indicated, if written once only, before the first address.

31.

Service indications may be written in any intelligible form but shall be charged for and transmitted in the abbreviated forms specified in rule 18(d). If the indication has not been written by the sender in the correct abbreviated form, the counter clerk shall cross it out and substitute for it the correct abbreviation, which shall be placed between two double dashes (e.g. = TC =).

32.

Arrangement of a telegram.

(1)

The contents of an inland telegram shall be arranged in the following order.

(a)

The preamble (rule 205)

(b)

The address (rules 33 to 41).

(c)

The text (rule 42).

(d)

The sender's name (rule 43).

(2)

Subject to the provisions of rule 43, no inland telegram shall be accepted by a telegraph office unless the contents specified in sub-rule (1) are given.

Address

33.

Address.

- The address of every inland telegram shall contain at least two separate words designating respectively the addressee and the name of the telegraph office of destination provided that in the case of weather telegrams, the address may contain only a single word designating the name of the telegraph office of destination. The name of the office of destination shall, for purposes of charging, be counted as one word, irrespective of the actual number of words and letters which it may contain (rule 48). The designation of the office to which the telegram is to be transmitted shall be written as given in the list of telegraph offices published in the Telegraph Guide. Volume II but the letters and names of districts and provinces which are therein printed in italics after the names of offices, may be omitted.

Example.- "Basin Bridge Junction S.R.", written as the name of the telegraph office of destination will be counted as one word only.

34.

The address shall contain all particulars necessary to ensure the delivery of the telegraph without search or inquiry.

35.

When a telegram is addressed to one person care of another, the address shall contain immediately after the name of the actual addressee the words "care of" "c/o" of any other equivalent.

36.

If the sender desires his telegram to be delivered by telephone, in such case, he shall write before the address (name of addressee and the office of destination) the service indication TFX (x being the telephone number of the addressee), e.g. "TF 386338 Telepost New Delhi."

36A.

If the sender desires his telegram to be delivered by telex, in such case, he shall write before the address (name of addressee and the office of destination) the service indication TLX(x being the telex number of the addressee), e.g., "TLX 2723 Telepost New Delhi."

36B.

If the sender desires his telegram to be delivered by Post Box address, in such case, he shall write the name of the addressee followed by his Post Box number and the name of the telegraph office of destination, e.g. "Paul Post Box 380 Calcutta", Telegrams so addressed will be delivered through the Post Box.

37.

The address of telegrams addressed "post restante" or "telegraph restante" shall give the name by which the addressee is ordinarily known and shall not be addressed by means of initials, figures, Christian names only or fictitious names.

38.

Any inland telegram of which the address is not in conformity with rules 33, 34 and 35 may be refused at the office of presentation, and if such telegram is accepted for transmission, no claim for refund in respect of delay or non-delivery thereof shall be admitted.

39.

No alteration or addition shall be made in the address of a telegram after it has been despatched except by means of a paid service advice (rule 153, etc.).

40.

Abbreviated addresses.

- Subject to the provisions of rule 151 abbreviated addresses may be registered within the limits of India under the following conditions.

(i)

Application for registration shall be made to the officer-in-charge of the telegraph office at which it is desired to register an address.

(ii)

No address may be registered in one town for the delivery of telegrams in another town.

(iii)

The registered address will be available for telegrams from other countries, as well as for inland telegrams.

(iv)

No registered address shall consist of more than one word in addition to the name of the telegraph office, where delivery is to be effected, as identified by the Postal Index Number (PIN code).

(v)

Such word shall be easily pronounceable and shall not contain more than 10 characters (including matras in Devanagiri script). Proper names shall ordinarily not be accepted.

(vi)

Numbers, names of professions, trade, countries, states, towns, telegraph stations, well-known streets or registered newspapers shall not be used in as registered addresses.

(vii)

Registration shall be refused of any word which either in writing or in telegraphic signals so closely resembles a word already registered that the one might be mistaken for the other.

(viii)

Registration shall be refused of any word which either time cancel any registered address, and shall thereupon refund a

part of the registration fee proportionate to the unexpired period of the registration, or, at the option of the person by whom such address was registered, shall allow a new address to be substituted free of charge for the one cancelled.

(ix)

In the event of a change in the title of a firm for which an address has been registered, the records may be altered only with the consent, in writing, of all the partners of the firm.

(x)

A firm shall be permitted to register an address for an agent, provided that such agent trades under the same name as the firm.

(xi)

The fee of registration of an abbreviated address (both Roman and Devanagiri) shall be Rs. 200 payable for the calendar year in advance to the officer incharge of the telegraph office at which the registration is made. When the registration is effected during the course of an year, the fee shall be charged at the rate of Rs. 20 per calendar month, inclusive of the month of registration, up to 31st December of that year.

(xii)

An additional fee, equal to half the original registration fee, shall be charged for every change of the word selected, or for every transfer to another telegraph office within the period of registration, no additional fee shall be charged in respect of a change of residence within the delivery limits of the registering office, or in respect of a change in the name or title of the registering firm or person not amounting to a change of identity, or to a transfer from one firm to another.

(xiii)

An abbreviated address, registered permanently by any firm or person under the rules in force prior to 1st July, 1904, shall not be transferred to any other firm or person as a permanently registered address, but it transferred shall be retained only on payment of the yearly registration fee prescribed under clause (xi). A fee of Rs. 5 shall be charged for every change of the word selected for an abbreviated address registered permanently under the rules in force prior to 31st July, 1904 and for every transfer of such address to another telegraph office.

(xiv)

No refund of fee shall be made in respect of address registered but subsequently given by the person who registered them, except in cases where the refund has been applied for before the commencement of the period to which the fee relates.

41.

Any person or firm to whom telegrams are frequently addressed by means of an abbreviated name which has not been registered may be required, by a written notice from the telegraph office, to register the address, and on failure of such person or firms to comply with such notice the telegraph office may refuse to deliver telegram so addressed :

Provided that the rule of payment for registration of an abbreviated address may be relaxed for a traveller or person expecting to receive a few messages under an abbreviated address during a short period of, say, one week.

Text Of A Telegram

42.

Limit to length of telegram.

- No inland private telegram shall exceed 500 words in length, nor shall any one person send at the same time a series of telegrams of which the total number of words exceeds 500. In cases where the limit of 500 words has been reached, either in one telegram or in a series of telegrams, the sender of such telegram or telegrams shall not, unless the line is free of all other traffic, be permitted to send a further telegram until three hours have elapsed since the handing in of his last telegram.

Sender's Name

43.

The sender's name or designation may be in a customary abridged form, or may be replaced by a registered address, or may be omitted altogether.

44.

Signature.

- The true signature and address of the sender (neither of which shall be charged for or transmitted) shall be written at the foot of the telegram and the sender of a private telegram may be called upon to prove that the signature attached to it is genuine. If the sender of a telegram is illiterate, his mark shall be obtained and shall be verified in such manner as

the Director-General may direct. In the case of telegrams from a mercantile firm the signature may be the name of the firm written by hand, or the name of the firm stamped and attested by the signature or initials of a responsible member of the firm.

In the case of telegrams telephoned by telephone subscribers (rule 12), the signatures of the senders shall not be necessary.

Counting Of Words

45.

What is counted.

- Save as provided in rules 51 and 137, every word or character written by the sender of an inland telegram on the copy intended for transmission shall be included in calculating the charge, provided that the name of the telegraph office of origin shall not be so included but shall be transmitted free.

46.

Stops, etc.

- Dashes used only to separate on the sender's copy the different words or groups of the telegram shall not be transmitted. Signs of punctuation, apostrophes and hypens shall be transmitted only at the request of the sender, and shall in such case be counted as provided under rules 53 and 54.

47.

Preamble.

- Words, numbers and signs added by telegraph officials for official purposes shall not be charged for. The hour and minute (Standard Time) at which a telegram is handed in, shall be added by the telegraph office and transmitted free.

48.

Each of the following shall be counted as one word only:

(i)

Service indications written in the abridged form authorised in rule 18(d).

(ii)

The name of the telegraph office of destination when written as given in the Post and Telegraph Guide (rule 33) or when completed by the name of the district or the province, if the name of the office has not yet been published in the Post and Telegraph Guide.

(iii)

Every code word which fulfils the requirements of rules 24, 25 and 26.

(iv)

Save as provided under rule 137 every isolated character, letter or figure as well as every sign of punctuation, apostrophe or hyphen transmitted at the request of the sender.

(v)

An underline.

(vi)

Parenthesis (the two signs forming).

(vii)

In telegraphic money orders, the amount expressed in both figures and words, the name of the post office of issue, the name of the post office of payment, and that of the locality in which the payee lives.

49.

Plain or secret language telegrams.

- In telegrams in plain or secret language each word appearing in a standard dictionary of the admitted languages, each word in common use in one of the languages or any expression mentioned in rule 52 or authorised compound shall, for purposes of charging, be counted as single word, provided that it contains not more than 15 characters in the case of plain language and 5 characters in the case of secret language, counted in accordance with the provisions of rule 18. Words or authorised compound containing more than 15 characters shall, for purposes of charging, be counted at the rate of 15 characters to a word plus one word for each 15 characters or fraction of 15 characters in excess.

49.

-A.

Subject to the provisions of rule 49, in telegrams written in Devanagari characters in plain or secret language, each word

shall be counted as a single word provided that it contains not more than 10 characters either in full or in half (excluding matras) in the case of plain language and 5 characters inclusive of at least one matra in the case of secret language in accordance with the provisions of rule 18. Words or authorised compound words containing more than 10 characters shall, for purposes of charging, be counted at the rate of 10 characters (excluding matras) to a word plus one word for each 10 characters or fraction of 10 characters.

Note. - Compound consonant shall be counted as two characters each.

50.

Mixed telegrams.

- If an inland telegram contains both plain language words and secret language words, the plain language words shall be counted at the rate of 15 and 10 characters to a word in Roman and Devanagari scripts (excluding matras), respectively, and the secret language words shall be counted at the rate of 5 characters to a word in both the scripts.

51.

In all inland telegrams the address or sender's name shall, save as provided in rule 137 be charged for according to the provision of rules 48 and 49:

Provided that if the address in inland telegrams, exceeds six words, the number of words exceeding six but not exceeding ten shall not be included in calculating the charge.

52.

Groups of figures, letters, commercial marks, etc.

- Groups of figures or of letters, ordinal numbers and commercial marks composed of figures and letters, the number of a cheque or currency note, and all reference numbers in State telegrams, shall be counted at the following rate, namely.

(i)

one word of every group not containing more than five figures or letters,

(ii)

for groups of more than five figures or letters, one word for every complete five figures or letters and one word for the remainder, if any.

Each of the combinations ae, aa, ao, oe, ue and ch shall be counted as two letters. When commercial marks form part of the text of a telegram, the sender shall certify them to be such at the foot of the form.

53.

Use of apostrophe and hyphens.

- Save as provided under rule 58 words separated by an apostrophe and words joined by a hyphen shall be counted as separate words.

54.

Signs, etc., used with figures or letters.

- Decimal points or full stops, commas, colons, dashes and bars of division when used in groups of figures or letters shall be counted each as a figure or a letter. In the like manner shall be counted each letter or figure added to a house number in an address in whatever part of the telegram such address appears.

55.

Meteorological telegrams.

- In meteorological telegrams the letter X shall be counted as a figure in the group of figures in which it appears.

56.

Abbreviations.

- Common titles, which, in their full form, are expressed by a single word, such as Captain, Reverend and Esquire, may be written in their usual abbreviated forms, such as Capt., Rev., and Esq., each of which shall be counted as one word. Similarly, common abbreviations of single words, such as Rs. (for Rupees), lbs, (for pounds) shall be admissible and shall be counted each as one word.

57.

Combination or alterations of words.

- Contrary to the usage of the language, whether such combination or alterations be apparent or disguised by reversing the order of letters or syllables, shall not be permitted

(i)

Provided that registered abbreviated addresses, names of towns and countries, family names belonging to one person,

the full names of places, squares, boulevards, streets and other public ways, the names of ships, whole numbers, fractions, decimal or fractional numbers, written entirely in words, and all expressions which, by the usage of the English language, are written as single words shall, subject to the limitation imposed by rule 49, be counted as single word in inland telegrams and shall be charged for accordingly.

(ii)

Provided further that the words half anna, two annas, three annas, etc., may be written as single word subject to limitation imposed by rule 49.

Examples

(a)

Combination admissible as single words Cowhide, Gingellyseed, Rapeseed, Sheepskin.

(b)

Combinations inadmissible as single words:

Tapestry patterns

Innerharbour

Tuesday morning

Counteroffer

Bourse credit

Wheat cargo

Bank action

Sail insurance

Beerboxe

Wire answer

Steam coals

Discharging day

Alright

Very well

Good business

All right

Steamer cargo

Hull steamer

Coast sailing

57A.

Combination of words in Devanagari telegrams.

- In Devanagari telegrams combination of :

(1)

prepositions.

(2)

words, which, when written together, are equivalent to one word in English language, and

(3)

words used for one name, idea or thing, subject to the provisions of rule 49A. be counted as one word, provided they are written together one such as:-

58.

Surnames.

- Names, such as Macdonald (or McDonald), Fitz-Gerald, O'Neil, DeMorgan, D'Cruz, DeLaRue, St. John, Vande Brude, DuBois, shall be counted as one word each, even though written with capital letters and shall be transmitted as single word without break, the apostrophe where used being omitted.

59.

Examples of counting.

- The following examples show how the rules for counting words are to be interpreted:

Number of words

Leveson-Grower (family name)

2

Levensongower (family name)

1

John Henry (Christian names)

2

Johnhenry (Cristian names)

2

A. Gower (initial and family names)

2

Agower (evasion, inadmissible)

2

Number of words

1

Readdressed

2

Re-addressed

1

Don't

1

Don't

2

Mother-in-law

3

Mother-in-law

1

All-right

2

All-right

2

Allright (misspelt; inadmissible)

44 1/2(5 characters)

1

441/2 (6 characters)

2

444.5 (5 characters)

1

444.55 (6 characters)

2

44/2 (4 characters)

1

44 (3 characters)

1

58 (4 characters)

1

2% (4 characters)

1

17th

1

1529th (6 characters)

2

10 Rs. 10 as

4

10 Rs. 10

3

Rs.10, 10 (or) Rs. 10/10

2

11 p.30

3

11.30

1

Eight/10

2

5/twelfths

2

May/August

2

30a (30 to the power a)

5

15 x 6 (signalled 15 x 6)

3

15 x 6 (without spaces)

1

Two hundred and thirty-four

5

Two hundred and thirty four (23 characters)

2

E.M. (Isolated letters, initials of christian names)

2

E.M. (Initials of 2 Christian names, wrong combination)

2

15A (Number of House)

1

15d or 15/3 (Number of houses)

1

I.C.S. (for Indian Civil Service in address of text)3

Bara Bazar

2

Barabazar

1

Responsibility (14 characters)

1

Misrepresentation(17 characters)

2

Princeofwales (ship)

3

Prince of wales (ship)

1

Emvchf (6 characters, Secret letters in State telegrams, commercial marks)

2

117a/199a (Commercial mark, a group of 9 character)

2

AP/M (Commercial mark or Secret language in State telegrams; a group of 4 characters)

1

3/M (Commercial mark; a group of 3 characters)

1

GHF (Commercial mark, or Secret language in State telegrams; a group of 3 characters)

1

G.H.F. (Commercial mark, or Secret language in State telegrams; 3 groups of 2 characters)

G.H.F. (Without final stop) (Commercial mark or Secret language in State telegram)3

GHF 45 (Commercial mark)

1

G.H.F. 45 (Commercial mark)4

G./O. (for General Order) 2

G.O. (for General order) 2

The business is very urgent, come without delay
(8 words and 2 underlines)

10

Received news of you indirectly (very bad)
telegraph immediately (9 words and 1 passage within parenthesis)

10

ICS or lcs (in address or text)

1

R.A. (for Royal Artillery in address or text)2

RA or Ra (in address of text)

Received letters from Pera reliable source which
says "conversion business hundered by syndicate bankers"
(14 words and a passage in inverted commas)

15

AS. (for "annas")

1

Co. (for "Company")

Etc. (for "etcetera")

1

Mr. (for "Mister")

1

Mrs. (for "Mistress")

1

No. (for "Number")

1

1. (for "pence")

1

s. (for "shilling")

1

Cwt. (for "hundred eight")

1

245-F (reference in State telegrams; a group of 5 characters)

1

F-C/B 533409 (number of Cheque; a group of 10 characters)

2

FB/28 42666 (number of Currency note; a group of 10 character)

2

Classes And Charges

60.

Inland telegrams for delivery in India.

- Inland telegrams for delivery in India shall be classed as express or ordinary.

Exceeding ten chargeable

Class

Not exceeding ten chargeable words

First ten words

Each additional word after the first ten chargeable words

Rs.

P.

Rs.

P.

Rs.

P.

Express

7.00

7.00

1.00

Ordinary

3.50

3.50

0.50

61.

The charges payable for Press telegrams shall be those provided in rule 133.

62.

In respect of telegrams telephoned by the telephone subscribers (rule 12), a fee of two rupees shall be payable for each such telegram in addition to the charges payable as on a similar telegram of the same class and the same length and with the same special services, if any, when not booked over a telephone call :

Provided that in measured rate system, the call on which the telegram is booked shall also be taken into account in determining the local call fees payable by the subscriber under Sec. III of rule 434.

In respect of telegrams accepted by a village postman (rule 9), a fee of 7 Paise for each such telegram shall be payable in addition to any other charges payable on such telegrams.

63.

[Deleted.]

Payment Of Charges

64.

Charges how paid.

- Save as provided under rules 12, 13, 68, 69, 70, 140 and 149, all charges on inland telegrams shall be prepaid in cash, if the class of the telegram is not stated by the sender, it shall be classed and charged for as Ordinary (rule 60).

65.

[Deleted].

66.

[Deleted].

67.

Receipt.

- A receipt stating the number of the telegram and the charge paid may be obtained for each telegram accepted for transmission at a telegraph office or postal receiving office. Duplicate copies of receipts for telegrams shall not be given.

68.

Acceptance of telegrams on deposit account system and guarantee system.

(1)

At departmental telegraph offices and at such combined offices as the Head of a Circle may specify in this behalf, inland telegrams may be accepted without prepayment from any person who has (a) made at the telegraph office from which the telegrams are to be sent a minimum deposit in cash or Government promissory notes or National Savings Certificate of a sum equivalent to the estimated cost of fourteen days telegram plus fees for the upkeep of accounts, or (b) furnished to such telegraph office a letter of guarantee in the form annexed to this rule from a bank approved by the Director General in this behalf for a sum equivalent to the estimated cost aforesaid:

Provided that subject to the approval of the Head of a Circle, the deposit to be made or guarantee to be furnished by persons whose average expenditure on telegrams at the office in question exceeds Rs. 800 a month shall be, or shall be for, Rs. 1,000 only and that the account in such cases may be rendered monthly.

(2)

The telegraph office concerned shall submit to each such person a weekly account showing the cost of the telegrams accepted under this rule and the fees charged for the upkeep of the account :

Provided that the account may, at the request of the person concerned, be rendered at intervals greater than a week if the deposit or sum guaranteed is increased accordingly.

(3)

The fees for the upkeep of accounts referred to in the two preceding sub-rules shall be at the rate of rupees five for every batch of twenty telegrams or part thereof.

(4)

No telegram shall be accepted under this rule from a person who fails to pay the deposit account bill within two weeks of the date on which it is received or whose deposit is exhausted to whose debt to the telegraph office equals or exceeds the amount secured by his letter of guarantee, until the deposit has been renewed, or the debt paid and, if it has been paid by the guarantee bank under the terms of the letter of guarantee a fresh letter of guarantee has been furnished.

Form Of Letter Of Guarantee From Banks

To,

The President of India

In consideration of your having at our request agreed to waive the deposit you are entitled to demand from Mr./Messrs....(hereafter referred to as the customer) under rule 68 of the Indian Telegraph Rules, 1951, in respect of Telegrams booked without prepayment fromTelegraph Office, we undertake to pay the amounts of the bills issued by the Posts and Telegraphs Department on behalf of the President of India without questioning the accuracy thereof if the said customer fails/fail to pay the same within two weeks from the date of its receipt :

Provided that we shall in no event be liable to pay a sum greater than Rs.....

We further agree that any extension of time or forbearance towards the customer or any act, omission or neglect on your part will not absolve us from our liability under this Guarantee.

This Guarantee will be a continuing guarantee and will not be revoked by us for a period of five years from this date without your prior consent in writing.

(Signature)

Signed and sealed on behalf of Date this.....day of

69.

Telegram from ships.

- Telegrams arriving by mail steamer or other vessel for onward transmission by telegraph as inland telegrams may be

transmitted without prepayment; but no such telegram, whether prepaid or not, shall be transmitted until the name of the vessel from which it is received is known at the telegraph office.

70.

Telegrams from Military Field Telegraph Offices.

- When a military field telegraph office prepayment is impracticable, inland private telegrams, addressed to any office other than a military field telegraph office, may be accepted "bearing" (i.e., charges payable on delivery).

71.

Recovery of Bearing and other charges from Addressee.

- When a charge is due on delivery (rules 13, 69, 70 and 111), the telegram shall be handed to the addressee only upon payment of the amount due, provided that in the case of State Telegrams addressed to Government officials, the addressee shall pay the bearing charges (rules 13, 69, 70, and 111) to the telegraph office within 24 hours.

72.

Undercharge.

- If any made in error, and charges and expenses not recovered from the addressee of an inland telegram in consequence of his refusal to pay them, or the impossibility of finding him, shall be recovered from the sender.

73.

Overcharge.

- The amount of any overcharge made in error shall be refunded to the person entitled thereto on application made by him in accordance with the provisions of rule 162

Precedence

74.

Order of transmission.

- Inland telegrams shall be transmitted in the following order, namely:

(a)

S.V.H. telegrams relating to safety of human life on land, at sea or in air and Epidemiological telegrams of WHO (rule 45).

(b)

Most Immediate and Operations Immediate State telegrams (rule 143).

(c)

State Immediate and Weather Immediate telegrams (rule 143).

(d)

Special Police Immediate Service and Storm Signal telegrams.

(dd)

[Urgent Public (Despatch/Collection of human eye balls)]

[Inserted by G.S.R. 566, dated 11.7.1986]

(e)

Urgent Private (Intimation of death) Flash Press and Express Weather telegrams.

(f)

Other Express, telegrams (State, private, press and service) excluding Express Greeting telegrams.

(g)

Express Greeting telegrams.

(h)

Ordinary telegrams (State, private press and service) excluding ordinary Greetings telegrams.

(i)

Ordinary Greetings telegrams and letter telegrams.

(j)

Meteorological (other than Storm and Flood Warning) telegrams.

(k)

Express State telegrams (rule 146).

(l)

Express private and press telegrams (rules 76 and 133).

(m)

Ordinaly State telegrams (rule 146).

(n)

Ordinary private and press telegrams (rules 76 and 133).

75.

Subject to the provisions of rules 74 and 76 inland telegrams shall be transmitted in the order in which they are received.

76.

[

[Substituted for "rule 76" by G.S.R. 314 dated 4.4.1986]

(1)

Except as provided in sub-rule (2), all inland telegrams shall be accepted and transmitted by any telegraph office during its normal working hours.

(2)

Ordinary telegrams other than the following categories of telegrams even on late fee shall not be accepted by any telegraph office between 1700 to 0700 hours.

(a)

Priority telegrams conveying news of death.

(b)

Private personal telegrams containing communications regarding.

(i)

arrivals and departues at railway stations or airports;

(ii)

sickness and accidents, including calls for attendance of relations;

(iii)

applications for, and offers of employment including calls for interview; or

(iv)

intimation of examination results :

Provided that classes of inland telegrams specified in rule 16 shall be accepted and transmitted during closed hours of an office authorised to handle such telegrams, on payment of late fee.

(3)

Express telegrams shall have precedence over ordinary telegrams in transmission only.

(4)

All inland telegrams shall be delivered by any telegraph office during its normal working hours :

Provided that ordinary telegrams other than the categories specified in clause (a) and sub-clauses (i) and (ii) of Cl (b) of sub-rule (2) received between 2200 hours and 0600 hours shall be send out for delivery after 0600 hours.

(5)

(a)

Telegrams accepted under rule 16A and express telegrams shall be sent out for delivery if received between 2200 and 0600 hours only if the sender has inserted the special instruction 'Night' at the time of booking of the telegram.

(b)

The word "Night" shall be charged for as one word at express or ordinary rate depending on the class of the telegram].

77.

[Deleted.]

78.

[Deleted.]

Interruption Of Telegraphic Communication

Transmission in Duplicate

79.

When owing to an interruption in telegraphic communication an inland telegram cannot be transmitted by the ordinary route between two telegraph offices, the offices beyond which the interruption occurs, or an office situated further back, shall forward the telegram immediately by an alternative telegraph routes or by speech circuit, and if no such methods of

disposal are possible, by special messenger or by post (registered, if possible).

80.

If an inland telegram is retransmitted by means other than telegraphic, it shall be addressed by the retransmitting office either to the nearest telegraph office in a position to retransmit it, or to the office of destination, or to the addressee himself. As soon as communication is restored, the telegram shall be transmitted afresh by telegraph, unless its receipt has been already acknowledged, or unless, by reason of exceptional congestion of traffic, such retransmission should be obviously prejudicial to the service as a whole.

Cancellation

81.

The sender of an inland telegram or his authorised representative may on establishing his identity cancel the telegram at any time before transmission has begun, and in such case the charges paid less, a fee of rupees two shall be at once returned. If the telegram is in course of transmission, or has already been despatched, it may be cancelled only on payment of a fee of rupees two in addition to the charge for a paid service advice address under rule 154 to the office of a destination. If in addition, the sender wishes to be informed by telegraph of the manner in which his request has been acted upon, he shall deposit the cost of the return telegram, otherwise he shall be informed by post. If the telegram has been delivered to the addressee, the latter shall be informed of its cancellation unless the service advice contains instructions to the contrary.

Delivery At Destination

82.

According to address and order.

- Inland telegrams shall ordinarily be delivered at the residences of the addressees, or if, addressed "telegraph restante" or "poste restante" or "care of telegraph office" shall be kept at the telegraph office or post office, as the case may be, till called for. By the purchase of a window delivery ticket, rates for which shall be notified in the Telegraph Guide. Vol., I firms or individuals may have all telegrams addressed to them delivered to their peons or servants at the window of the telegraph office. Inland telegrams shall, in all cases, be delivered at, or forwarded to, their destination in order of receipt.

83.

An inland telegram addressed to a registered abbreviated address for which service indications for delivery by telephone are registered (rule 110) or addressed to a person by his telephone number (rule 36) may be telephoned to the addressee. In other cases a telegram may, with the consent of the addressee, be delivered by telephone if this method of delivery is convenient to the telegraph office. Whenever delivery is made by telephone, a confirmatory copy of the telegram shall be sent to him by the first available post at the address given against the telephone number in the Telephone Directory:

Provided that in cases where delivery of the confirmatory copy of a telegram is desired to be effected by a messenger and not by an additional charge of twenty-five Paise per confirmatory copy so delivered shall be payable by the addressee.

84.

Free delivery limits.

- In the case of large cities where delivery is arranged through more than one telegraph office the free delivery area shall ordinarily comprise of the limits of the city.

In other cases and where free delivery area is not specified, telegrams shall normally be delivered free of charge to places within a radial distance of eight kilometers of the telegraph office concerned. Beyond this distance, telegrams shall be delivered either by post without additional charges, or by such other means as may have been arranged and paid for by the sender (rules 117-122) :

Provided that from railway telegraph offices at stations where the traffic is not sufficient to justify the maintenance of a special delivery staff, telegrams shall ordinarily be delivered by hand within the railway station limits only, and telegrams for places outside such limits shall ordinarily be delivered through the post.

85.

If in any case owing to floods or to any other cause a place at which an inland telegram is to be delivered cannot be reached otherwise than by boat, the provisions of rule 88 shall apply.

86.

Persons to whom telegrams may be delivered.

- An inland telegram taken to the addressee's place may be delivered either to the addressee or an adult member of his family, to any person in his service, to his lodgers or guests, or to the porter of the hotel or the house.

87.

Open delivery.

- The sender may by writing on the telegram form at the service indication "Open" [rule 18 (d)] request open delivery of the telegram, and in such case the indication shall be reproduced on the addressee's copy of the telegram which shall be delivered without an envelope, simply folded with the address written on the back.

88.

[Deleted]

89.

Delivery on ships.

- Inland telegrams addressed to passengers on board a vessel arriving at a port shall be delivered, if possible, before disembarkation.

90.

Reply given to messenger.

- Save in the case of delivery by the ordinary post, the messenger who delivers a telegram may be entrusted with a reply telegram, provided he be not retained for this purpose more than five minutes.

The fact of a reply telegram having been given to the messenger, and the amount paid to him in respect thereof shall be mentioned on the receipt signed for the original telegram.

91.

Undelivered telegrams.

- When an inland telegram cannot be delivered, the telegraph office of destination shall send with the minimum of delay a service advice to the telegraph office of origin stating the cause of non-delivery and the amount of bearing charges, if any, unpaid at destination and payable by the sender. Such advice shall, where possible, be communicated to the sender by the telegraph office of origin :

Provided that no advice shall be sent under this rule in respect of a telegram posted under rule 85 and returned undelivered by the post office to the telegraph office which posted it, or in respect of telegrams addressed to await arrival, "poste restante". "telegraphe restante". "care of telegraph or post office" or "care of station master" except when a charge has to be collected, in which case a service advice of non-delivery shall be sent by post at the expiration of the period prescribed for the retention of such correspondence in rule 93.

92.

If at the address given on the telegram the messenger is unable to attract the attention of any person to whom he is authorised, under the provisions of rule 87 to effect delivery, a notice shall be left by the messenger at such address advising the addressee of the arrival of the telegram and intimating that delivery may be obtained on application at the telegraph office. The telegram shall then be brought back to the telegraph office, to be delivered to the addressee or his representative upon application. If the addressee, duly advised as above of the arrival of a telegram, fails to take delivery within 24 hours, non-delivery shall be reported in accordance with rule 91.

93.

Unclaimed telegrams.

- Inland telegrams unclaimed or not delivered, shall be preserved for two months by the office of destination as laid down in Cl. (f) of rule 164.

Telegrams With Special Services

Prepaid Replies

94.

The sender of an inland private telegram, or of an inland State telegram addressed to a person other than a Government official may prepay the charge for a reply, but the amount so prepaid shall not be less than the minimum charge, for an ordinary telegram. The sender of reply-paid telegram shall write the words "reply paid", in the space provided on the telegram from [rules 18 (d) and 29].

95.

(i)

At the destination of a reply paid inland telegram, the telegraph office shall deliver to the addressee a reply telegram

form, entitling him, subject to the provisions of rule 101 to send free of charge from any telegraph office of receiving office in India, up to the value of the amount notified on the form as prepaid, a telegram to any destination in India.

(ii)

Two or more reply telegram forms issued in India may be used in payment of one inland telegram, but one reply telegram form shall not be used in payment of two or more telegrams.

(iii)

Save as provided under rule 101, a reply telegram form may be used to prepay the cost of an inland telegram and its reply.

96.

(i)

If the cost of the telegram sent on the reply form exceeds the amount notified therein, the difference shall be paid in cash by the sender using the reply form (rule 64).

(ii)

If the amount notified on the reply telegram form exceed the charge payable for the telegram sent, the difference, if it be not less than fifty paise, shall be refunded to the sender of the original telegram on application made by him in accordance with the provision of rule 162:

Provided that no refund shall be given on a reply telegram form which has been prepaid by another reply telegram form and not by cash.

97.

An inland reply telegram form shall be available only for two months from the date of issue.

98.

When the addressee has not made use of the reply telegram form or has refused it, the money deposited for the reply shall be refunded to the sender on application made by him in accordance with the provisions of rule 162.

99.

In case of non-delivery of a reply paid inland telegram the reply telegram form shall remain attached to the telegram for a period of two weeks and on the expiry of that period, it shall be cancelled and sent to the office of origin for linking it with the relevant 'A' message draft and for refund of the amount prepaid, if applied for, by the sender, in accordance with the provisions of rule 162.

100.

When a reply paid inland telegram is addressed to a place where there is no telegraph office, the telegram and reply telegram form shall be forwarded to destination from the nearest telegraph office by ordinary post free of charge.

101.

Prepayment for reply shall not be permitted in the case of an inland State telegram addressed to a Government official. In the case of an inland State telegram addressed to any other person, any sum deposited by the sender under rule 82 shall be utilised for no other purpose than to cover the cost of a return telegram to the sender of the original telegram.

Collated (Or Repeated) Telegram

102.

Collation means the repetition back to the transmitting office of the entire telegram (including the preamble) immediately upon its receipt by each office concerned in its transmission.

103.

[Deleted]

104.

[Deleted]

105.

Inland State telegram written in secret language other than those classed Ordinary and Service telegrams written in secret language shall invariably be collated and no charge shall be made for collation of such telegrams.

Notification Of Delivery

106.

The sender of an inland-telegram may, by writing on the telegram form the service indication "PC" [rule 18 (d)] require that the date and time at which the telegram has been delivered to the addressee be notified to him by ordinary telegram as soon as possible after its delivery.

107.

(i)

When an inland telegram requiring notification of delivery is forwarded to its final destination by post, or is deposited in the "poste restante" or is delivered into the care of a third party, the notification shall mention the date and time of such forwarding deposit or delivery. When the telegram is addressed to a ship at sea, the notification shall be despatched by the coast of Semaphore Station and shall state the date and time of transmission of the telegram to the ship.

(ii)

A notification of delivery may be addressed to the sender at any place named by him.

(iii)

Notification of delivery shall be communicated to the sender immediately on its arrival at the office of origin, or the office indicated in the telegram.

108.

The charge for a notification of delivery of an inland telegram shall be the minimum charge for an ordinary telegram and shall be prepaid by the sender of the telegram.

109.

When an inland telegram requiring notification of delivery cannot be delivered, a service advice reporting non-delivery shall be sent to the office of origin as laid down in rule 91 and the notification of delivery shall be sent only if, at a later time within the period prescribed under rule 93 for retention of the telegram, the telegram is delivered to the addressee. If at the expiration of the prescribed period, the telegram has not been delivered, the charge for the notification of delivery shall be refunded to the sender of the telegram on application made by him in accordance with the provisions of rule 162.

110.

Directions about delivery.

(a)

Registration of special delivery instructions regarding the delivery of telegrams shall be made only in the case of holders of abbreviated addresses registered under rule 40 without any additional fee. The registration of Special Delivery. Instruction shall be restricted to only one instruction by which delivery may be effected by the same telegraph office at all times.

The facility of registration of Special Delivery Instructions for delivering telegrams at a second address served by a different telegraph office may be allowed subject to the subscriber's willingness to accept delays, if any, involved in the process of delivery and on the condition that the holders of abbreviated addresses shall pay for the additional cost involved in such delivery at the rate of rupee one per telegram. Charges towards such additional cost shall be recovered through a system of Deposit/Credit account maintained for the purpose.

(b)

Instructions restricting the delivery of telegrams during certain period of the day or night or for delivery to telephone or telex numbers round the clock shall not be charged for and shall not be treated as special delivery instructions.

111.

[Deleted]

112.

[Deleted]

113.

[Deleted]

Multiple Telegrams

114.

"Multiple telegrams" means a telegram addressed to several persons in a locality served by one and the same telegraph office, or by different telegraph offices within the free delivery radius of a central telegraph office, or to the same person at several addresses in such locality. The maximum number of such addresses in a telegrams shall be limited to five.

115.

The charge for a multiple telegram shall be the charge prescribed for a single telegram of the same class and length together with, for each address after the first, a copying fee calculated at the rate of Rs. 5.00 for any number of chargeable words not exceeding 30 and Rs. 3.00 for every group of 30 additional chargeable words or part thereof.

116.

Each copy of an inland multiple telegram delivered shall bear its own particular address only.

Telegrams To Be Delivered By Post Or Special Messenger

117.

Post or special messenger.

- Inland telegrams addressed to places where there are no telegraph offices may be delivered at destination either by post or by special messenger according to the sender's instructions.

118.

The address of inland telegrams to be conveyed beyond the telegraph lines shall be written in the manner shown below.

(a)

If the message is to be posted from the nearest telegraph office-

To-Sri Krishna Ghosh, Shreghotty, Post Gaya.

(b)

If the message is to be sent by special messenger-

Office Of Origin And Service Instructions

Calcutta=X.P.

To-Sri Krishna Ghosh.

Nynan, Express Hooghly Point.

119.

In the case of telegrams for places in India not falling within free delivery area of any telegraph office, if the sender wishes that the telegrams may be delivered through a special messenger, he shall prepay a fixed portorage or XP charges at the rate of Rs. 3.00 per telegram. A telegram in respect of which portorage or XP charges at the rate of Rs. 3.00 per telegram. A telegram in respect of which portorage or XP charges have been paid, shall bear the code "XP" as service indication.

120.

On an inland telegram addressed to a place in India where there is no telegraph office, no charge shall be made for postage. Telegrams may be posted as registered letters on payment of the registration charges.

121.

The telegraph office of destination may forward by post inland telegrams for addresses beyond the eight kilometres limit if.

(a)

The telegram contains no directions as to the means of delivery to be employed;

[* * * *]

[Word "or" omitted by G.S.R. 729, dated 18.7.1985, rule 2(i)]

(b)

[* * * * *].

["Clause (b)" omitted by G.S.R. 729, dated 18.6.1985, Rule 2(ii)]

122.

The telegraph office of destination shall forward by post inland telegrams for addresses beyond the eight kilometres limit

(a)

when delivery by post has been requested by the sender (rule 117) or by the addressee (rule 111) :

Provided that where the addressee has asked to have his telegrams delivered to him by special messenger, the office of destination may adopt this method of delivery for all telegrams addressed to him, whether they bear the instruction "Post" or not.

(b)

when the telegraph office of destination has not a more rapid means of delivery at its disposal.

Greetings Telegram

123.

"Greetings Telegram" means a telegram accepted on such festive or congratulatory occasions as may be notified in this behalf by the Director-General.

124.

Subject to the proviso to rule 51, the charges payable on a greetings telegram for delivery in India shall be as follows :

Exceeding ten chargeable

Class

Not exceeding ten chargeable words Rs.

First ten words Chargeable words Rs.

Each additional word after the first ten

chargeable words

Rs.

P.

Rs.

P.

Rs.

P.

Express

7.00

7.00

1.00

Ordinary

3.50

3.50

0.50

Note. - The text of the greetings telegrams shall be indicated by a number published for general information in the Telegraph Guide and such number shall be charged as one word.

125.

Service indication.

- A greetings telegram shall bear no other service indication [rule 18 (d) save, if desired, that relating to multiple telegrams (rules 114, 115 and 116].

126.

Acceptance.

- Greetings telegrams whether festive or congratulatory, if addressed to Government telegraph offices shall be accepted at all Government and such Railway Telegraph offices which are open for paid traffic and are listed in the Telegraph Guide. Volume H. All such telegrams, whether ordinary or express, may be booked in advance, with the indication of the date and the month of delivery, provided that any such date of delivery is within thirty days of but not less than three clear days from the date of booking. Such instruction for delivery shall be transmitted free of charge.

127.

Order of transmission.

(1)

Express Greetings telegrams shall be transmitted after other Express telegrams.

(2)

Ordinary Greetings telegrams shall be transmitted after other ordinary telegrams.

128.

Text.

- Stock phrases indicated by a number containing greetings appropriate to each occasion shall be made available to the sender for use in the text of these telegrams. The sender shall select a suitable phrase from the list of stock phrases and shall either write the number only, corresponding to the selected greetings, or the selected greetings in full. In the later case, the telegraph office shall substitute the corresponding number as shown in the list of stock phrases.

129.

Delivery.

- Greetings telegram shall be delivered in specially printed forms and envelopes after the number of the stock phrase has been deciphered into the full plain language phrase corresponding with the number received. It shall take its turn for purposes of delivery with Express and Ordinary private telegrams, as the case may be.

130.

Acceptance and delivery under the phonogram system.

- Greetings telegram shall be accepted over telephone for onward transmission, but shall not be addressed to telephone numbers nor be delivered by telephone.

Phototelegrams

130A.

By phototelegram is meant anything which can be transmitted by phototelegraphic apparatus. Senders of phototelegrams shall avoid the use of the colours blue, lilac, green or yellow, or gilt print or pictures, etc., on yellow, red or grey paper which lack the qualities necessary for good transmission. In no case, however, shall the Government be responsible for the quality or durability of the phototelegram to be delivered to the addressess. Phototelegrams must be rectangular in shape.

130B.

Inland phototelegrams shall be accepted at all such telegraph offices in India and for such places within India as may be notified in this behalf by the Director-General in the Post and Telegraph Guide. The rates shall be determined on the basis of the area of phototelegram in square centimetres, a fraction of a square centimetre being reckoned as one square centimetre. Every inland phototelegram shall bear an address which may be written on an ordinary inland telegram form, the transmission of which shall be free of charge. If the address is written on the phototelegram, it shall from part of the area of the phototelegram to be transmitted.

130C.

(1)

The charge for an inland phototelegram accepted for transmission shall be as follows :

(a)

Upto 335 square centimetres is Rs. 65.

(b)

For every additional 100 square centimeters or part thereof is Rs. 20.

130D.

Full refund shall be made of the charges paid in the case of a phototelegram cancelled at the request of the sender or his duly authorised representative before the transmission of the phototelegram has begun. In the case of a phototelegram cancelled after the transmission has begun, no charge shall be refunded.

130E.

[Bureau fax service.

[Inserted by G.S.R. 933(E), dated 3.12.1990]

- The charges for the Inland Fax Service shall be as follows:-

(a)

Charge of A-4 size document (210X297 mm.) is Rs. 30 per page of document.

(b)

Charge of 1/2 of A-4 size documents (148.5X210 mm.) pr part thereof.) is Rs. 15 per page do document.

Note. 1 - The document to be transmitted through Bureau Fax service may be in any Indian language or English, but the address at which the document is to be delivered shall be either in Roman or Devanagri script only.

Note. 2 - The aforesaid rates shall be applicable to all kinds of Bureau Fax messages whether commercial, Government or Press.

Note 3. - Refund of the charges shall be made only when a Bureau Fax message is cancelled at the request of the sender or his duly authorised representative before beginning of the transmission of the message].

131.

(1)

(a)

Inland press telegrams are inland telegrams, the text of which is made up of information and news intended for

(i)

publication in newspapers and other periodical publications, the names of which have been registered by Heads of Circles, or

(ii)

Broadcast by the All India Radio :

Provided that such telegrams may contain also instructions, written within brackets at the beginning or end of the text, relating to the publication or broadcasting of the telegrams not exceeding in length 10 words or 5 percent of the total number of chargeable words in the telegram, whichever is less.

(b)

Such telegrams shall be addressed by means of the registered titles or abbreviated telegraphic addresses and towns of registration of the authorised recipients.

(2)

The following shall also be considered as inland press telegrams.

(a)

an inland telegram from or to newspaper of news agency by its registered title (but not by the name or designation of a person connected with its publication or management) to or from any of its correspondents or employees by name or designation or both, on the subject of a press telegram actually received from or despatched by, such correspondent or employee;

(b)

an inland telegram on any matter of press business from a newspaper or news agency by its registered title only to an officer of the Telegraph Department;

(c)

an inland telegram containing news from a registered news agency by its registered title only to an officer of the Central or a State Government duly authorised, in this behalf, by the Central Government;

(d)

an inland telegram containing a summary for public information of the reports received from weather observation stations to any person from any officer of the Indian Meteorological Department;

(e)

an inland telegram containing intelligence for broadcasting from a registered news agency, or from an officer of the All India Radio to another such officer authorised in this behalf by the Central Government;

(f)

press communique to and from the Publicity Departments of the State and Central Government;

(g)

an inland telegram containing intelligence from registered news agencies or duly authorised correspondents to the press service of any Diplomatic Mission; and

(h)

an inland telegram containing intelligence for publicity or broadcasting from officers authorised in this behalf by the Central Government to the Ministry of External Affairs, XP Division.

132.

For the receipt only of inland press telegrams each authorised entity may have on abbreviated address registered free of charge.

133.

Subject to the exception and conditions contained in rules 134, 135 and 136 such telegrams shall be accepted for transmission at the special press rates shown below namely :-

Class

For any number of

words not exceeding fifty, excluding the address

For each

additional five words after the first fifty words

Rs.

P.

Rs.

P.

Express

1.50

0.20

Ordinary

0.75

0.10

134.

The special press rates prescribed under rule 133, shall not apply to telegrams for transmission from or to licensed telegraph offices or through an intermediate licensed telegraph office :

Provided that railways telegraph offices may, subject to the requirements of Railway business, accept press telegrams for transmission at press rates within the limits of their respective Railways.

135.

The admission of inland press telegrams for transmission at the special press rates prescribed under rule 133 shall be subject to the fulfilment, by the news agency concerned and by its correspondents and employees, of the following conditions.

(1)

A news agency shall, in registration, and annually thereafter, submit to the Head of the Circle concerned, a list of its bona fide subscribers to whom it issues news.

Note. - Form of application for registration may be obtained at any Government Telegraph Office.

(2)

A copy of every newspaper in which a press telegram is published shall on demand, be furnished to the telegraph office by which such press telegram was delivered.

136.

Inland press telegram for transmission at press rates shall conform to the following conditions.

(1)

Such telegrams shall be written in plain language in Roman or Devanagiri script; but ordinary words so written may be abbreviated. Telegrams in any Indian languages prevalent in the place of origin or of destination shall also be accepted provided they are written in Roman or Devanagiri script.

(2)

Long telegrams shall be divided into pages of about 200 words each; such pages shall be numbered consecutively and each of them, except the last, shall conclude with the service indication "MTF" [rule 18 (d)]: the last page shall conclude with the service indication "End of message". The name of the sender shall be written at the top of each page, and the last word of each shall be repeated at the top of the next page.

(3)

The interval between the handing in the different pages of one and the same telegram shall not exceed one hour. When this interval is exceeded, the first page handed in thereafter shall be treated as commencing a fresh telegram.

(4)

When possible, previous notice shall be given at the telegraph office concerned, of an intention of send a press telegram of greater length than 1,000 words. Such notice shall contain the following particulars.

(a)

probable time at which telegram will be handed in;

(b)

probable length of telegram; and

(c)

addresses to which telegram is to be sent.

(5)

in the case of press telegrams addressed to more than newspaper of news agency, the full list of addresses shall be required to be furnished with the first page only.

137.

In inland telegrams accepted for transmission at press rates the address, the sender's name and all full-stops shall be transmitted free of charge. The transmission of signs of punctuation other than full-stops shall be governed by ordinary rules.

Multiple Press Telegrams

138.

(1)

The charge for an inland press telegram addressed to several persons in a locality served by one and the same telegraph office, or by different telegraph offices within the free delivery radius of a Central Telegraph Office, or to the same person at several addresses in the same locality, shall be the charge for a single inland press telegram of the same class and length, together with, for each address after the first, a copying fee calculated at the rate of 40 paise for any number of chargeable words not exceeding 100 and 10 paise for each additional 20 chargeable words or part thereof.

(2)

For inland press telegrams to several addresses within India served by different telegraph offices not within the free delivery radius of a Central Telegraph Office, the charges will be :

(i)

for the first address in the first telegraph office : as for a single inland press telegram under Rule 133;

(ii)

for the first address in each of the second and the subsequent telegraph offices : three-fourth of the charges in (i) above; and

(iii)

for each address after the first in all telegraph offices : copying fee at the rate given in sub-rule (1).

Flash Press Telegrams

139.

(a)

Flash press telegram means an inland press telegram with a higher priority over 'express' private telegram and limited to a maximum of 100 words excluding the name of the sender and the address of the telegram. The number of such messages shall be restricted to four per correspondent per day.

(b)

The class prefix for such telegrams shall be "FXO" for prepaid telegrams and "BGFXO" for bearing message.

(c)

The indicator "Flash" shall be written by the sender before the address and shall be transmitted free.

(d)

The charge for such telegrams shall be the same as for inland 'express' private telegrams.

140.

Press Telegrams accepted without prepayment.

(1)

Inland press telegrams may be accepted without prepayment in cases in which the newspaper or news agency concerned has obtained previous sanction from the Head of the Circle or District concerned and has deposited in cash or in Government promissory notes or in Post Office cash certificates or National Savings Certificate or has furnished a letter of guarantee in the form set out in rule 68 from a bank approved by the Director-General in this behalf as security of, a sum of money calculated as below:

(a)

If the accounts are to be rendered monthly:- The equivalent, of eight weeks' transactions subject to a minimum of Rs. 50

(b)

If the accounts are to be rendered fortnightly:- The equivalent of six weeks, transactions subject to a minimum of Rs. 50.

(2)

If at any time the amount of transactions exceeds the deposit, a proportionate increase in the deposit may be demanded from the newspaper or news agency concerned.

(3)

A fee for the upkeep of such accounts shall be levied by the Telegraph Check Office at the rate of three per cent on the amount of such accounts.

(4)

Accounts for such telegram and fees shall be rendered monthly or fortnightly, as the case may be, by the Officer in-Charge of the Telegraph Check Office, Calcutta, and shall be paid within one week of the date on which they are

received.

140A.

Inland Press Telegrams may be accepted without prepayment and without any security deposit or guarantee from the officers of the State Government in the Department without any dealing with the work relating to information and publicity (hereinafter referred to as the said Department) on the condition that :

(i)

the offices are duly authorised by the said Department;

(ii)

the telegrams are addressed to addressees approved for the purpose by the said Department (by a general or special order).

(iii)

all the charges due on such telegrams, including the fees for the upkeep of accounts at the rates prescribed in rule 140(3) shall be paid by the said Department on receipt of the bill.

141.

[Deleted]

142.

If a telegram which has been transmitted at press rates is subsequently found not to comply with the conditions prescribed by the rules for the acceptance of telegrams at press rates, a sum equal to the difference between the charge for such telegram at press rates and the charge at the full rate shall be demanded by the telegraph office concerned from the sender or receiver, as the case may be, who shall immediately pay the same.

State Telegrams

143.

Classification and order of priority for State telegrams.

(1)

The following classification indicates in descending order the priority which regulates the disposal of State telegrams:

(i)

SVH.

(ii)

Most Immediate and Operations Immediate;

(iii)

Immediate.

(2)

Offices empowered to send State telegrams authorised in this behalf by the Director-General, may use these priority indications and obtain for their telegrams precedence over all telegrams of a lower indication awaiting disposal. Telegrams in the course of transmission shall not be interrupted except to prevent delay in disposal of telegrams classed "Immediate" or higher priority.

(3)

These indications shall be written immediately before the address of the telegram and will be transmitted free.

(4)

Telegrams bearing the same priority indication shall be disposed of in the order in which they are booked.

(5)

The priority indications mentioned in sub-rule (1) shall operate in respect of telegrams to Sri Lanka and Nepal and in respect of foreign telegrams whilst within Indian limit.

144.

Charges. Most Immediate, Operations Immediate, Immediate, and the Weather Immediate inland telegrams shall be charged at double the rate for Express telegrams.

"SVH" telegrams shall be charged at the rates for ordinary telegrams, Express and ordinary State telegrams shall be charged at the rates fixed for private telegrams of the same class (rule 60).

Telegrams Relating To The Safety Of Human Life

145.

Telegrams relating to the safety of human life in maritime or aerial navigation shall bear the service instruction 'SVH'

written by the sender or the office of origin, and telegrams so written shall be given priority in transmission above "Most Immediate" priority telegrams. Such telegrams shall be delivered to the addressee at once by the office of delivery. Every office which receives a telegram of this category classed either as a State telegram, or a service telegram, or a Meteorological telegram, shall handle it with top most priority at all stages.

Persons Entitled To Send State Telegrams

146.

The following persons shall be entitled to send Inland State Telegrams subject to the conditions noted against each:

(1)

All persons in the service of the Government (except those who are on leave), provided that the telegrams sent by them relate solely to the business of Government.

(2)

The diplomatic or consular agents provided that such telegrams solely relate to official matters.

(3)

Any person in the employment of a semi-Government organisation, public undertaking or an autonomous body and specially authorised in this behalf by the Central Government or State Government provided the telegrams so sent relate to official business only.

147.

Language.

- Inland State telegrams may in all cases be expressed in secret language (eg. Code or Cipher or both) (rule 23), but a combination in the same telegram of figures and letters, having a secret meaning, shall not be permitted.

148.

Service indication and payment.

(1)

Inland State telegrams other than Weather telegrams sent on behalf of the Meteorological Department, shall have the service indication "State" inserted by the sender.

(2)

Inland State telegrams may be paid for prior to despatch in cash. In case the telegrams are tendered without pre payment, same shall be treated to have been booked under the credit accounts system whether or not the State parties apply for opening such account. All recoveries under the credit account system shall be made in accordance with the provisions of rule 149.

149.

State Telegrams without Prepayment.

- Inland State telegrams may be accepted without prepayment at all Government Telegraph Offices, from any Government official, on the conditions that settlement of all charges due on such telegrams shall be made monthly, within a period of three weeks from the date of presentation of the bill, in cash or by crossed cheques drawn in favour of the In charge of the telegraph office at which the telegrams were booked, and that an additional fee for the maintenance of the account of charges due shall be paid at the rate of rupees five for every batch of twenty telegrams or part thereof despatched under credit account system. The accounts in respect of Inland State telegrams sent on behalf of the Meteorological Department shall be settled by the Deputy Accountant General, Telegraph Check Office, Calcutta, in accordance with the current rules on the subject.

150.

At Railway Telegraph Offices.

- Except in cases of emergency, State telegrams shall not be accepted at railway telegraph offices at places where there is also a Government telegraph office.

151.

Abbreviated Addresses.

- The abbreviated addresses of Government officials shall be registered on payment of fees prescribed in rule 40 without any restriction as to the number of words or letters used. A single fee shall be charged for the registration of an abbreviated address of a touring Government official which has to be registered at more than one telegraph office irrespective of the number of offices at which the registration is required.

Service Telegrams And Service Advices

152.

"Service Telegram" means-

(a)

a telegram sent free on the service of the Government Department of Posts and Telegraph; or

(b)

a telegram sent free on the service of certain foreign Governments notified by the Central Government.

153.

"Service Advice" means a telegraphic communication between one telegraph office and another in respect of a telegram already transmitted or in course of transmission between such offices.

154.

During the period of preservation of records in telegraph offices (rule 164) the sender or the addressee of any inland telegram already transmitted or in course of transmission, or the authorised representative of either of them may, if their identity and in the case of agents, their authority, is satisfactorily established, have information obtained or instructions given by telegraph about such telegram. Such person shall deposit the cost of the telegram conveying the request and of reply telegram if one is needed, such telegram and reply being classed Express or Ordinary at the sender's option :

Provided that, when the addressee asks for repetition of a telegram received by him, he shall pay the charge for the transmission of a telegram (Express or Ordinary at his option) to cover the cost of the number of words to be repeated and no further charge shall be made for a reply :

Provided further, that what a Government official asks for the repetition of a telegram received by him in his official capacity, he shall not be required to repay the charge for transmission referred to in this rule but if no error of the telegraph services is revealed by the repetition, he shall be required to pay such charge.

155.

A telegram sent at the request of the addressee, in order to obtain the repetition of a passage suspected to be erroneous, shall be deemed always to imply a telegraphic reply of the same class as the telegram making the request, and the insertion of the instruction "Reply Paid" shall not be necessary. In other cases in which a telegraphic reply is desired the instruction "Reply Paid" shall be inserted in the telegram covering the request.

156.

The rectification or cancellation of telegrams, and all other communications addressed to a telegraph office in respect of telegrams already transmitted or in course of transmission, shall be effected solely by means of service advices at the expense of the person making the demand. For cancellation of telegram already transmitted or in course of transmission, a fee of 50 paise shall be charged in addition to the paid service advice (rule 81).

157.

The charges paid. for service advices necessitated by errors of the Telegraph Service shall be refunded upon application made in accordance with the provisions of rule 162.

158.

When the words of which repetition is requested are indistinctly written, the office of origin shall, before giving a repetition, make inquiry of the sender or, if the sender cannot be found, shall add to the repetition a note "Writing doubtful".

159.

When the repetition relates to a telegram which has reached a telegraph office of origin from the sender by telephone or by a private telegraph wire, that office may, before giving a repetition, ask the sender to repeat the words in question. In such case, if one or more of the words thus repeated are not the same as the words in the telegram, the telegraph office shall give the desired repetition as corrected by the sender, but may add to the text of the service advice "not service fault" and the charge for repetition shall not in such case be refunded.

Refunds

160.

(1)

Refunds in respect of charges paid on Inland State, or private telegrams shall, in the cases and to extent mentioned below and upon application or complaint made in accordance with the provisions of rule 162, be payable to the person by whom such charge was originally paid, namely:

(a)

A refund of the full charge paid for every telegram which, through the default of the Telegraph Service, has failed to reach its destination.

(b)

[A refund of the full charge paid for every telegram which, through the fault of the Telegraph Service, has been subjected to more than thirty-six hours and eighteen hours delay in the case of ordinary telegram and Express telegram respectively :

[Substituted by G.S.R. 80, dated 22.1.1993]

Provided that in case the destination office of the telegram is closed when the stipulated period ends or is due to be closed within an hour of the receipt of the message there, the same may be delivered to the addressee within three hours of the reopening thereof.]

(c)

[Deleted]

(d)

A refund of the full amount of every sum prepaid for a reply (rule 94) when the addressee has not made use of the reply telegram form or has refused it (rule 98), or, if the reply telegram form has been used a refund of the difference, provided such difference be not less than 50 paise, between the sum prepaid for the reply telegram and the sum chargeable for the telegram actually sent on the reply form (rule 96).

(e)

A refund of the full amount of every sum prepaid for a reply to a telegram which has not been delivered (rule 99).

(f)

A refund to the full charge paid for every telegram with prepaid reply which has obviously not been able to fulfil its object owing to a service irregularity which justifies the repayment of the charges for the reply:

(g)

A refund of the full charge paid for every prepaid reply which has obviously not been able to fulfil its object owing to a service irregularity which justifies the repayment of the charges for the original telegram.

(h)

A refund of the special charges for any special service which has not been performed.

(i)

Save as provided by rule 159 a refund of the full charge paid for every paid service advice sent under rule 154 if the repetition shows that the word or words repeated were originally transmitted incorrectly.

(j)

A refund of the full charge for every paid service sent under rules 154-157 and necessitated by an error of the Telegraph Service.

(k)

[Deleted]

(l)

A refund of the charge paid for a telegram cancelled before transmission less a fee of Rupees two (rule 81).

(2)

[Notwithstanding the provisions of sub-rule (1), in the case of XS, OS and XX category of telegrams, a refund of full charge less fifty paise shall be payable, without any application or complaint on each telegram booked and meant for delivery within India, if the same reaches the office of destination after the expiry of more than twenty-four hours in the case of an express telegram and forty-eight hours in the case of an ordinary telegram, of the time of booking;

Provided that no refund shall be payable under this sub-rule in case.

(1)

the office of origin had informed the sender at the time of booking the telegram, that the telegram is likely to be delayed.

(2)

the delay is due to natural calamities such as floods and other similar contingencies.]

161.

In case of a partial refund in respect of an inland multiple telegram (rule 114), the charge paid for each copy shall be deemed to be the quotient obtained by dividing by the number of addresses the total charge paid for the multiple telegram.

162.

(1)

Complaints respecting Indian Telegrams and claims for refund of charges paid thereon shall be made either to the Officer-in-charge of the telegraph office where the telegram was booked or to the Officer-in-charge of the telegraph office of delivery within thirty days from the date of booking of the telegram.

(2)

Every such claim for complaint shall be accompanied by documentary evidence of the nature specified below namely :

(a)

in case of non-delivery [* * *]

[The word "or the delay" omitted by G.S.R. 358(E), dated 15.3.1989]

the receipt (rule 67) granted for telegram and a written statement from the addressee;

(b)

in case of ['delay']

[Inserted by G.S.R. 358(E), dated 15.3.1989]

, alteration or omission, the copy of the telegram delivered to the addressee.

(c)

in case of an unused reply telegram form (rule 98), the reply telegram form delivered to the addressee;

(d)

in case of paid service advices (rule 15), the receipt for the repetition message and the correction memorandum granted in connection therewith by the telegraph office of delivery;

(e)

in case of delay due to posting [Sub-rule (2) of rule 160], the receipt (rule 67) and the refund certificate (MR-54) issued by the telegraph office of delivery; and

(f)

in all other cases, the receipt (rule 67) granted the telegram.

(3)

[* * *]

[Omitted by G.S.R. 982, dated 19.10.1985]

163.

State or private.

- When no doubt exists that an over-charge has been made on an inland State or Private telegram by the mistake of an official at any telegraph office, the over-charge shall be at once refunded by such office.

164.

Period of preservation.

- The originals of Inland Telegrams and all documents relating to them, shall be retained and. preserved as follows :-

(A)

A' message drafts of inland telegrams booked at the Combined Offices, other than those referred to in (c), (d) and (e) shall be retained in the concerned telegraph offices of origin for a period of two months and shall, thereafter, be sent to the Telegraph Check Office, where with the exception of 'A' message draft referred to in Cl. (b), they may be destroyed, if no longer required for any specific purpose.

A' message drafts of the inland telegrams booked at the Central Telegraph Offices/Departmental Telegraph Offices other than those referred to in Cl. (b) (i) (c) and (d) shall be preserved in the concerned telegraph offices of origin for the periods specified below and then destroyed, if no longer required for any specific purpose, namely:

(1)

A' message drafts of inland telegrams excepting Telegraph Money Order advices shall be preserved for three months from the date of booking.

[(1-'A') A message draft of Fax telegram shall be preserved for three months from the date of booking"]

[Inserted by G.S.R. 349, dated 13.7.1995]

(2)

'A' message drafts of Telegraph Money Order advices shall be preserved for six months reckoned from the beginning of the month following that in which the telegrams were booked.

(B)

(i)

'A' message drafts of frontier telegraph offices relating to Indo-Sri Lanka, Indo-Pakistan, Indo-Bangladesh and Indo-Nepal messages after receipt in Telegraph Check Office shall be preserved for a period of 6 months reckoned from the beginning of the month following that in which the telegrams were booked and may then be destroyed, if no longer required for any specific purpose.

(ii)

'A' message drafts of telegraph money order advice of Combined offices shall, after receipt in Telegraph Check Office, be preserved for a period of 6 months reckoned from the beginning of the month following that in which the telegrams were booked, and may then be destroyed, if no longer required for any specific purpose.

(C)

'A' message drafts of the following classes of telegrams shall be retained in the concerned telegraph office for a period specified below against each class of telegrams and shall then be sent to the Telegraph Check Office where they shall be preserved for a period of two months from the date of booking, and may, thereafter, be destroyed, if no longer required for any specific purpose.

Classes of

Telegrams

Period of

retention in Telegraph Offices

(i) Bearing press

messages

One week.

(ii) Mobilisation

messages

Till the 15th of the month following the month of booking.

(iii)

Interchanged Railway messages

One month.

(D)

'A' message drafts booked by the Meteorological Department during the period from 8th to 14th in the months of January and July shall be sent to the Telegraph Check Office in the first week of the month following that in which the telegrams were booked, in a separate bundle superscribed "Inland Weather Messages and statement ofTelegraph Office for the month of....." In no case telegrams are booked during the aforesaid period of January or July, the 'A' message drafts of telegrams booked during the period from 15th to 21st of January or July, as the case may be, or failing that too, all the telegrams booked during these months, shall be sent to the Telegraph Check Office in the month following that in which the telegrams were booked.

(E)

'A' message drafts booked by the Meteorological Department on other days shall not be sent to the Telegraph Check Office but shall be preserved in the concerned telegraph office for a period of two months from the date of booking and may thereafter be destroyed, if not required for any specific purpose.

(F)

'B' and 'C' message drafts, other than those by Indo-Sri Lanka and Indo-Nepal telegrams received by frontier telegraph offices and telegraph money order advices, shall be retained in the concerned telegraph offices for a period of two months and may thereafter be destroyed, if not required for any specific purpose.

(G)

'B' and 'C' message drafts of frontier telegraph offices relating to Indo-Sri Lanka and Indo-Nepal telegrams shall be retained in the concerned telegraph offices for a period of two months and shall thereafter be sent to the Telegraph Check Office, Calcutta, where they shall be preserved for a period of six months reckoned from the beginning of the month following that in which the telegrams were booked and may then be destroyed, if not required for any specific purpose.

(H)

'B' and 'C' message drafts of telegraph money order advices shall be preserved in the concerned telegraph offices for a period of six months reckoned from the beginning of the month following that in which they were booked and may then be destroyed, if not required for any specific purpose.

Explanation. - In this rule and in rule 380-

(i)

'A' message draft means the original telegram booked by the sender at the telegraph office of origin;

(ii)

'B' message draft means the telegram received at a telegraph office from another telegraph office for the purpose of retransmission; and

(iii)

'C' message draft means the telegram received at the telegraph office of delivery.

165.

Inspection of Telegrams.

- Originals or copies of telegrams may be shown to the sender or addressee or authorised representative of either of them on proof, if required of the identity of such person, provided the request for inspection is made within the prescribed period of preservation. A charge of rupees five shall be made for such inspection.

166.

Copies.

- The sender or addressee of an inland telegram or authorised representative of either of them may, on application made to the telegraph office concerned within forty-five days from the date of booking of the telegram, be furnished with certified copies of photographs-

(a)

of the telegram originally booked for transmission, or

(b)

of the copy delivered, if a duplicate of it has been retained.

167.

The charge for every copy furnished in conformity with rule 166 shall be rupees three for any number of words not exceeding 100 and rupees two for each additional 100 words or part thereof. The charges for photographs of original or of copies shall be rupees thirty for each page of a size of an inland telegram form.

168.

Every application for a copy shall contain such particulars as may be necessary for tracing the telegram to which the application relates.

169.

Extended preservation.

(1)

On the ground of pending or contemplated judicial proceedings, application may, within the period prescribed for the preservation of telegrams, be made by an interested party to the Officer-in-charge of the telegraph office where the telegram in question was booked or from which delivered, as the case may be, for further preservation of any specified inland telegram.

(2)

On receipt of an application under sub-rule (1), such telegrams shall not be forwarded to the Telegram Check Office or destroyed, as the case may be as required under rule 164, but shall be preserved in the telegraph office concerned for a further period of three months.

(3)

At the expiration of the extended period the telegram shall, in default of another application, be disposed of as per normal rules.

(4)

The duty of the Telegraph Department shall be confined to making the search and preserving the telegram, if found and no information as to the result of the search shall be furnished, nor shall any telegram preserved under this rule be produced except on the order of a Court of Law or other competent authority.

170.

Fees for searching for Telegrams.

- Should the particulars furnished be insufficient to enable the telegraph office concerned at once to trace a telegram which is the subject of an application under rule 166 or rule 169, search shall be undertaken only upon payment of the fee prescribed below, namely.

(a)

For searching either the sent or the received telegrams of one telegraph office for one day is Rs. 10.00.

(b)

For searching both the sent and the received telegrams of one telegraph office for one day is Rs. 15.00.

Part III ? Rules For Foreign Telegrams

(Rules 171 to 387 Deleted)

Part IV ? Rules For Radio Telegrams

Definition

388.

"Radio-Telegram" means any telegram exchanged with a ship at sea through the medium of a coast station or with an aircraft through the medium of an aeronautical station specified for such purpose in the Telegraph Guide Vol. I.

Duration Of Service

389.

The service at coast stations and aeronautical stations in India shall be in accordance with the hours notified for such stations in the Telegraph Guide, Vol. I.

Form And Acceptance Of Radio Telegrams

390.

The form and acceptance of radio telegrams shall be governed by the rules for foreign telegrams contained in Part III of these rules.

Special Rules For Radio Telegrams

391.

The sender shall in every case be responsible for the sufficiency and accuracy of the address.

392.

The address of a radio-telegram intended for a ship or an aircraft shall be drawn up as follows :

(a)

name or designation of the addressee, with supplementary particulars if necessary;

(b)

name of the ship or call-sign of the aircraft as it appears in the appropriate international list of stations, and

(c)

name of the Coast station or aeronautical station as it appears in the appropriate international list of stations.

Note. - The following are the international lists of stations mentioned in clauses (b) and (c) (1) list of Coasts stations and Ship stations; and

(2)

list of Aeronautical stations and Aircraft stations.

393.

If desired, the name of the ship, and the call-sign of the aircraft may, at the risk of the sender, be replaced by the particulars of its voyage.

394.

The name and permanent address of the sender of a radio telegram shall be written on the message form at the office of the origin for purpose of record.

Preamble

395.

On transmission a radio-telegram from a ship or an aircraft over the ordinary telegraph system, the coast station or aeronautical station shall insert for "office of origin" the name of the ship or aircraft of origin as it appears in the appropriate international list and also the name of the last ship or aircraft which acted as intermediary (should any retransmission have occurred) and the name of the coast station or aeronautical station. The code time (i.e. the time of receipt of the radio-telegram at the coast station or aeronautical station) shall also be inserted, and this, together with

the service instructions, the date and time of handing-in and the number of words signalled by the ship or aircraft, shall be transmitted to destination.

Charges For Radio Telegrams

396.

The charge for a radio-telegram shall be prepaid by the sender with the exception of :

(a)

express charges to be collected from the addressee on delivery (rule 303);

(b)

the charges applicable to inadmissible combinations or alterations of words (rule 219) observed by the telegraph office or the ship of destination to be collected from the addressee. The minimum charge for a radio telegram shall be as for seven words.

397.

The coast station charge, aeronautical station charge, ship charge and aircraft charge are notified in gold francs in the appropriate international lists, and such charges as are fixed from time to time, so far as India is concerned, shall be published in the Telegraph Guide Vol.,

398.

In the case of meteorological radio telegrams sent to or received from Ships at Sea containing exclusively meteorological observations or meteorological forecasts, both the coast station charge and the charge for inland transmission shall be reduced by one half. Such radio-telegrams shall commence with the paid service indication "OBS".

Class Of Telegrams Not Admitted As Radio Telegrams

399.

The following classes of telegrams which are admitted in the general telecommunication system, shall not be accepted as radio telegrams:

(a)

Telegraphic money orders;

(b)

Telegrams "to follow the addressee";

(c)

Paid service telegrams asking for a reply by post or for repetition or information, except as regards transmission over the ordinary telegraph system;

(d)

Urgent telegrams, except as regards transmission over the telegraph systems of those Administrations which accept such telegrams;

(e)

Greeting telegrams;

(f)

Telegrams without text;

(g)

Press telegrams;

(h)

Collated radio-telegrams;

(i)

Radio telegrams to be delivered to the addressee in person; and

(j)

Radio-telegrams to be delivered in an open cover.

Order Of Transmission

400.

Radio telegrams shall be transmitted in the following order:-

(a)

Telegrams relating to safety of human life at sea or in the air.

(b)

Telegrams relating to the navigation and safe movement of aircraft.

(c)

Navigational and meteorological telegrams.

(d)

Government telegrams; Priority Nations.

(e)

State (Government) telegrams for which priority has been requested by the sender.

(f)

Service telegrams and other service advices.

(g)

State (Government) telegrams for which sender has not requested priority in transmission and private telegrams.

401.

Subject to the provisions of rule 400 radio telegram shall be transmitted in the order in which they are received.

Undelivered Radio Telegrams From Ships Or Aircraft

402.

When a radio telegram from a ship at sea or an aircraft in flight cannot be delivered to the addressee on land, the fact, if possible, with the reason assigned for the non-delivery shall be communicated to the ship or aircraft for the information of the sender. This information shall be transmitted through the original coast station or aeronautical station or another coast station or aeronautical station of the same Administration. A sender desiring to alter or add to an address can only do so by means of a paid service advice.

Undelivered Radio Telegrams Addressed To Ships Or Aircraft

403.

When a radio telegram reaching a ship at sea or an aircraft in flight cannot be delivered, the office of origin shall be informed by service advice.

404.

The sender of a radio-telegram to a ship or an aircraft may indicate the maximum period not exceeding ten days excluding the day of handing in of the radio-telegram, for which he desires the radio telegram, -to be kept at coast station. If the ship or aircraft does not communicate with the coast station or aeronautical station within that period, the coast station or aeronautical station shall inform the office of origin accordingly, for intimation to the sender. The sender may then request the coast station by means of a paid service advice, telegraphic or postal, either that his radio telegram be cancelled as regards the section between the coast station and the ship station or retained for a further period of not more than seven days. If not after request is received the radio-telegram shall be treated as undelivered three days the despatch of the advice of non-transmission. The office of origin shall immediately be advised if the coast station subsequently transmits the radio telegram during those three days. If the radio-telegram is by request retained for a further period of seven days and is disposed of within that period, the same procedure should be followed.

405.

If the sender does not specify any period, the coast station or aeronautical station shall inform the office of origin by service advice on the morning of the fourth day after the date of handing-in that it has not been possible to deliver the radio telegram to the ship or aircraft. The office of origin shall inform the sender, who may then request by means of a paid service advice, telegraphic or postal, to the coast station or aeronautical station (the prepayment being at the rate for a telegram to the coast station or aeronautical station only) that the radio telegram may be cancelled as regards the section between the coast station and the ship station or retained until the end of the tenth day, counting from the date of handing-in. If no such request is received, the radio telegram shall be treated as undelivered at the end of the seventh day not including the day of handing-in. The coast station shall immediately advise the office of origin. If the radio telegram is transmitted to the ship between the fourth and seventh days from the day of handing-in. Similar advice shall be given when the coast station transmits the radio telegram during the period of retention which may be requested by the sender. The expiration of any of these period shall be ignored if the coast station or aeronautical station is certain that the ship or aircraft will soon come within range.

406.

Alternatively, the radio-telegram may be forwarded to another coast station or aeronautical station of the same Administration which is presumed to be in communication with the ship or aircraft, provided that no additional charge

results.

407.

If the coast stations or aeronautical station knows that the ship or aircraft has passed beyond its range of transmission and beyond the range of transmission of any other coast station or aeronautical station of the same Administration before the radio telegram could be transmitted to the ship or aircraft, the office of origin shall be informed accordingly by service advice without delay for intimation to the sender.

408.

When a radio-telegram cannot be transmitted to a ship or an aircraft owing to the arrival of the ship or aircraft airport near the-coast station or aeronautical station, the latter may, if necessary, forward the radio telegram to the ship or aircraft by other means of communication.

Refund

409.

Refund shall be governed by rules 370 to 379 in Part III of the these rules subject to the following conditions:

(a)

No refund shall be granted in-respect of any radio telegram in admissible under rule 399.

(b)

The time occupied in radio telegraphic transmission, and also the time during which the radio telegram remains at the coast station or aeronautical station, in the case of radio telegram from a ship or an aircraft, shall not be counted in the period of delay rise to refunds and reimbursements.

(c)

If the coast station or aeronautical station informs the office of origin that a radio-telegram cannot be transmitted to the ship or aircraft to which it is addressed, the coast station charge or aeronautical station charge and ship charge or aircraft charge in respect of such radio telegram shall be refunded to the sender without application.

Preservation Of Records

410.

The originals of radio-telegrams and the documents relating to them shall be kept for seven days only in Central Government telegraph offices and radio telegraph stations, after which they shall be sent to the Officer-in-charge, Telegraph Check Office, Calcutta, where they shall be preserved for at least fifteen months, reckoned from the month following that of handing-in. In the case of undelivered radio-telegrams the period shall be forty-two days instead of seven days.

Part V ? Rules For Telephones

General

411.

Types of installations.

- Telephone connections shall be classified under the following headings namely:-

(1)

Departmental exchange installations:-

(a)

Direct exchange line connection.

(b)

Extensions.

(c)

Party line connections.

2. Private exchange installations.

(a)

Direct connection.

(b)

Extensions.

(c)

Party line connections.

3. Private Branch Exchange:-

(a)

Direct connection.

(b)

Extensions,

(c)

Party line connections.

4. Junction lines at private wire junctions.

5. Private wire installation.

6. Trunk Telephone line.

412.

[Supply and maintenance of equipment.

[Substituted by G.S.R. 516(E), dated 23.6.1995]

(1)

Save as otherwise provided in sub-rule (2), the Divisional Engineer, Telegraphs, shall install and subject to the observance of these rules by the subscriber, maintain in good working order the equipment and apparatus provided by the Department and when necessary, substituted different apparatus with all reasonable despatch.

(2)

The Telegraph Authority may, from time to time [by giving wide publicity through public notice in print media]

[Substituted by G.S.R. 606, dated 14.7.1988]

specify any part or area of the country where the subscriber or class of subscriber shall be required to provide, install and maintain his own telephone apparatus and internal wiring of the standard, as may be specified by the Telegraph Authority from time to time, from the point of interface device provided by the Authority near the entry point to the premises of the person to whom a telephone service has been sanctioned :

Provided that for the purpose of sub-rule (2), the provisions of rules 425, 426, 431, 432 and 433 shall apply up to the point of interface device.

(3)

For the purpose of sub-rules (1) and (2) officials and workmen of the Indian Post and Telegraph Department shall be entitled after notice to the occupiers of the premises to enter the subscriber's premises at all reasonable times for the inspection of the installation and equipment.]

Telephone Connections And Other Services

413.

All services subject to rules.

- All telephone connections and other similar services provided or authorised by the Department shall, unless governed by a separate contract, be subject to the conditions set forth in these rules.

414.

Applications for connections.

(1)

Applications for the provision of telephone and other similar service or for alteration to any existing service shall be made in writing and in such form and manner as may from time to time be prescribed by the Telegraph Authority.

(2)

The charge for the application form for providing a new telephone connection shall be ten rupees.

415.

Withdrawal of application for new connection or shift.

- Any person who has made an application under rule 414 may, at any time before the service is provided and on payment of the actual expenses incurred up to that date which shall be fixed by the Divisional Engineer, withdraw his application.

416.

Powers of Telegraph Authority.

(1)

The Telegraph Authority may reject any application for the connection of new telephone or for providing any similar service or for the alteration of any existing service.

(2)

Before rejecting any application under sub-rule (1), the Telegraph Authority shall have due regard to the following factors, namely:-

(a)

the antecedents of the applicant and where the application was made by any person duly authorized by the applicant, the antecedents of such person;

(b)

whether there are any telephones dues outstanding in the names of -

(i)

the applicant; or

(ii)

the person duly authorised by the applicant, if the application was made by such authorised person on behalf of the applicant;

[Refusal of new Telephone connection to the near closed relation of Defaulter Telephone Subscriber-]

[Inserted by G.S.R. 783(E), dated 11.10.2000]

(iii)

a new telephone connection or telex connection may be refused to any relative or an associate living on, or working from, the same premises as that a defaulting telephone subscriber and the new connection may, however, be released to the applicant if the defaulting subscriber pays the outstanding dues along with penalty; as may be prescribed by the Telegraph Authority.

Explanation. - For the purposes of this sub-clause-

(A)

the term "relative" includes husband, wife and blood relations, for example, parents, brother, sister, son or daughter (including step son, step daughter, in-laws, members of the Hindu Undivided Family, son or daughter of a predeceased son, daughter-in-law, son-in-law, brother's wife, sister's husband, etc.

(B)

the term "associate" includes partners, directors, proprietors of a company, firm, society, association, etc.

(c)

whether any Gazetted Officer of the Central Government or a State Government duly authorised by such Government, has recommended to the Telegraph Authority that in the interests of the maintenance of law and order any telephone or any service as is referred to in sub-rule (1), should not be provided to the applicant, or, as the case may be, to the person duly authorised by the applicant; and

(d)

any other relevant factor.

(3)

No action shall be taken under sub-rule (1), unless notice of not less than seven days has been given in writing to the person concerned and the Telegraph Authority has considered the representation, if any, made by such person in the matter.

416A.

Special Powers of Telegraph Authority.

(1)

Notwithstanding anything contained in rule 416 where the Telegraph Authority is satisfied that any person is engaged, in any smuggling activity or is acting in violation of any law relating to the conservation of the foreign exchange resources of the country or is acting prejudicially to the public safety and interest or the Defence of India, Civil Defence or Internal Security, the Telegraphy Authority shall-

(a)

where such person is an applicant, refuses to grant any telephone connection or any similar service or to provide any alteration of any existing service; and

(b)

where such person is a subscriber, withdraws, either totally or partially, any telephone or similar service provided under these rules :

Provided that the Telegraph Authority shall not take any action under this sub-rule unless he has recorded in writing the reasons for doing so:

Provided further that the Telegraph Authority shall, within seven days take action under this sub-rule, inform in writing the person concerned of the action taken, together with reasons therefore.

(2)

Any person aggrieved by an action of the Telegraph Authority under sub-rule (1) may, within a period of thirty days of the receipt of the information, represent to the Telegraph Authority and the said Authority shall, after giving the applicant reasonable opportunity of being heard, make such orders thereon as it thinks fit.

417.

Temporary connections.

- The Telegraph Authority may provide temporary connections for such periods and on such conditions as it may prescribe.

418.

Change of telephone number and exchange.

- The Telegraph Authority shall have the right at any time to disconnect any exchange line from the exchange to which it is connected and connect it to any other Departmental Exchange and also to alter the telephone number allotted to the subscriber or the name of the exchange to which it is connected. The Telegraph Authority shall have the right to revise the rental and other charges payable in consequence of the alteration.

419.

Interception or monitoring of telephone messages.

- It shall be lawful for the Telegraph Authority to monitor or intercept a message transmitted through telephone, for the purpose of verification of any violation of these rules or for the maintenance of the equipment.

419A.

[

[Inserted by G.S.R. 193(E), dated 1.3.2007]

(1)

Directions for interception of any message or class of messages under sub-section (2) of Section 5 of the Indian Telegraph Act, 1885 (hereinafter referred to as the said Act) shall not be issued except by an order made by the secretary to the Government of India in the Ministry of Home Affairs in the case of Government of India and the Secretary to the State Government in-charge of the Home Department in the case of a State Government. In unavoidable circumstances, such order may be made by an officer, not below the rank of a Joint Secretary to the Government of India, who has been duly authorized by the Union Home Secretary or the State Home Secretary, as the case may be :-

Provided that in emergent cases-

(i)

in remote areas, where obtaining of prior directions for interception messages or class of messages is not feasible; or

(ii)

for operational reasons, where obtaining of prior directions for interception of messages or class of messages is not feasible;

the required interception of any message or class of messages shall be carried out with the prior approval of the Head or the second senior-most officer of the authorized security i.e. Law Enforcement Agency at the Central Level and the officers authorized in this behalf, not below the rank of Inspector General of Police, at the state level but the concerned competent authority shall be informed of such interceptions by the approving authority within three working days and that such interceptions shall be got confirmed by the concerned competent authority within a period of seven working days, If the confirmation from the competent authority is not received within the stipulated seven days, such interception shall cease and the same message or class of messages shall not be intercepted thereafter without the prior approval of the Union Home Secretary or the State Home Secretary, as the case may be.

(2)

Any order issued by the competent authority under sub-rule (1) shall contain reasons for such direction and a copy of such order shall be forwarded to the concerned Review Committee within a period of seven working days.

(3)

While issuing direction under sub-rule (1) the officer shall consider possibility of acquiring the necessary information by other means and the directions under sub-rule (1) shall be issued only when it is not possible to acquire the information by any other reasonable means.

(4)

The interception directed shall be the interception of any message or class of messages as are sent to or from any person or class of persons or relating to any particular subject whether such message or class of messages are received with one or more addresses, specified in the order, being an address or addresses likely to be used for the transmission of communications from or to one particular person specified or described in the order or one particular set of premises specified or described in the order.

(5)

The directions shall specify the name and designation of the officer or the authority to whom the intercepted message or class of messages is to be disclosed and also specify that the use of intercepted message or class of messages shall be subject to the provisions of sub-section (2) of Section 5 of the said Act.

(6)

The directions for interception shall remain in force, unless revoked earlier, for a period not exceeding sixty days from the date of issue and may be renewed but the same shall not remain in force beyond a total period of one hundred and eighty days.

(7)

The directions for interception issued under sub-rule (1) shall be conveyed to the designated officers of the licensee(s) who have been granted licences under Section 4 of the said Act, in writing by an officer not below the rank of Superintendent of Police or Additional Superintendent of Police or the officer of the equivalent rank.

(8)

The officer authorized to intercept any message or class of messages shall maintain proper records mentioning therein, the intercepted message or class of messages, the particulars of persons whose message has been intercepted, the name and other particulars of the officer or the authority to whom the intercepted message or class of messages has been disclosed, the number of copies of the intercepted message or class of messages made and the mode or the method by which such copies are made, the date of destruction of the copies and the duration within which the directions remain in force.

(9)

All the requisitioning security agencies shall designate one or more nodal officers not below the rank of Superintendent of Police or Additional Superintendent of Police or the officer of the equivalent rank to authenticate and send the requisitions for interception to the designated officers of the concerned service providers to be delivered by an officer not below the rank of Sub-Inspector of Police.

(10)

The service providers shall designate two senior executives of the company in every licensed service area/State/Union Territory as the nodal officers to receive and handle such requisitions for interception.

(11)

The designated nodal officers of the service providers shall issue acknowledgment letters to the concerned security and Law Enforcement Agency within two hours on receipt of intimations for interception.

(12)

The system of designated nodal officers for communicating and receiving the requisitions for interception shall also be followed in emergent cases/unavoidable cases where prior approval of the competent authority has not been obtained.

(13)

The designated nodal officers of the service providers shall forward every fifteen days a list of interception authorizations received by them during the preceding fortnight to the nodal officers of the security and Law Enforcement Agencies for confirmation of the authenticity of such authorizations. The list should include details such as the reference and date of orders of the Union Home Secretary or State Home Secretary, date and time of receipt of such orders and the date and time of implementation of such orders.

(14)

The service providers shall put in place adequate and effective internal checks to ensure that unauthorized interception of message does not take place and extreme secrecy is maintained and utmost care and precaution is taken in the

matter of interception of messages as it affects privacy of citizens and also that this matter is handled only by the designated nodal officers of the company.

(15)

The service providers are responsible for actions of their employees also. In case of established violation of licence conditions pertaining to maintenance of secrecy and confidentiality of information and unauthorized interception of communication, action shall be taken against the service providers as per Sections 20, 20-A, 23 and 24 of the said Act, and this shall include not only fine but also suspension or revocation of their licenses.

(16)

The Central Government and the State Government, as the case may be shall constitute a Review Committee. The Review Committee to be constituted by the Central Government shall consists of the following namely:-

(a)

Cabinet Secretary-Chairman

(b)

Secretary to the Government of India Incharge, Legal Affairs-Member

(c)

Secretary to the Government of India, Department of Telecommunications-Member.

The Review Committee to be constituted by a State Government shall consist of the following, namely:-

(a)

Chief Secretary-Chairman

(b)

Secretary Law/Legal Remembrancer Incharge, Legal Affairs-Member

(c)

Secretary to the State Government (other than the Home Secretary)-Member

(17)

The Review Committee shall meet at least once in two month and record its findings whether the directions issued under sub-rule (1) are in accordance with the provisions of sub-section (2) of Section 5 of the said Act. When the Review Committee is of the opinion that the directions are not in accordance with the provisions referred to above it may set aside the directions and orders for destruction of the copies of the intercepted message or class of messages.

(18)

Records pertaining to such directions for interception and of intercepted messages shall be destroyed by the relevant competent authority and the authorized security and Law Enforcement Agencies every six months unless these are, unlikely to be, required for functional requirements.

(19)

The service providers shall destroy records pertaining to directions for interception of message within two months of discontinuance of the interception of such messages and in doing so they shall maintain extreme secrecy.]

420.

Default of subscribers due to insolvency, etc.

- When a subscriber is adjudged an insolvent or makes or enters into any composition or arrangement with his creditors or suffers execution to be levied upon his premises, or commits any breach of or fails to observe and comply with any of these rules, the Telegraph Authority may close the connections by giving to the subscriber notice in writing for a period of seven days.

421.

Disconnection of telephones.

- Where the Divisional Engineer is satisfied for reasons to be recorded in writing that it is necessary to do so, he may, after giving the subscriber a notice in writing for a period which shall not except in emergent cases be less than seven days, disconnect the telephone, and in such case, the subscriber shall be entitled to refund of rent for the unexpired portion of the. period for which the connection or service was given.

422.

Right of disconnection in emergency.

- The Divisional Engineer may, in the event of any emergency, disconnect any subscriber, with or without notice. In case such disconnection exceeds a period of 7 days, the subscriber shall be entitled to proportionate refund of rent.

423.

No compensation in certain cases.

- Save as otherwise provided, a subscriber whose telephone is disconnected under rule 420, 421 or 422 shall not be entitled to any compensation therefor, and the disconnection shall be without prejudice to any other right or remedy of the Telegraph Authority against the subscriber for the recovery of arrears or other money due from him under these rules.

424.

Disconnection due to excessive calls.

- In the event of subscriber making outward local calls in excess of a certain number to be laid down by the Telegraph Authority from a telephone or telephones of which the count made by the Divisional Engineer shall be conclusive proof, the Divisional Engineer may require the subscriber in writing to rent an additional connection or connections and in default of compliance with such request the Divisional Engineer may cross the connection or connections.

General Conditions Of Service

425.

Damage to or alteration of equipment.

- A subscriber shall take good care of the telephone apparatus and of all fixtures and accessories connected therewith and shall not damage, alter or remove or cause to be damaged, altered or removed any such apparatus, fixture or accessories or obliterate any marks, works or number which may be written, painted, stamped by impressed therein.

426.

Charges for damage to apparatus.

- In the event of the apparatus on the subscriber's premises or any part thereof being damaged, lost or altered from any cause whatsoever, the subscriber shall pay on demand the cost of repairing renewing or replacing it, which cost shall be determined by the Divisional Engineer. The Divisional Engineer may also disconnect the connection of a subscriber who alters or makes any unauthorised attachment to the apparatus supplied.

427.

Illegal or improper use of telephone.

- A subscriber shall be personally responsible for the use of his telephone. No telephone shall be used to disturb or irritate any persons or for the transmission of any message or communication which is of an indecent or obscene nature or is calculated to annoy any person or to disrupt the maintenance of public order or in any other manner contrary to any provision of law.

428.

Other uses of telephone.

- No person shall, without the sanction of the Telegraph Authority, use any telephone or cause or suffer it to be used, for purposes other than the establishment of local or trunk calls.

429.

Transfer of telephone.

- [(1) A subscriber shall not transfer the telephone without the permission of the Telegraph Authority].

[Substituted by G.S.R. 1167(E), dated 28.10.1986]

(2)

The Telegraph Authority may permit :-

(a)

the transfer of a telephone in the personal name of

(i)

a deceased subscriber, to his legal heir or successor;

(ii)

a subscriber, to his father, mother, wife, husband, brother and sister, which term includes step-brother and step-sister, son or daughter as the case may be; and

(iii)

a subscriber on account of any change in the name of the subscriber for any reasons;

(b)

the transfer of an official telephone in the name of an officer of the Government or of a local authority or of a corporation

owned or controlled by the Government or of an institution owned or controlled by the Government on account of any change in the authority hiring the telephone on behalf of such officer;

Explanation. - In this clause "corporation owned or controlled by the Government" includes a society registered under any law relating to registration of societies, so owned or controlled, a corporation so owned or controlled and established by or under a Central, Provincial or State Act, and a Government Company as defined in Section 617 of the Companies Act, 1956 (

1 of 1956

);

(c)

the transfer of a telephone in the name of a firm or company or of an institution or organisation or association or any similar body, on account of any change in the name or constitution or both of the said firm, company, institution, organisation, association or similar, body;

(d)

the use of a telephone subscribed by the landlord of building by the tenant living in the same building.

(3)

[Notwithstanding anything contained in sub-rules (1) and (2), the Telegraph Authority may, on an application being made in this regard, permit a subscriber to transfer his telephone [sanctioned under 'OYT-General' category]

[Inserted by G.S.R. 428 dated 15.4.1985]

to any person, firm or company, subject to the condition that a period of [one year]

[Inserted by G.S.R. 953(E), dated 22.7.1986]

has elapsed after the installation of the telephone with the said subscriber.]

(4)

[Notwithstanding anything contained in sub-rules (1) and (2) the Telegraph Authority may, on an application being made in this regard, permit a subscriber to transfer his telephone, sanctioned under "Tatkal Scheme" to any person, firm or company after three years of the date of installation of such telephone].

[Inserted by G.S.R. 693(E), dated 10.6.1988]

[(5) Notwithstanding anything contained in sub-rules (1) and (2), the Telegraph Authority may, on an application being made in this regard, permit a subscriber to transfer his telephone sanctioned under Non-OYT/Special category to any person, firm or company subject to the condition, that on the day of such transfer, the date of registration of the telephone under Non-OYT/General category has been cleared.]

[Inserted by G.S.R. 969(E), dated 10.6.1995]

429A.

Casual use of a telephone by an outsider.

- Casual use of a telephone may be allowed by a subscriber to an outsider, subject to the condition that for such casual use, the subscriber shall not charge more than the charges leviable for such use as if it is from a public call office.

430.

Death or change of title of a subscriber.

- In the event of the death of a subscriber, or a change in the constitution of a subscriber, firm or institution, the person claiming to be successor to such subscriber shall immediately give notice thereof to the Telegraph Authority and shall apply for permission to retain the connection or service.

431.

Surrender of telephone apparatus and other accessories.

(1)

On the expiry, termination or closure of a telephone service, the subscriber shall surrender to the Telegraph Authority the apparatus with all fixtures and accessories in as good condition as they were when installed, ordinary wear and tear excepted.

(2)

The Telegraph Authority and any telegraph official may, for the purpose of removing the apparatus, fixture and accessories surrendered under sub-rule (1), at all reasonable times, enter the premises of the subscriber and any other place under the control of the subscriber through, under or over which any part of the apparatus, fixture or accessories passes or is fixed, and the subscriber shall not be entitled to any compensation for damages incurred in removing the

apparatus, fixture and accessories.

432.

Notice of surrender.

- Before surrendering a telephone apparatus and accessories under rule 431, the subscriber shall give notice to the Divisional Engineer, Telegraphs, of not less than 15 days.

433.

Shifting of premises without intimation.

- If the subscriber vacates the premises in which the telephone or other equipment is fitted, the Telegraph Authority shall be at liberty to recover the apparatus and accessories without effecting the subscriber's liability to payment of rent and charges therefor.

Fees And Other Charges

434.

Schedule of fees and charges.

- The charges for various services under these rules shall be as hereunder specified.

Section 1

Fees

1. Installation Fees.-

(a)

[for each telephone connection (excluding casual connection from Departmental Exchange), internal or external extension, private exchange connection, private branch exchange connection, junction lines to private branch exchanges and for each end of a private wire or non-exchange line:-

(i)

in an exchange system of less than 500 lines is Rs. 300.

(ii)

in an exchange system of 500 lines and above is Rs. 800

(b)

for a casual connection from a Departmental Exchange is Rs. 150

(c)

[for loudspeaking Telephones is Rs. 100

(d)

for the following additional facilities.

(i)

extra bell is Rs. 150

(ii)

extension bell with switch is Rs. 200

(ii)

(1) for a plug and socket arrangement comprising of one plug for terminating the telephone instruments and two sockets is Rs. 300

(2)

for each additional socket is Rs. 100

(iv)

for long cord-

(1)

up to 5 metres in length is Rs. 100

(2)

for every additional 5 metres length is Rs. 50

The installation charges specified in item (d) shall cover normal wear and tear. Replacement of these facilities after the expiry of 3 years, shall be chargeable afresh at the rates indicated above.]

[Substituted for item (a) by rule 2(1)(i) by G.S.R. 1237(E), dated 28.11.1986]

Note 1. - Installation fees are leviable on all new installations, permanent and temporary, including Own Your Telephone connections.

Note. 2. - Installation fees for Private and Private Branch Exchange Switch-Boards are leviable at the scale shown in Sec. VIII.

[Note 3.

[Substituted for Notes 3 and 4 by G.S.R. 837(E), dated 5.9.1987]

- Where the subscriber is [permitted/required] to arrange with reference to item (a) (ii) above :

(a)

internal wiring-himself, a rebate of Rs. 250 shall be allowed.

(b)

internal wiring and his own instrument, a rebate of Rs. 500 shall be allowed.

Note. 4. - Where the subscriber is [permitted/required]

[Substituted by G.S.R. 516(E), dated 23.6.1995]

to arrange internal wiring himself for items other than item (a) (ii), the installation charges shall be 50 per cent of the above charges]];

2. Reconnection fee-[(a) Reconnection fee for a telephone connection or telephone installation of any kind or a plug point, disconnected due to default of payment of rent or other dues. Rs. 100.00]

[Substituted for sub-item (a) by G.S.R. 1121 (E), dated 1.10.1986]

[Note.

[Inserted by G.S.R. 112(E), dated 25.2.1987]

- Notwithstanding anything contained in the Indian Telegraph (Fifth Amendment) Rules, 1986, the revised fee of Rs. 100 shall become leviable on and from the 1st day of March, 1987]

(b)

(i)

Reconnection fee for an extra bell disconnected due to default of payment of rent or other dues and restored within a period of ten days from the date of its disconnection is Nil.

(ii)

In all other cases is Rs. 30

3. Transfer fee. - (a) Transfer fee for the transfer of a telephone connection.

(b)

Fee for permission for the use of a telephone subscribed by the landlord of a building, by the tenant living in the same building is Rs. 500.

Explanation.- For the purpose of this section 'facsimile' meaning picture transmission.

435.

Service connection.

- Telephone for the use of the Posts and Telegraphs Department shall be provided free of rent to the extent considered necessary by the Telegraph Authority. No charge shall be made in connection with the business of the Department.

436.

[Payment of bills and charges.

[Substituted by G.S.R. 24(E), dated 17.1.1994]

- A subscriber shall pay the charges for installation or shift or the rent or calls (local and trunk) or Phonograms for a telephone connection or similar service for such periods and at such date as may be prescribed by the Telegraph Authority:

Provided that if, on or before the date, as may be prescribed by the Telegraph Authority, the rent or charges in respect of calls (local and trunk) or phonograms or other charges in respect of telephone connection or similar service are not paid in accordance with these rules, without prejudice to any other action the Telegraph Authority may take for disconnection of telephone or similar service, a surcharge at the following rates shall be levied.]

Amount

of bill/charge

Amount

of surcharge payable after prescribed date

(1)

(2)

Rs. 1 to

Rs. 500

Rs. 10

Rs. 501

to Rs. 1,000

Rs. 20

Rs. 1,001

to Rs. 2,000

Rs. 40

Rs.

2,001 to Rs. 3,500

Rs. 70

Rs.

3,501 to Rs. 5,000

Rs. 100

Rs.

5,001 to Rs. 7,500

Rs. 150

Rs.

7,501 to Rs. 10,000

Rs. 200

Rs.

10,001 to Rs. 20,000

Rs. 400

Rs.

20,001 to Rs. 50,000

Rs.

1,000

Rs.

50,001 onwards

Rs.

2,000

437.

Rental.

- The rental for a period shall be payable before the commencement of that period.

438.

Rental periods.

- Monthly, bi-monthly and annual rental periods shall commence from the first of a month or from such other day as the Telegraph Authority may fix rentals for broken periods of a month shall be charged proportionately.

439.

Charges when payable.

- Charges for calls in message rate or measured rate system shall become payable on presentation of a bill therefor.

The periods for which bills shall be prepared and the dates by which they shall be payable shall be fixed by the Telegraph Authority.

440.

Responsibility of subscriber to pay bills.

(1)

Save as provided in sub-rules (2) and (3), a subscriber shall be personally responsible for all calls (local and trunk) made and phonograms sent for onward transmission from his telephone and for the payment of call charges thereto.

(2)

For collect calls and reserved charge calls the charge shall be payable by the called subscriber In case the called

subscriber on a collect call does not agree to pay the charges the call will not be set up but an appropriate charge to cover the work done by the exchange shall be payable by the subscriber from whose telephone the call was booked or by the person who booked the call from a public call office.

(3)

For calls made with credit card facility the charge shall be payable by the subscriber in whose name the credit card has been issued and whose telephone number has been specified in the credit card for debiting the charges.

(4)

[A subscriber shall make the payment of call charge, made from or received by his telephone, to the Telegraph Authority or its duly authorised agent or licensee, as the case may be.]

[Inserted by G.S.R. 13(E), dated 15.3.1996]

441.

Account of charges due.

- The Telegraph Authority shall designate the officers who shall maintain the accounts in respect of the number of calls and the charges due from subscribers. Such accounts shall be conclusive proof that the charges mentioned therein have been incurred.

442.

Service of notice and bills.

- Any notice, bill or demand from the Telegraph Authority for any fee or charges due from a subscriber may be served by delivery to the subscriber, or by sending it by post to the address of the subscriber or by leaving it at the premises in or upon which the apparatus is installed.

443.

Default of payment.

- If, on or before the due date, the rent or other charges in respect of the telephone service provided are not paid by the subscriber in accordance with these rules, or bills for charges in respect of calls (Local and Truck) or phonograms or other dues from the subscriber are not duly paid by him, any telephone or telephones or any telex service rented by him may be disconnected without notice. The telephone or telephones or the telex so disconnected may, if the Telegraph Authority thinks fit, be restored, if the defaulting subscriber pays the outstanding dues and the reconnection fee together with the rental for such portion of the intervening period (during which the telephone or telex remains disconnected) as may be prescribed by the Telephone Authority from time to time. The subscriber shall pay all the above charges within such period as may be prescribed by the Telegraph Authority from time to time.

444.

Termination of connection before expiry of period.

- If a telephone or other installation is given up or terminated owing to default by the subscriber within the specified minimum period, the sum due for the unexpired portion of that period shall periodically become payable.

445.

Security for charges.

- The Telegraph Authority may, at any time, before or during the period for which a telephone or other like service is provided require a subscriber to deposit as security such amount as it may consider necessary and if the subscriber fails to comply with such demand within such period as it may specify, the Telegraph Authority may withdraw the service and remove any telephone or other apparatus belonging to the Telegraph Authority. Where the security deposit is paid, any amount due from the subscriber by way of fee or other charges under these rules may be adjusted against the amount so deposited.

446.

[Refunds.

[Inserted by G.S.R. 674(E), dated 27.7.1987]

(1)

If a subscriber surrenders a telephone connection or other service before the expiry of the period for which rental or other charges have been paid, the Divisional Engineer shall refund such portion of the rental or other charge as may be prescribed by the Telegraph Authority.

(2)

. When the telephone line of a subscriber or junctions lines to PABX or PBX remain interrupted continuously for a period

of [seven] days or more due to reasons attributable to the Department of Telecommunications, a proportionate rebate or refund in rental, after reducing the free calls available for the said period, shall be allowed to the subscriber].

(3)

[If there is a continuous interruption of service for more than 14 days due to departmental reasons, rebate in rental for one full month shall be allowed subject to the proviso that eligibility for any rebate for a second interruption starts from the date succeeding the 30th day for which rebate has become eligible due to the first interruption. Free calls may be reduced proportionate to the period of rebate.]

[Substituted for the word "fifteen days" by G.S.R. 574(E), dated 15.6.1990]

Trunk Telephone

447.

Classes of trunk calls.

- The Telegraph Authority shall from time to time prescribe various classes of trunk calls and their relative order of priority. It shall have the power to restrict any specified class of trunk calls to any particular group of subscribers or to restrict any class of trunk calls to any specified duration. The Telegraph Authority shall have the power to interrupt any class of call in progress for putting through certain ca1~ of higher priorities.

448.

Duration of call.

(1)

Except as provided in rule 451A, the duration of a trunk call shall be calculated from the time when the calling number is informed by the trunk operator.

(i)

in the case of particular person call, that the specific person is on the line; and

(ii)

in the case of any other call, that the called number is connected.

(2)

In all disputes regarding the duration of a call,. the decision of the Telegraph Authority or such other offices as may be nominated by the Telegraph Authority shall be final.

449.

Ineffective Trunk Calls due to non-acceptance of trunk connection by the calling or called number or no reply from the calling number.

(1)

A trunk call shall be deemed to be "ineffective", if-

(a)

the calling or called number, or the particular person at the called number does not accept the trunk connection after being rung up, or

(b)

there is no reply from the calling number at the time when the call is attempted to be put through.

(2)

The charge for such an in effective call (irrespective of the priority of the booked call shall be the appropriate charge as prescribed in item (1) of para D of rule 451.

[Provided that a trunk call shall be deemed to have been cancelled by the subscriber if, after having booked for the call, he does not accept the same when offered within one hour from the time of booking, in the case of ordinary calls or within half an hour of such booking in the case of call, other than ordinary calls, and the charge for such call shall be as prescribed in Cl. (f) of rule 451].

[Inserted by G.S.R. 837(E), dated 5.10.1987]

Note. - The provisions of this rule shall not be applicable to Fixed Time Calls and Subscription Fixed Time Calls nor shall they apply to International Telephone Service or Indo-Sri Lanka, Indo-Nepal and Indo-Pakistan Calls.

450.

Refund for trunk calls.

(1)

A refund of any amount paid in excess of the charges prescribed in these rules in respect of trunk calls shall be made on

application to the Telegraph Authority.

(2)

No claim for refund shall be considered unless it is received by the authority concerned within six months from date of the call in respect of which the claim is made.

451.

Charges for trunk calls.

- Except as provided in rule 451A [and rule 451B]

[Inserted by G.S.R. 916(E), dated 9.9.1988]

the charges for trunk calls shall be as hereinafter specified.

(a)

[The charges for trunk calls between exchanges situated in the same Short Distance Charging Area and between exchanges located outside the local area but with common border shall be at the rate, specified in item 'A' of the Table I hereunder,

[Substituted by G.S.R. 587(E), dated 10.6.1992]

(aa)

The charges for trunk calls between exchange situated in two Short Distance Charging Areas lying in the same Long Distance Charging Area or in adjacent Long Distance Charging Area shall be on the basis of radial distance between the respective Short Distance Charging Centres as specified in item 'B' of the said Table.

(ab)

The charges for Trunk Calls between exchanges situated in two contiguous Long Distance Charging Areas shall be on the basis of radial distance between the respective Long Distance Charging Centres, as specified in item if of the said Table, subject to a minimum charges as for the distance slab of 51 km. the to 100 km.]

TABLE I

Manual

Trunk Calls

Charges

A. Calls

between the exchanges within the same Short Distance Charging Area, and calls between exchanges located outside the local area but with common border, irrespective of distance.

As for

the slab of 'Up to 20 kms' shown under item (B) below.

(B)

Cases not failing under Item 'A' above-

Radial

distance between any two Short Distance charging centres or between any two

Long Distance charging centers

Charges

Rs.

Up to 20

Kilometres

05

Exceeding

20 kms. but not exceeding 50 kms

08

Exceeding

50 kms. but not exceeding 100 kms

20

Exceeding

100 kms. but not exceeding 200 kms

30

Exceeding
200 kms. but not exceeding 500 kms
50

Exceeding
500 kms. but not exceeding 800 kms
65

Exceeding
800 kms, but not exceeding 1200 kms
85

Exceeding
1200 kms
90

TABLE II

Metered Demand Service

Radial

distance between any two exchanges or between any two long distance charging centers

Periodicity

of pulses in seconds after the occurrence of the first pulse on called
subscriber's answer

During Day

During

concessional periods mentioned in Sec. (c)

Up to 20

kms.

36

36

Exceeding

20 kms. upto 50 kms.

18

18

Exceeding

50 kms. upto 100 kms.

8

12

Exceeding

100 kms. upto 200 kms.

6

8

Exceeding

200 kms. upto 500 kms.

4

6

Exceeding

500 kms. upto 1,000 kms.

3

4

Exceeding

1,000 kms.

2

3

[Provided that the chargeable radial distance of Inland Trunk Calls to and from Andaman Nicobar and

Lakshadweep-Minicoy off-shore group of island shall be based on the total distance calculated as follows :

Chargeable radial distance= $d=a+b$

a = radial distance from the long distance charging centre of the exchange to the terminal point across the land surface.

b = radial distance from the terminal point on land to the exchange in off shore island measured over the sea limited to a maximum of 200

km.]

[Inserted by G.S.R. 543(E), dated 21.5.1992]

(b)

Charges for higher priority trunk calls shall be calculated as follows.

Priority

Charges

(i) SVH

Calls

Same

rates as for ordinary calls provided that where the SVH calls issued for purpose other than that contemplated by such a call it should be charged at the highest rate applicable in the service.

(ii)

Urgent Calls, Fixed Time Calls and Subscription Fixed Time Calls

Double

the rate for ordinary call.

(iii)

Lighting Calls

Eight

times the rate for ordinary calls.

(iv)

Most Immediate, Operations Immediate, Immediate and important calls booked by authorized official of Government Departments.

Four

times the rate for ordinary calls.

(c)

[The charges for ordinary and SVH trunk calls 3[between any two Short Distance Charging Centres, or two Long Distance Charging Centres), not being situated within a radial distance of fifty kilometres, shall be reduced by 50 per cent of the charges specified in Cl. (a)-

[Substituted by G.S.R. 386(E), dated 22.5.1984]

(i)

on all Sundays and National Holidays, and

(ii)

between 00.00 hours and 05.00 hours and 22.00 hours and 24 hours on other day].

(d)

Additional charges to be levied for specified service.

Facility

Rate

(i) Particular persons call effective or ineffective.

The additional charges for a particular person facility shall be 50 per cent of the trunk charge for unit of ordinary category, subject to a minimum charge of 50 P.

(ii) Fixed Time call.

(a) on trunk call Re. 2.00

(iii) Subscription fixed time call.

(b) on local calls Rs. 0.50

(iv) Late fee per call effective or in effective.

Rs. 2.00

(v) Messenger service per call effective or infective.

Rs. 2.00

Note. - Particular person, fixed time and subscription fixed time call facilities shall not be available on trunk calls manually established between exchanges following in the first slab of Table I and all slabs of Table II in Sec. (A).

(e)

Charges for Public Telephone Calls.

Public Telephones may be used for making a local call (where local call facilities are available) or for making a trunk call or both.

The charges for the use of Public Telephone shall be levied as follows :

[See table]

Provided that for calls between two PTs connected to different Exchanges, the PT charges for both the PTs will be levied in addition to the Trunk call charge between the Exchanges :

Provided further that for the call between two PTs connected separately to the same Exchange or same PT the charge for the call shall be the sum of charges for a call from each of the two PTs to the common exchange of common PTs :

Provided further that in the case of a call between two long distance PTs connected in tandem, charge of the call shall be levied on the radial distance between the two PTs as indicated in columns (1) and (2) against the long distance PTs.

Note 1. - The PT charges in the case of trunk call will NOT be subject to reduction in concessional rate period nor will it be affected by the priority classification (Ordinary, Urgent, Important etc.) of the trunk call.

Note 2. - The particular person charge, Fixed Time Charge and subscription Fixed Time charge will be levied only on the trunk call charge and NOT on the PT charges. In the case of Press Trunk Calls, the rebate of 12-1/2% will be admissible only on the Trunk call charge and NOT on the PT charge.

Note 3. - In the case of calls between Long Distance PT and its Parent Exchange all calls shall be treated as ordinary calls and put through in the order of their booking time. Special facilities such as priorities, concessional tariffs, Fixed Time, Subscription Fixed Time and Press call rebate will NOT be available on such call. Particular person facility will be available without the usual particular person charge.

(J)

[Cancellation charges for Trunk Calls

[Inserted by G.S.R. 553(E), dated 27.3.1986]

(i)

Ordinary calls, if cancelled within one hour of booking and before the maturity of the call is Re. 1.

(ii)

Calls, other than the ordinary calls, if cancelled within half an hour of booking and before the maturity of the call is Re. 1.]

451A.

Subscriber Trunk Dialling Barring facility.

- The Subscriber Trunk Dialling Barring Facility on DEL's; PMBX junction lines and PABX junction lines may be made available to a subscriber without any charge of the STD barring facility is given at the time when the new line is being installed for the first time. In all other cases a charge of Rs. 50 per line will be levied for providing the facility.

The charge for every subsequent change, i.e. withdrawing or providing the facility will be Rs. 50 per line.

451B.

[Speed trunk call service.

[Inserted by G.S.R. 916(E), dated 9.9.1988]

(1)

Without prejudice to the provisions of rule 447, the Telegraph Authority shall have the power to introduce Speed Trunk Call Services between any two stations and while doing so it may withdraw any or all of the categories of trunk calls referred to in rule 451 between such stations.

(2)

If the called number cannot be contacted for any reason, the Speed Trunk Call, shall be treated as cancelled and non-cancelled charges shall be payable under these rules.

(3)

The charges for the Speed Trunk Call Service shall be as follows :-

(a)

Normal Charges.- One and a half times the rate of ordinary category of trunk call of unit duration (3 minutes) as specified in Table I of Cl. (a) of rule 451.

(b)

Concessional Charges.- The charges for Speed Trunk Calls [between any two Short Distance Charging Centres of two Long Distance Charging Centres not being situated within a radial distance of 50 kms. shall be reduced by 50% of the charges specified in Cl. (a) above.

(i)

on all Sundays and National Holidays; and

(ii)

between 00 hrs, and 05 hrs and 22 hrs and 24 hrs. on other days.

(c)

Additional Charges or particular person call.- One third of the rate for unit duration (3 minutes) of Speed Trunk Call charges, one the called number has been contacted, irrespective of the actual duration of the Speed Trunk Call.

Explanation.- For the purposes of this rule, "Speed Trunk Call Service" means the manual Trunk Service in which the subscriber can contact the trunk operator by dialling a pre-allotted code number and the call is put through speedily after verification of the identity of the calling number.]

Telephone Directories

452.

Supply of telephone directories.

- A copy of the telephone directory shall be supplied free of charge for each telephone, extension or party line, rented by the subscriber from any exchange system or private branch exchange or private exchange. A copy shall also be supplied free of charge for each extension (including extension) from an extension working for a public call office. Additional copies supplied shall be charged for at such rate as may be fixed by the Telegraph Authority from time to time.

453.

Entries in telephone directories.

- For each direct telephone line rented (i.e. for main connections, direct extensions and PBX junction lines) ordinarily only one entry not exceeding one line will be allowed free of charge in the telephone directory to every subscriber. Such entry shall contain the telephone number, the initials, the surname and the address of the subscriber or user. No word which can intelligibly be abbreviated shall be allowed to be printed in full. Additional lines may be allowed by the Telegraph Authority at its discretion.

454.

Public Call Offices, etc.

- Public Call Offices and extensions from Public Call Offices shall be shown in the directories in the manner in which exchange and direct connections therefrom are listed. List of local Public Call Offices be included in the Directory of the Parent Exchange.

455.

Extra line charges.

- Extra lines in 'Free of charge' entries or extra entries will be charged for at such rate as may be prescribed by the Telegraph Authority from time to time.

456.

Charges for central headings in larger type.

- When five or more telephone lines are rented by an institution, trade or department, a central heading in large type not exceeding one line may be given free of charge to enable the individual entries to be in small type subject to the total number of lines of entries being limited to the number of free line entries admissible. In other cases, central heading in

bold type shall be charged at a rate to be fixed by the Telegraph Authority from time to time.

457.

General.

- Any telephone directory provided by the Department shall remain its exclusive property and shall be delivered it on demand. The department reserves the right to amend or delete any entries in the telephone directory at any time and undertakes no responsibility for any omission; and it shall not entertain any claim or compensation on account of any entry in or omission from the telephone directory or of any error therein.

458.

Publishing of telephone directory. Except with the permission of the Telegraph Authority no person shall publish any list of telephone subscribers.

459.

Advertisements.

- The Telegraph Authority may publish or allow the publication of advertisements in the body of the telephone directory.

Part VI ? International Telephone Service

460.

The rule in this part shall apply only to international telephone service.

- Save as otherwise provided in this Part, International Telephone Service shall be governed by the rules prescribed for Trunk Calls in Part V.

461.

Definitions.

- Without prejudice to the definitions contained in rule 2, the following definitions shall also apply for the interpretation of the rules in this Part, namely :-

(a)

'Distress Calls' (Rush or Emergency calls) are calls concerning the safety of life at sea, on land or in air, including exceptionally urgent epidemiological calls of the World Health Organisation.

(b)

'Government Call' means a telephone call originated in his official capacity by any one of the authorities specified in rule 348;

(c)

'International Trunk Exchange' means a telephone exchange which has been specifically set up for the purpose of connecting international telephone calls and to which international telephone circuits are directly connected.

(d)

'Private Calls' are calls other than Distress calls, Government calls and Service calls.

(e)

'Service Calls' are calls booked by persons authorised to do so by their respective Administration on matters relating to the working of International Telephone or Telegraph Service, including the establishment and maintenance of circuits for other telecommunication services effected with the assistance of International Telephone Service.

462.

Scope of International Telephone Service.

(1)

International Telephone Service shall be provided by agreement between India and such foreign countries as are notified from time to time by the Central Government.

(2)

International Telephone Service to each country shall operate during such hours as are fixed by the telegraph authority from time to time.

463.

Classes and priorities of calls and special facilities.

(1)

The Central Government shall determine by mutual agreement with Foreign Administrations the classes of calls and special facilities that may be accorded for users in each International Service. The terms and conditions governing classes and priorities of calls and special facilities on calls shall be as prescribed by the Central Government from time

to time.

(2)

Calls shall ordinarily to set up in the following order:-

(a)

distress calls;

(b)

service calls for the purpose of re-establishing International telephone routes which have been totally interrupted;

(c)

Government calls (Those for which priority has been specially requested shall be handled earlier than other Government calls for which priority has not been requested);

(d)

private calls; and

(e)

service calls other than those included in sub-clause (b).

(3)

. In services where 'lightning' and 'urgent' classes of calls are admitted, the order of priority for establishing calls shall be:-

(a)

distress calls;

(b)

lightning service calls for the purpose of re-establishing international telephone routes which have been totally interrupted;

(c)

lightning Government calls;

(d)

lightning private calls;

(e)

urgent Government calls;

(f)

urgent service calls;

(g)

urgent private calls;

(h)

ordinary Government calls for which priority has been specially requested;

(i)

ordinary Government calls other than those included in Cl. (h);

(j)

ordinary private calls; and

(k)

Ordinary service calls.

(4)

Within each of the categories of calls specified in sub rules (1) and (2) calls shall take their turn according to the order in which they are booked.

464.

Booking of calls.

(1)

International telephone calls may be booked by any telephone exchange, and by such Public Offices as may be specified by the telegraph authority for booking such calls.

(2)

In the booking of a call the following particulars shall be given by the subscriber, namely:-

(i)

for a Number-to-Number call;

- (a)
calling telephone number; and
- (b)
called exchange and telephone number', if not known, address or, any other particulars for identifying the wanted number.
- (ii)
for a Person-to Person call;
- (a)
calling telephone number;
- (b)
called exchange and telephone number;
- (c)
name of caller; and
- (d)
name of the called person.
- (iii)
for a Government call;
The person booking a Government call shall be required to state his name and rank if asked.
- (vi)
The subscribers shall also furnish such additional information as shall be required by the International Trunk Exchange for completing the call.
- (3)
Subject to the provisions of sub-rule (2) of rule 462 and sub-rule (5) of this rule a caller may specify at the time of booking a call :
- (a)
that he wishes the call to mature only after a particular time stated by him; or
- (b)
that he does not wish the call to mature between certain stated hours; or
- (c)
that he wishes the call to be cancelled if it does not mature by a specified time.
Arrangements shall normally be made to comply with the subscriber's wishes when traffic and other conditions permit. The Telegraph Authority reserves the right to deny the caller any or all of the facilities specified in Cl. (a), (b) and (c).
- (4)
The booking of a call may be modified by the caller subject to such terms and conditions as are fixed by the telegraph authority from time to time so long as he has not been advised that the call is amount to be set up.
- (5)
The period of validity of a booked call, which is otherwise not completed or cancelled by the caller, shall be fixed by the Central Government in agreement with the concerned foreign Administration.
465.
Timing and extension of calls.
- (1)
As call begins-
- (i)
in case of a Number-to-Number call, when communication is established between the calling and called telephone number, and
- (ii)
in the case of a Person-to-Person call, when communication is established between the specified persons.
A call ends when the calling telephone gives the clearing signal that the call has ended or at the instant when, although the caller has not replaced his receiver, the call is cleared down by an operator.
- (2)
The duration of a call so determined shall be charged for at the prescribed rates, provided that there shall be deducted

therefrom the periods during which the communication was noted or recognised to have been ineffective through no fault of the subscribers; such periods shall be determined by the International Trunk Exchange responsible for fixing the charge.

(3)

An announcement such as 'three minutes' and 'six minutes' shall be made to the caller just before the expiry of each unit period of three minutes of effective conversation. Subject to the provisions contained in sub-rule (1) of rule 467 conversation shall not be otherwise interrupted and the caller shall end or extend his call as he desires without being specifically asked at any time whether he wishes an extension.

466.

Language of service.

- The English language shall ordinarily be used as a service language by the International Trunk Exchange operators in India for the exchange of conversation concerning the establishment of call with subscribers and International operators of foreign Administrations.

467.

Duration of calls.

(1)

The telegraph authority shall have the right to limit the duration of any call to a specified period and also the power to interrupt calls in progress for putting through certain calls of higher priorities. In cases in which the duration of any call is limited, the caller shall be informed of this, if possible, at the time when the call is about to be connected and the calling and the called subscribers shall also be advised of this a few seconds before the disconnection of the call.

(2)

Subject to the provisions of sub-rule (1), calls booked from Public Offices shall then be treated as limited duration calls and the caller shall have no option to extend a call beyond the predetermined time. If a caller requires longer time, he shall book a fresh call.

468.

Cancellation of calls.

- A caller may cancel his call at any time before he is called to take the call and the call shall then be treated as ineffective. No charges are ordinarily payable for cancellation of calls except in cases where charges have been prescribed by the Central Government.

469.

Charges-(1) With respect to effective calls:-

(a)

the charges for the various classes and priorities of calls and special facilities accorded to users shall be fixed from time to time by the Central Government;

(b)

it shall be open to the Central Government to determine by mutual agreement with foreign Administrations any reduction in the charges fixed under Cl. (a), during particular periods;

(c)

the minimum chargeable duration shall be three minutes;

(d)

when the chargeable duration of a call exceeds 3 minutes, an additional charge shall be made for each minute or fraction of a minute in excess of 3 minutes and the charge per each additional minute shall be approximately one-third of the charge for 3 minutes; and

(e)

the charge for a call to any country is the same irrespective of the route used for the establishment of the call.

(2)

With respect to ineffective calls:

(a)

no charge shall be leviable for any reason through a fault of telephone service;

(b)

except in the case of person-to-person calls and calls for which a supplementary charge is due, no charge shall be

payable by a subscriber who cancels his call, either before he is informed that the call is at the point being set up or after having been advised that the call is on the point of being set up when he is informed that the called subscriber is engaged or that there is no reply.

(c)

for calls (other than person-to-person calls and calls for which a supplementary charge is due) which are refused by the calling or called subscriber, charge shall be payable equal to the cost of one minute of ordinary conversation exchange during the charge period in which the refusal took place;

(d)

person-to-person calls are subject to a report charge, the amount of which and the conditions under which such charge is payable shall be fixed by the Central Government from time to time.

(e)

in the case of calls for which a supplementary charge is due, the appropriate supplementary charge shall be payable for calls ineffective due to cancellation of booking by the caller, or refusal by the calling or called number or by the called party, provided that in the case of cancellations such supplementary charges shall be payable only if at the moment when the originating International Trunk Exchange is informed of the cancellation, the particulars in respect of booking have already been transmitted to the next International Trunk Exchange;

(f)

when a call is booked to an incorrect number and the call is set up with that number, the call shall be charged for three minutes duration and if the incorrect booking is replaced immediately by another booking of a call to the same country, the previously set up call with the wrong number shall be subject to only one minute charge.

(3)

Notwithstanding anything contained in this rule, the charges for ineffective calls with certain special facilities which may be specified by the Central Government shall be as fixed by the Government from time to time.

(4)

The provisions of sub-rules (1), (2) and (3) shall not apply to service calls which are exchanged free of charge between the Central Government and Foreign Administrations. The Chairman of the Administrative Council and the Secretary General of the International Telecommunication Union, the Director of the International Telegraph and Telephone Consultative Committee, the Director and Vice-Director of the International Radio Consultative-Committee and the Chairman of the International Frequency Registration Board may make free telephone calls from India with Foreign Administration on the official business of the International Telecommunication Union.

470.

Complaints and Refunds.

- Any complaint made after the completion of call shall be investigated by the originating International Trunk Exchange. Claims for reduction of charges shall be considered only if the difficulties experienced have been duly noted or admitted by the competent services of the Administrations or recognised private operating agencies concerned.

471.

Miscellaneous.

- The terms and conditions for admitting Programme Transmissions (Vice Casts) shall be as prescribed by the Central Government from time to time.

Part VII ? Private Telegraphs

472.

Any person may without a licence establish, maintain and work a telegraph (not being a wireless telegraph) within the limits of a single building, compound or estate:

Provided that no telegraph line pertaining to the telegraph shall pass over or under a public road.

Part VIII ? Rented Telegraph And Telephone Circuit

A-General Provisions

473.

Provision of circuit.

(1)

Subject to exigencies of public service telegraph circuits and telephone circuits may be provided on lease for the exclusive use of-

(a)

Government Departments;

(b)

Newspaper Establishments or News Agencies; and

(c)

Parties other than those referred to in items (a) and (b).

(2)

The priority for providing a telegraph circuit or a telephone circuit shall be in the order mentioned in sub-rule (1).

(3)

The telegraph circuits and telephone circuits referred to in sub-rule (1) shall be for communication between two offices or premises of the same party at either end or in the case of a telegraph circuit between the Central Telegraph Office and the premises of a party within the same station.

(4)

[The Telegraph Authority may, on specific requests, having been considered on case to case basis, permit provision of telegraph and telephone circuits for communication between more than two offices or premises of the same party at either end, by allowing networking on leased lines, at special rates.

Note. - The words "telephone circuits" used in above clause include the telephone circuits used for speech, data or facsimile transmission.

Explanation. - For the purposes of this section, the rentened telecom circuits are treated as working in 'Networking mode' when more than one circuit is connected on a piece of equipment or on a set of interconnected equipment at a site.]

[Inserted by G.S.R. 830(E), dated 28.10.1992]

[473-A. Application for telegraph and telephone circuit.

[Inserted by G.S.R. 660(E), dated 31.5.1988]

(1)

Application for the provision of a telegraph circuit or telephone circuit or for alteration to the existing circuit shall be made in writing and in such form and manner as may be specified, from time to time, by the Telegraph Authority.

(2)

The charges for the application form for providing a new telegraph circuit or telephone circuit shall be rupees ten].

[473-B. Deposits for telegraph and telephone circuit.

[Substituted by G.S.R. 674(E), dated 27.7.1987]

(1)

Every application for provision of a new telegraph circuit or telephone circuit shall be accompanied with an initial deposit of Rs. 1,000 as security.

(2)

The deposit under sub-rule (1) shall carry an 'interest, for the period commencing on the date following the date of deposit and ending with the date immediately preceding the date of installation of the circuit, at the rate as is payable by the State Bank of India on fixed deposits made with such Bank for a period of one year; and the interest shall be calculated for the completed number of months at the rate in force on the date of deposit.

(3)

On the installation of the circuit, the interest accrued on the deposit shall be adjusted towards the charges payable for the time being under rule 493 for telegraph circuits or under rule 496 for telephone circuits. The amount deposited under rule 473A shall be refunded to the subscriber when the telegraph circuit or telephone circuit in relation to which the deposit is made is finally closer after adjusting the dues, if any].

474.

Maintenance of circuits.

- While the Department of Telecommunications shall made every endeavour to keep the circuits (including local leads) free from interruptions, the Department shall not be responsible for any loss, damage, or inconvenience caused to the user as a result of interruption :

Provided that when a leased circuit remains interrupted continuously for a period of [seven days]

[Substituted for "15 days" by G.S.R. 574(E), dated 15.6.1990]

or more due to reasons attributable to the Department, a proportionate rebate or refund in rental shall be allowed to the user.

475.

Suspension of facilities.

(1)

Notwithstanding any of the terms and conditions of renting of the circuit for private use, the telegraph authority shall, if it becomes necessary or expedient in the public interest so to do, have the right to withdraw without notice any rented circuit.

(2)

The Telegraph Authority shall not be responsible for any loss, damage or inconvenience to the user arising out of such suspension of the facility nor shall it be liable to pay any compensation therefor.

475A.

Notice of surrender for leased Telegraph/Speech circuits.

- Before surrendering the leased Telegraph/Speech circuits and terminal equipments, the party concerned shall give notice to the concerned controlling/billing authority of not less than thirty days.

476.

Misuse of circuits.

(1)

The circuits provided for the exclusive use of one party shall be used only by that party :

Provided that the telegraph authority may, in special cases, authorises other persons to use such circuits.

(2)

The telegraph authority shall have the right to control and censor messages transmitted over the circuits and to make such arrangements as it may deem necessary for such control and censorship and every user of the circuits shall, for this purpose, afford such facilities as may be required by the telegraph authority.

477.

Upkeep of terminal equipment.

(1)

A party taking the circuit on lease shall be responsible for the proper upkeep of all terminal equipments provided by the Posts and Telegraphs Department.

(2)

In the event of loss or damage or tampering of the equipment or any part, thereof, the user shall pay on demand the cost of the equipment as may be determined by the telegraph authority.

478.

Quoting of rentals.

(1)

The rental for the exclusive use of the circuits shall be quoted at the rates then in force.

(2)

Where the circuits are provided by utilising the installations, existing at the time of the application, flat rate of rentals based on radial distance shall be charged for a period of not less than three months (hereinafter referred to in this Part as the minimum guarantee period).

479.

Failure to keep the circuits for minimum guarantee period.

- In case of default by a party to keep the circuit for the minimum guarantee period, the party shall be liable to pay compensation to the Government at such rates as may be determined by the telegraph authority.

480.

Revision of rentals.

(1)

The telegraph authority may revise the rentals applicable for telegraph circuits and telephone circuits.

(2)

When the rentals referred to in sub-rule (1) are so revised, the said rates shall be made applicable to all circuits already rented on flat rate basis:-

Provided that in the case of circuits for which special rent and guarantee periods have been fixed the revised rates shall apply from the date the guarantee period expires.

481.

Payment of rental.

(1)

All rentals are payable in advance and failure to do so may result in the withdrawal of the circuit :-

[Provided that if on or before the date, as may be prescribed by the Telegraph Authority, the rent or charges in respect of the circuits or similar service are not paid on accordance with these rules, without prejudice to any other action, the Telegraph Authority may take for disconnection of circuits without notice, a surcharge at the rates specified under rule 436 shall be levied].

[Inserted by G.S.R. 24(E), dated 17.1.1994]

(2)

The circuits referred to in sub-rule (1) may, subject to feasibility, be restored only on payment of all dues and charges for reinstallation.

B-Telegraph Circuits

482.

Types of circuits.

(1)

A telegraph circuit provided for private use shall be Physicals or Voice frequency Telegraph channels but shall in all cases be used for teleprinter working only.

(2)

Nothing contained in these rules, excepting the charges prescribed in sub-rule (1) and Cl. (b) of sub rule (10) of rule 493, shall apply to the ticket service connections provided between News Agencies and their subscribers.

483.

[Working hours.

[Substituted by G.S.R. 865(E), dated 29.9.1989]

- A Telegraph circuit shall ordinarily be allotted twenty four hours working].

(2)

The Posts and Telegraphs Department may, in such cases as it may be necessary, provide telegraph circuits [to Newspaper establishment or News Agencies]

[Inserted by G.S.R. 830 (E), dated 8.10.1992]

on part-time basis for a period of eight hours, or less for the same timing on each day and changes in timings may be permitted subject to availability of circuits, keeping in view the conditions and guarantee period :-

Provided that temporary changes for short periods may, subject to feasibility, be allowed.

484.

Provision of terminal equipment.

(1)

The terminal equipments referred to in sub-rule (10) of rule 493 may ordinarily be provided by the Posts and Telegraphs Department along with the rented telegraph circuits.

(2)

The equipments shall not form part of the telegraph circuit and shall be charged for separately when provided by the Posts and Telegraphs Department.

(3)

Where the Posts and Telegraphs Department does not provide the equipments, parties may be permitted to use their equipments.

485.

Working of circuits.

- The telegraph authority shall have the right to require a party to adopt such methods and follows such directions for the use of all or any of the telegraph circuits and other apparatus as the Government may, in public interest, specify from time to time.

486.

Utilisation of circuits.

(1)

A telegraph circuit provided for the exclusive use of one party shall not be used for the transmission of communication of other parties.

(2)

In the case of company, firm or on association of persons or a body of individuals whether incorporated or not, a telegraph circuit shall not be used for transmission of private messages.

487.

Circuits provided for newspaper establishment and news agencies.

(1)

In the case of Newspaper Establishments and News Agencies, the telegraph circuit shall be used only for dissemination of news.

(2)

In the case of Newspaper Establishments, the telegraph circuits may be used only for such of the Newspaper Establishments or periodicals which are controlled or managed by the party under a written permission obtained from the Government in this behalf.

488.

Press-cum-commercial use.

- In addition to the press messages, a Newspaper Establishment may on payment of the additional charges specified in sub-rule (13) of rule 493, be allowed to send commercial messages relating to its administrative business, advertisements and accounts.

489.

Preservation of messages.

- The originals of the message transmitted over the telegraph circuits shall be serially numbered and preserved for a period of six months.

(2)

The Government may, at any time without previous notice, inspect and examine or call for or cause inspection and examination of all or any of the messages and such other records of the party relating to those messages.

490.

Multiple use of telegraph circuits.

(1)

Non-press parties renting circuits on full time basis may, on their request and on payment of the additional charges specified in sub-rule (11) of Rule 493, be allowed the multiple use of telegraph circuit:-

Provided that facility may at the discretion of the telegraph authority be allowed where the users are engaged in the same or similar business or they are subsidiaries to one amongst them or otherwise similarly connected to one another :
Provided further that the correspondence passed over such telegraph circuit relates to the business of the concerns for which the telegraph circuit has been allotted.

(2)

The decision of the telegraph authority under the first proviso to sub-rule (1) shall be final.

491.

Operation of the Teleprinter machines.

- The Teleprinter machines installed at the premises of a party renting the telegraph circuit shall be operated by a person arranged by the party himself at his expense:-

Provided that in the case of a telegraph circuit between the telegraph office and the premises of the party in the same station, the staff of the telegraph office shall operate the teleprinter machine at the Telegraph office for which operational charges shall be payable by the party.

492.

Ticker connections.

(1)

The Posts and Telegraph Department may provide on full-time basis Ticker Connections to News Agencies for the

dissemination of news to their subscribers.

(2)

Ticker connections shall be operated under licences to be obtained from the Posts and Telegraphs Department and for such connections the wires shall be provided by that Department while the terminal equipments shall be supplied, maintained and operated by the licensees.

(3)

Notwithstanding anything contained in sub-rule (2) if the licensee desires to have terminal equipment of working the ticker connection to be supplied by the Posts and Telegraph Department the same may be provided subject to the following conditions namely:-

(a)

The licensee shall be responsible for installation of the machines in the premises of his subscriber, and for the payment of rental for machine with keyboard at prescribed rates, proper care and custody, facilities for maintenance of the machine and the department will not deal with the subscriber of the licensee at any stage, and

(b)

The provision of machine would not be at an out of the way place where maintenance may be difficult.

493.

Charges.

(1)

The rates of rental for telegraph circuits other than those leased to Newspaper Establishments or News Agencies shall be [Rs. 200]

[Substituted for "125 rupees" by G.S.R. 830(E), dated 28.10.1992]

per kilometre per annum:-

Provided that the said rate shall apply if the circuit is provided by utilising existing wires or channels and that in all other cases special rates of rental may be charged by the telegraph authority taking into account the cost of construction and other relevant factors:-

[Provided further that the local telegraph circuit and the local lead provided at each end of the long distance Telegraph Circuit shall be chargeable at the rate of Rs. twelve hundred per kilometre or part thereof per annum]

[Substituted by G.S.R. 830(E), dated 28.10.1992]

;

[Explanation.- Ticker connections shall be chargeable at the rate of Rs. 200 per km. per annum.]

[Substituted by G.S.R. 830(E), dated 28.10.1992]

2. [(i) The rates of rental for telegraph circuits leased to Newspaper Establishments or News Agencies on full-time basis shall be calculated at the rate of sixty-seven rupees per kilometres or part of a kilometre per annum.

(ii)

The Telegraph circuit shall not be rented on part time basis between 8 A.M. and 6 P.M. or for split periods.

(iii)

The charges for such circuits shall be-

(a)

when the circuit is required for eight hours or less daily is One half of the charges specified in sub-rule (1); and

(b)

when the circuit is required for more than eight hours daily is same charges as specified in sub-rule (1)]

(3)

The provisions of sub-rules (1) and (2) shall not apply to telegraph circuits provided for the use of Railway Canal Administrations.

(4)

The length of a telegraph circuit for calculating the charges shall be the radial distance between the offices plus twenty-five per cent thereof.

(5)

[Deleted].

[Omitted by G.S.R. 1237(E), dated 28.11.1986]

(6)

The telegraph authority may provide a telegraph circuit for such minimum period as it may determine and at such rates as specified in sub-rule (1) and may extend the minimum period on annual or monthly basis, the charge per month being one-twelfth of the annual charge:

Provided that where a telegraph circuit is extended for a period less than a month, the charges shall be leviable as for a full month.

(7)

The charges shall, at the option of the subscriber, be payable in advance annually, bi-monthly or monthly.

(8)

A telegraph circuit may be leased on casual basis for periods of less than three months at a time in spare and the charges shall be one-twelfth of the annual charges for each month or part thereof in addition to the payment of the expenditure incurred in providing the circuit.

(9)

[Deleted]

[Sub-rule (9) omitted by G.S.R. 1237(E), dated 28.11.1986]

(10)

The charges for teleprinter machines and other equipments shall be as follow :-

(a) (i)

Teleprinter Machine

(1)

Electromechanical Teleprinter Machine.

Rs.

4,500 per annum

(2)

Electronic Teleprinter Machine

Rs.

8,100 per annum

(ii)

Key-board perforator

Rs.

1,800 per annum

(iii)

Non-printing Re-perforator (without key-board)

Rs.

1,800 per annum

(iv) Printing

Re-perforator (without key board)

Rs.

2,250 per annum

(v)

Printing Re-perforator (with key board)

Rs.

2,800 per annum

(vi)

Tape transmitter

Rs. 900

per annum

(vii)

Perforator attachment

Rs. 450

per annum

(viii)

Transmitter attachment

Rs. 600

per annum

(ix)

Auto transmission set

Rs.

3,600 per annum

(x)

Power pack

Rs. 540

per annum

(xi)

Switching unit

Rs. 150

per annum

(xii)

Commutator board

Rs. 10

per annum for each termination on the board

(xiii)

Line unit

Rs. 540

per annum

(xiv)

Control unit

Rs. 690

per annum

(xv) For

the Electronic Teleprinter Machine

Rs.

1,740 per annum

(b) (i)

Installation charges

Rs. 200

for each end

(ii)

Shifting charges

Rs. 200

for each end

(iii)

Reconnection charges:

(A) If

restored within a period of seven days from the date of disconnection

Rs. 30

for each end

(B) In

all other cases

Rs. 60

for each end

(c)

The installation charges and shifting charges for Teleprinter attachments

shall be as follows :

(i)

Installation charges

Rs. 200

for each end

(ii)

Shifting charges

Rs. 200

for each end

(11)

[The charges payable for multi-user telegraph circuits shall be charged for full time use of the circuit as specified in sub-rule (1) plus a surcharge equal to ten per cent of that charge for each additional user (other than the principal user) of the rented circuit].

[Substituted by G.S.R. 865(E), dated 29.9.1989]

12. [Omitted].

[The word "fulltime" omitted by G.S.R. 1237(E), dated 28.11.1986]

(13)

For Press-cum-commercial use, the charges shall be equal to the normal charge applicable for telegraph circuits rented by a Newspaper Establishment or a News Agency plus twenty-five per cent of the charge or equivalent circuit chargeable for non-press category.

493.

-A. Rent for high speed T/P machines and circuits.

- The charges for High Speed 75 Bands T/P circuits to private subscribers shall be as follows.-

(i)

Rental for T/P Machines is Rs. 4.500 per annum

(ii)

[Rental for High Speed T/P Circuit.

[Substituted by G.S.R. 865(E), daed 29.9.1989]

(a)

for non-press parties is [Rs. 300 per kilometre per annum]

(b)

for press parties is [Rs. 100 per km. per annum]

[Substituted by G.S.R. 830(E), dated 28.10.1992]

[Provided that the local telegraph circuit and the local lead provided at each end of the aforesaid high speed teleprinter circuit shall be chargeable at the rate of Rs. twelve hundred per kilometre or part thereof per annum.]

[Substituted by G.S.R. 830(E), dated 28th October, 1992 (w.e.f. 1st November, 1992)]

[493-B. Rent for store and forward telegraph circuits.

[Inserted by G.S.R. 830(E), dated 28th October, 1992 (w.e.f. 1st November, 1992)]

- The rental for Store and Forward Telegraph Circuits shall be as follows, namely :

(1)(a) For not

exceeding one thousand kilometers chargeable distance.

At the rate of Rs.

Seven hundred fifty per kilometers per annum.

(b) Exceeding one

thousand kilometers of chargeable distance.

Rental as for 1000

kilometers plus Rs. three hundred seventy-five per kilometres per annum for each additional kilometre or fraction thereof, subject to a maximum as for 1500 kilometres chargeable distance;

(2) In addition,

the following charges shall also be payable for Store and Forward

Telegraph/Message switching equipment for the teleprinter network, namely :-

(i) Up to an equipped capacity of 16 extensions.
Rs. ten thousand per annum.

(ii) More than 16 extensions capacity.

Charges as for (i) above plus Rs. five thousand per annum per additional 16 extensions capacity or part thereof.]

C-Telephone Circuits

494.

Types of circuits.

(1)

The types of telephone circuits include---

(a)

trunk circuits of any length which connect the offices or premises of subscribers at both ends;

(b)

all private wires (or non-exchange lines) exceeding sixteen kilometres in length by the shortest practicable route;

(c)

junction lines or tie lines between private exchanges or private branch exchanges exceeding sixteen kilometres by the shortest practicable route;

(d)

external connections from private exchange for private branch exchanges exceeding sixteen kilometres in length by the shortest practicable route.

Note. - The rental for the telephone circuits referred to at Cls. (b), (c) and (d) above falling entirely within the local area of a telephone system shall be levied at the rates prescribed in rule 434, even if they exceed sixteen kilometres in length.

(2)

The telephone circuits referred to in sub-rule (1) shall be provided by the Posts and Telegraph Department utilising physical pairs or career channels as found convenient.

495.

Interconnection with public telecom network.

(1)

Telephone circuit(s), rented for voice communication only, shall not in any circumstances be connected to the Public Telecommunication Network.

(2)

The Telegraph Authority may, on specific request, allow circuits rented for data communication, to be connected to Public Data Network of Department of Telecommunications, through leased data circuits only, at specially prescribed rates.

(3)

The Telegraph Authority may allow a network of leased data circuits to be connected to General Public Telecom Network at specially prescribed rates).

496.

Charges.

(1)

When a telephone circuit is provided wholly by utilising existing wires or channels, the rentals shall be calculated as given below, with a minimum guarantee period of three months namely :

(a) Point to

Point.

[A. Radio Telephony

Simplex HF Wireless circuit.]

[Inserted by G.S.R. 352(E), dated 27th June, 1997 (w.e.f. 27th June, 1997.)]

Rs. Three hundred

fifty per kilometre per annum subject to a maximum as for 1500 kilometres.

B. In any other case-

(i) Not exceeding

1000 kilometres chargeable distance.

Rs. Six hundred

per kilometre per annum

(ii) Exceeding

1000 kilometres chargeable distance

As for 1000

kilometres plus Rs. three hundred per kilometre per annum for each additional kilometres or fraction thereof beyond 1000 kilometres, subject to a maximum as for 1500 kilometres.

(b) Single Party

Network Mode.

(i) Not exceeding

1000 kilometres chargeable distance

Rs. Seven hundred

fifty per kilometre per annum.

(ii) Exceeding

1000 kilometres chargeable distance

As for 1000

kilometres plus Rs. Three hundred seventy-five per kilometre per annum for each additional kilometre or fraction thereof beyond 1000 kilometres, subject to a maximum as for 1500 kilometres.

[Provided that the local telephone circuit and the lead at either end of the telephone circuit shall be charged at the rate of Rs. twelve hundred per kilometre per annum per pair for point to point circuits and at the rate of Rs. Fifteen hundred per kilometre, per annum per pair for Single Party Network Mode circuits.]

[Substituted by G.S.R. 812(E), dated 26th July, 1988 (w.e.f. 1st August, 1988).]

[Provided further that]

[Substituted by G.S.R. 830(E) dated 28th October, 1992 (w.e.f. 1st November, 1992.)]

where new constructions or installations are involved for the whole or part of the circuits--

(i)

special rates of charges may be fixed by the telegraph authority taking into account the cost of construction and other relevant factors, and

(ii)

longer guarantee periods may be specified.

(c)

[The charges for a month shall be equal to one-twelfth of the annual charges.]

[Substituted by G.S.R. 812(E), dated 26th July, 1988 (w.e.f. 1st August, 1988).]

(2)

Subject to the provisions of sub-rule (1), the following charges shall also be payable by the party wherever applicable :-

(a) Installation

charges

Rs. 200 for each

end

(b) Shifting

charges

Rs. 200 for each

end

(c) Reconnection

fee :

(i) if restored

within a period of 15 days from the date of disconnection.

Rs. 25

(ii) in all other

cases

Rs. 50

(d) Hand Micro

Telephone Instruments provided at either end.

[Rs. 150]

[Substituted by G.S.R. 830(E), dated 28th October, 1992 (w.e.f. 1st November, 1992).]

per

instrument.

(3)

[The rates specified in Cl. (a) and (b) of sub-rule (1) shall not apply to telephone circuits provided for the use of Railways and Canal Administrations.]

[Substituted for "Rs. 60" by G.S.R. 1237(E), dated 28th November, 1986 (w.e.f. 1st December, 1986).]

[496-A. (1) The charges for point to point and single party network mode leased long distance data circuits of speed up to 9.6 kilobits per second (kbps) shall be levied at 1.25 times the charges specified in Cl. (a) of sub-rule (1) of rule 496:

Provided that the Local data circuit and the Local lead provided at each end of the long distance data circuit shall be chargeable per pair at the rate applicable for Private Wires under sub-section (1) (b) of Sec. IX of rule 434:

Provided further that the said rate shall apply if the circuit is provided by utilising existing wires or channels and that in all other cases special rates of rentals may be charged by the Telegraph Authority taking into account the cost of construction and other relevant factors.

Note. - One time additional conditioning charge (non-refundable) of Rs. twenty thousand for each end of the circuit shall be levied for 9.6 kilobits per second (kbps) circuits.

(2)

Circuits provided for Newspaper Establishments and News Agencies.

(i)

The charges for Data Circuits leased to Newspaper Establishments and News Agencies shall be one-third of the normal charges specified in sub-rule (1) of rule 496-A provided that the circuits are use only for dissemination of news.

(3) Installation

and Testing Charges

Provided by

Telegraph Authority

Provided by

subscriber

Testing Charges :

I.For speed.

(a) Up to 2400 pbs

Rs. 2000

Rs. 800

(b) 4800 bps

Rs. 3000

Rs. 800

(c) 9600 bps

Rs. 4000

Rs. 1200

II. Annual

Rental for the Moderns provided by the Telegraph Authority for speeds;

(a) Up to 2400 pbs

Rs. 5000

Per pair

(b) 4800 bps

Rs. 7000

Per pair

(c) 9600 bps

Rs. 9000

per pair

Note. - The minimum period of hire for Moderns shall be one year.]

[Substituted by G.S.R. 830(E), dated 28th October, 1992 (w.e.f. 1st November, 1992).]

497.

Chargeable distance.

(1)

Where the two premises of a party between which the telephone circuits are required to be provided are situated in the same town, the chargeable distance shall be equal to the radial distance between the premises plus twenty-five per cent thereof.

(2)

Where the premises of parties are in two different towns the chargeable distance shall be equal to the radial distance between the two carrier stations (of trunk exchanges where there are not carrier stations) plus twenty-five per cent thereof.

(3)

If the stations of the parties are connected to the telephone circuit at intermediate places the rates shall be calculated separately on each section of the circuit joining one station with the next one.

[498. Part-time use. - (1) A telephone circuit, if available as spare, may be leased for part time use between 7 P.M. and 7 A.M.

(2)

The charges for the circuit provided for under sub-rule (1) shall be one half of the charges specified in Cl. (a) of sub-rule (1) of rule 496.

(3)

Junction line between Private Exchange or Private Branch Exchanges shall not be leased on part-time basis]

[Substituted by G.S.R. 865(E), dated 29th September, 1989 (w.e.f. 1st October, 1989)]

.

[499. Restriction on part-time use. - (1) A telephone circuit shall not be provided for part time use between 7 A.M. and 7 P.M. or for split periods.]

[Substituted by G.S.R. 865(E), dated 29th September, 1989 (w.e.f. 1st October, 1989)]

500.

Periods for which leased telephone circuits are provided.

- A new telephone circuit may be provided initially for such minimum period as the telegraph authority may determine and may be extended on annual or monthly basis as desired by the user.

501.

Mode of payment.

- Charges for a telephone circuit [* * *]

[Words "whether whole time, or part time" omitted by G.S.R. 907(E), dated 7th September, 1988 (w.e.f. 1st October, 1988)]

shall, at the option of the party, be payable in advance annually, bi-monthly, or monthly.

502.

Circuits provided on casual basis.

(1)

A telephone circuit may be provided on purely casual basis for periods of less than the minimum, guarantee period and where the circuit is provided between two different stations the charge for every twenty-four hours or part thereof shall be equal to one hundred times the basic trunk call rate between the two stations plus expenses incurred by the Posts and Telegraph Department in providing the circuit.

(2)

If the charge calculated at the rates specified in sub-rule (1) is higher than the charge calculated in accordance with the rates specified in rule 496, the latter charge shall be leviable from the subscriber.

(3)

Where the circuit is provided within the same station, the charge for each month or part thereof, shall be equal to the minimum charge for one month as specified in the side rule 496.

503.

Super-imposition of carrier or voice frequency telegraph channels.

- The party renting a telephone circuit shall not produce telegraph channels or additional telephone circuits by super-imposition of carriers or other document on the telephone circuit.

Part IX ? Telex Service

504.

General conditions for telex connections.

- All connections provided from Teleprinter Exchanges (Telex), unless governed by a separate contract, are subject to the conditions set forth in this Part.

505.

Application for connection.

(1)

An application for a new telex connection or any alterations in the existing connections may be made in writing and in such form and in such manner as may be prescribed from time to time by the telegraph authority.

(1A)

The charge for the application form for providing a new telex connection shall be twenty-five rupees.

(2)

All applications shall be considered strictly in the order in which they are received except when priority has been authorised by the Director-General by general or special instructions.

(3)

Where the telegraph authority considers it necessary so to do in the public interest, it may, refuse to comply with any application or withdraw totally or partially the services provided under the Part.

505A.

Payment of security deposit.

(1)

Every application for a new telex connection shall be accompanied with an amount of Rs. 10,000 as Security Deposit for the provision of the telex connections :

[Provided that in areas where the telex exchange does not exist, the application for a new telex connection shall be registered with an initial deposit of Rs. 1,000 and the balance amount of the Security Deposit of Rs. 9,000 shall be collected at the time of release of the telex connection]

[Inserted by G.S.R. 719(E), dated 18th August, 1987 (w.e.f. 18th August, 1987)]

(2)

The amount of a Security Deposit made under sub-rule (1) shall carry interest for the period commencing on the date of deposit and ending with the date immediately preceding the date of installation of the telex connection at the same rate as is payable by the State Bank of India on fixed deposits made with it for a period of one year and the interest shall be calculated for the complete number of months.

(3)

On the installation of the telex connection the amount of interest accrued on the deposits shall be adjusted towards

charges payable under rule 519.

(4)

In the case of application made before the date of commencement of the Indian Telegraph (Second Amendment) Rules, 1983, and in respect of which no telex connection has been provided, the applicant shall be required to pay to such authority as may be specified in notice issued by the Telegraph Authority, the amount of deposit required to be paid under sub-rule (1) within a period of one year from the date of issue of such notice.

(5)

If the applicant does not deposit the amount required to be paid under sub-rule (4), within this period specified in the notice referred to in that sub-rule, the application shall be cancelled.

505B.

Payment of security deposit by existing telex subscribers.

(1)

Every subscriber who has a telex connection on the date of commencement of the Indian Telegraph (Second Amendment) Rules, 1983, shall, within a period of one year from such commencement, deposit a sum of Rs. 10,000 to the Telegraph Authority as security for the said telex connection.

(2)

If the subscriber fails to deposit the amount specified in sub-rule (1) within the period specified therein, the Telegraph Authority may withdraw the telex service and remove any telex or other apparatus belonging to the Telegraph Authority.

505C.

Refund of deposit.

- The amount deposited under rule 505A or rule 505B shall be refunded to the subscriber when the telex connection in relation to which the deposit is made is finally closed after adjusting the dues, if any.

506.

Withdrawal of applications.

- Any person who has made an application for a new connection or for the shifting of an existing connection may, at any time before the service is provided and on payment of the actual expenses incurred up to that date which shall be fixed by the Divisional Engineer, withdraw such application.

507.

Temporary connections.

- The Telegraph Authority may provide temporary telex connections up to a maximum period of [three years]
[Substituted for the words two years by G.S.R. 679(E), dated 20th June, 1984 Rule 2 (w.e.f. 30th June, 1984).]

. The rental chargeable for such connections shall be as follows :

Every quarter or

part up to a maximum period of [three years]

[Substituted for the words two years by G.S.R. 679(E), dated 20th June, 1984 Rule 2 (w.e.f. 30th June, 1984).]

One and a half

time the quarterly rental as for a regular connection for each

quarter or part.

Call charges and installation charges shall be leviable at the same rates as for regular connections.

508.

Change of telex number and exchange.

(1)

The telegraph authority shall have the right to change the telex number allotted to a subscriber or change the name of the exchange to which he is connected or to provide the service from a different telex exchange.

(2)

The telegraph authority shall have the right to revise the rental and other charges payable, if any, in consequence of such alteration.

509.

Change of answer back code.

- The telegraph authority shall have the right to make changes in the Answer Back Code of a subscriber and to ask the subscriber to modify his code name in the Answer Back Code to suit its requirements.

510.

Interception or monitoring of telex messages.

- It shall be lawful for the telegraph authority to intercept or monitor a message or messages transmitted through the telex for the purpose of verification of any violation of these rules or for the maintenance of the equipment.

511.

Disconnection of telex connections.

(1)

Where the Divisional Engineer is satisfied for reasons to be recorded in writing, that it is necessary so to do, he may, after giving the subscriber notice in writing for a period of seven days, disconnect the telex connection and in such cases the subscriber shall be entitled for refund of rent for the unexpired portion of the period, for which the connection or service was given.

(2)

In the event of any emergency the Divisional Engineer may disconnect the connection of any subscriber with or without notice and in case such disconnection exceeds a period of seven days the subscriber shall be entitled to proportionate rebate of rent.

(3)

[If on or before the due date, the rent or other charges in respect of telex service provided are not paid by the subscriber in accordance with these rules, or bills for charges in respect of calls (local, national and international), or other dues from the subscriber are not duly paid by him, and telex or telephone or telephones rented by him may be disconnected without notice. The telex or telephones so disconnected may, if the Telegraph Authority thinks fit, be restored if the defaulting subscriber pays the outstanding dues and the reconnection fee together with the rental for such portion of the intervening period (during which the telex or telephones remain disconnected) as may be prescribed by the Telegraph Authority from time to time. Subscriber shall pay all the above charges within such period as may be prescribed by the Telegraph Authority from time to time.]

[Substituted for sub-rule (3) by G.S.R. 86, dated 16th December, 1983 (w.e.f. 1st March, 1983).]

(4)

The reconnection shall be subject to technical feasibility and where the Telegraph Authority considers it necessary in the public interest so to do, it may refuse to give reconnection even on the payment of the charges referred to in sub-rule

(3).

(5)

Save as otherwise provided in this rule, the disconnection shall be without prejudice to any other right remedy of the Telegraph Authority against the subscriber for the recovery of arrears or other money due from him under these rules.

512.

Damage to or alteration of equipment.

(1)

Subscriber shall take good care of the teleprinter and other associated apparatus and of all the fixtures and accessories connected therewith located in his premises and shall not damage, alter or remove or cause to be damaged, altered or removed any such apparatus, fixture or accessories or obliterate any mark, word or number which may be written, painted stamped or impressed therein.

(2)

In the event of any damage as mentioned in sub-rule (1), the subscriber shall pay on demand the cost of repairing, renewing or replacing the apparatus fixture or accessories and the Divisional Engineer may disconnect the connection of a subscriber who alters or makes any attachment to the apparatus supplied.

513.

Illegal or improper use.

(1)

No telex connection shall be used for the transmission of any message or communication which is of an indecent or obscene nature or calculated to annoy any person disrupt the maintenance of public order or in any other manner contrary to any provision of law.

(2)

No telex connection shall be used for sending or receiving messages other than those originating from, or meant for, a

subscriber subject to the fact that messages of associates or subsidiaries of a subscriber-firm may be sent or received with previous permission of the telegraph authority :

Provided that the failure to obtain the previous permission of the telegraph authority shall be construed to be a violation of this rule and subject to the provisions of rule 511.

514.

Transfer of telex.

- A subscriber shall not, without the permission of the telegraph authority, assign, sublet or otherwise transfer the telex connection.

515.

Death or change of title of a subscriber.

- In the event of the death of a subscriber or a change in the constitution of a subscriber-firm or institution the person claiming to be successor to such subscriber shall immediately give notice thereof to the telegraph authority and shall apply for permission to retain the telex connection.

516.

Surrender of telex apparatus and other accessories.

(1)

On the expiry, termination or closure of a telex service, the subscriber shall surrender to the telegraph authority the apparatus with all fixtures and accessories in as good a condition as they were when installed, ordinary wear and tear excepted.

(2)

The telegraph authority or any telegraph official may, for the purpose of removing the apparatus, fixture and accessories surrendered under sub-rule (1), at all reasonable times, enter the premises of the subscriber and any other place under the control of the subscriber through under or over which any part of apparatus, fixture or accessory passes or is fixed and the subscriber shall not be entitled to any compensation for damages incurred in removing the apparatus, fixture or accessory.

517.

Notice of surrender.

- Before surrendering the telex apparatus and accessories under rule 516, the subscriber shall give notice to the Divisional Engineer, Telegraph of not less than fifteen days.

517A.

Service of notice and bills.

- Any notice, bill or demand from the Telegraph Authority for any rent or charges due from a Telex subscriber, may be served by delivery to the subscriber or by sending it by post to the address of the subscriber or by leaving it at the premises in or upon which the apparatus is installed.

518.

Shifting of premises without intimation.

- If a subscriber vacates the premises in which telex or other equipment is fitted, the telegraph authority shall be at liberty to recover the apparatus and accessories without affecting the liability of the subscriber for the payment of rent and charges therefor.

519.

All charges are payable on presentation of a bill therefor. The periods for which bills shall be prepared and the dates by which they shall be payable shall be fixed by the telegraph authority.

The charges for Telex service shall be as follows :

A. Rental

Telex Exchange

System

Annual

Rental (in Rupees)

(i) [Within the

Local Area;

[Substituted by G.S.R. 413(E), dated 29th March, 1990 (w.e.f. 1st April, 1990).]

For a telex
subscriber line, inclusive of rent for the terminal teleprinter
machine.]

(a) with an
electromechanically teleprinter machine.

1. Not exceeding

300 lines

6,000

2. Exceeding 300

lines but not exceeding 1,000 lines

6,500

3. Exceeding 1,000

lines but not exceeding 5,000 lines

7,000

4. Exceeding 5,000

lines

7,500

(b) [with an
electronic teleprinter machine]

[Applicable to be Bilingual version vide deptt. of Telecom, Letter No. 3-45/85-TR, dated 22nd September, 1998.]

1. Not exceeding

300 lines

9,600

2. Exceeding 300

lines but not exceeding 1,000 lines

10,100

3. Exceeding 1,000

lines but not exceeding 5,000 lines

10,600

4. Exceeding 5,000

lines

11,100

(ii) Within the

Local Area

For

a telex subscriber's line when teleprinter machine is provided by
a subscriber himself;

1. Not exceeding

300 lines

1,500

2. Exceeding 300

lines but not exceeding 1,000 lines

2,000

3. Exceeding 1,000

lines but not exceeding 5,000 lines

2,500

4. Exceeding 5,000

lines

3,000

(iii) Beyond the

Local Area :

For each
additional kilometre or part of a kilometre
(a) Not exceeding
five km, or actual length of the connection
450

(b) Exceeding five
km. of the actual length of the connection
1,500

Provided that where a part of whole of the telex line sub-served by a voice frequency telegraph channel, such part or whole of the line chargeable under this item shall be treated as a telegraph circuit and rental for such line shall be charged in accordance with the rates specified in sub-rule (1) of rule 493:

Provided further that the minimum period of hire under this item shall be three years and the security for the service shall be regulated under rule 445 and obtained from the subscriber before the provision of the service

[Provided also that where the long distance Telex connection is provided by a route other than the shortest practicable route, the actual distance referred to above shall be taken to mean the hypothetical loop mileage by the shortest practicable route by which the line could have been erected, for providing the connection concerned where the circuitous route not taken for departmental convenience. The hypothetical distance shall be established where a circuitous route is taken by using existing line and wires or cable conductors with a view to avoiding new construction]

[Proviso inserted by G.S.R. 679(E), dated 1st November, 1993.]

.
(iv) For each
perforator attachment
Rs. 450 per annum

(v) For each
Transmitter attachment
Rs. 600 per annum

(vi) For each
Power Pack
Rs. 540 per annum

(vii) For each
Switching unit
Rs. 150 per annum

For Electronic
Telex Exchanges

(vii) Abbreviated
dialling :

(a) For single
digit dial codes
Rs. 240 per annum

(b) For two digit
dial codes
Rs. 720 per annum

(c) For change of
numbers
Rs. 40 per change

(ix) Direct call
(Quick line)
Rs. 720 per annum

(x) Collective
number group group
Rs. 240 per annum

per group

(xi) Automatic

advice of chargeable duration and partial clear down

Rs. 240 per annum

(xii) Multi

address service

Rs. 2 per

successful multi address call.

(xiii) Delayed

delivery

For inputting

messages dialling "183" charges shall be levied at

local call rates. The transmission of message to the called party

shall be charged for as for a long distance connection on time

and zone metering principle. No charge is to be levied for the

acknowledgement given to the calling party.

(xiv) Itemised

billing per page

Rs. 20 (containing

date of 100 calls of part thereof).

[Omitted]

[Proviso omitted by G.S.R. 812(E), dated 26th July, 1988 (w.e.f. 1st August, 1988).]

[Note. 1 - The minimum period of hire shall be one year except in the case governed by item (iii)]

[Substituted by G.S.R. 812(E), dated 26th July, 1988 (w.e.f. 1st August, 1988).]

[Note. 2 - For the purposes of items (i), (ii) and (iii), "local area" shall mean, in a city served by a single teleprinter exchange (telex) an area covered within a radius of five kilometres from the teleprinter exchange, and in the case of a city served by more than one teleprinter exchanges, an area within the envelope of circles having a radius of five kilometres drawn around the respective teleprinter exchange]

[Substituted by G.S.R. 413(E), dated 29th March, 1990 (w.e.f. 1st April, 1990).]

B. Call Charges

(i)

[Local Calls : Rs. 2 for every period of three minutes duration or part thereof]

[Substituted by G.S.R. 413(E), dated 29th March, 1990 (w.e.f. 1st April, 1980)]

(ii)

Long Distance Calls: The long distance call charges for a unit period of duration shall be as follows :-

Radial distance

between any two teleprinter exchanges

[Changes of two

rupees for a unit period of]

[Substituted by G.S.R. 413(E), dated 29th March, 1990 (w.e.f. 1st April, 1990)]

(1) Up to 20

kilometres

180 seconds or a

part thereof.

(2) Exceeding 20

kilometres

60 seconds or a

part thereof.

(3) Exceeding 200
kilometres but not exceeding 600 kilometres
30 seconds or a
part thereof.

(4) Exceeding 600
kilometres but not exceeding 1,000 kilometres
20 seconds or a
part thereof.

(5) Exceeding
1,000 kilometres
12 seconds or a
part thereof :

Provided that the aforesaid call charges shall be reduced by fifty per cent for long distance calls only during the period between 19.00 hours and 08.00 hours (Indian Standard Time).

C. Other
Charges

(i) Installation
charges

[Rs.
800]

[Substituted by G.S.R. 1237(E), dated 28th November, 1986 (w.e.f. 1st December, 1986).]

(ii) Shifting
charges

[Rs.
600]

[Substituted by G.S.R. 734(E), dated 24th June, 1988 (w.e.f. 24th June, 1988)]

(iii) Transfer
charges

Rs.
100

(iv)
Telex Attachments:-

(a) Installation
charges

Rs.
200

(b) Shifting
charges

Rs.
200

(v) Reconnection
charges:-

(a) if restored
within a period of 15 days from the date of its disconnection

Rs.
100

(b) if restored
after 15 days but within a period of six months from the date of
its disconnection.

Rs.
150

(vi) [(a) Public

call office charge, effective or ineffective, inland or international]

[Substituted by G.S.R. 734(E), dated 24th June, 1988 (w.e.f. 24th June, 1988)]

Rs. 8

per call.

(b) Charges for

the facility of delivery of inward calls on Telex PCO's to

Non-Telex Subscribers :

(1) Adjustable

Deposit

Minimum

Rs. 100

(2) (i) Annual

Service charges

Rs.

100

(ii) Charges for

the part of the year shall be on quarter basis

(3) Charges for

the application form

Rs. 1

(4) Charges per

message delivered on Telephone

Rs. 2

(5) Charges per

message delivered by a message

Rs. 5

(vii) Charges for

change on Answer Back Code Number

Rs.

40:

[Provided that if, on or before the date, as may be prescribed by the Telegraph Authority, the rent, call charges or other charges in respect of Telex Service or similar service are not paid in accordance with these rules, without prejudice to any other action the Telegraph Authority may take for disconnection of telex without notice, a surcharge at the rates prescribed under rule 436 shall be levied.]

[Inserted by G.S.R. 24(E), dated 17th January, 1994 (w.e.f. 1st April, 1994).]

[Note 1. - Where the telex subscriber is permitted to arrange internal wiring himself for item (i) above, a rebate of Rs. 500 shall be allowed.

Note 2. - Where the subscriber is permitted to arrange internal wiring himself for item (ii) above, a rebate of Rs. 300 shall be allowed]

[Substituted for Note by G.S.R. 1237(E), dated 28th November, 1986 (w.e.f. 1st December, 1986).]

.

D. Refunds

No refund shall be admissible if the service is given up during the minimum period of hire. If the facility is given up after expiry of the minimum period of hire, refund shall be admissible after charging rent upto the date of actual closure of the connection.

519A.

[(1) When the telex service of a subscriber remains interrupted continuously for a period [seven days]

[Substituted by G.S.R. 674(E), dated 27th July, 1987 (w.e.f. 27th July, 1987)]

or more due to reasons attributable to the Department, a proportionate rebate or refund shall be allowed to the

subscriber]

[Substituted by G.S.R. 865(E), dated 29.9.1989]

.

(2)

The telegraph authority shall on a written notice received from the subscriber that his telex line is not in working order, repair and restore the communication with all reasonable despatch and the subscriber shall render all reasonable assistance for the purpose.

520.

Sending and receiving telegrams by telex.

(1)

(a)

An outgoing telegram may be booked with the Telegraph Office over telex.

(b)

A fee of rupees one shall be payable for each such telegram in addition to the charge payable on a similar telegram when booked at the counter of the Telegraph Office.

(2)

An incoming telegram shall be transmitted over the telex where the telex number is included in the address by the sender or where special delivery instructions to that effect have been registered by receiving subscriber or where this method of delivery is convenient to the telegraph office and has the approval of the subscriber and in such a case, the original of the incoming telegram shall not be separately delivered to the addressee:

Provided that in cases where the subscriber requires the original of the incoming telegram to be delivered to him after its transmission over telex, it shall be delivered either through a special messenger or by registered post if the desire is communicated to the telegraph office immediately after the telex transmissions has been completed or early the following morning as soon as the subscriber office opens and in such a case, a fee amounting to the cost of a registered letter shall be added, in the monthly bill of the telex subscriber.

521.

Telex Public Call Office.

(1)

Telex public call offices provided by the Posts and Telegraph Department may be used by any member of the public on payment of Public Call Office charges of five rupees per call.

(2)

The said charge of five rupees per call includes service of the attendant at the Public Call Office for punching or transmission of the message or both.

Note. - Rule 439 comes into force on the 16th June, 1969, and the remaining rules (rules 473 to 492 and 494 to 521) come into force with effect from 30th May,

522.

Service telex connections.

(1)

Telex connections for the use of the Posts and Telegraph Department shall be provided free of rent to the extent considered necessary by the Telegraph Authority.

(2)

No charge shall be made for any message or communication sent by telex in connection with the business of the Posts and Telegraphs Department.

PART-X Universal Service Obligation Fund

523.

Definitions.

- In this part-----

(a)

"Administrator" means the Administrator of the Fund appointed by the central Government for the administration of the Fund;

(aa)

"Broadband Connectivity" means an always-on data connection that is able to support interactive service including internet access and has the capability of minimum download speed as prescribed from time to time by the Central Government;

(b)

"Agreement" means an agreement made between the Administrator and one and more of the Universal Service Provider for the purpose of implementation of Universal Service Obligation;

(c)

"Capital Cost" means the capital expenditure incurred on providing access as may be determined by the Administrator;

(d)

"Capital Recovery" means the aggregate to depreciation, interest on debt and return on equity on the capital cost as worked out proportionately and annualized over the period for which support is provided from the fund;

(d)

(a)

"District" means the revenue district as identified in Census of India 2001;

(e)

"Fund" means the Universal Service Obligation Fund established under sub-section (1) of Section 9-A of the Indian Telegraph Act, 1885 (

13 of 1885

);

(f)

"Infrastructure" means such assets as required for Telegraph Services as determined by the Central Government from time to time;

(f)

(a)

"Mobile Services" means telegraph services provided by means of wireless telecommunication system which ensures use while in motion anywhere in the Service Area;

(g)

"Multi Access Radio Relay Technology" means a technology used for providing telephone services:

(h)

[* * *]

[Omitted by G.S.R. 812(E), dated 26th July, 1988 (w.e.f. 1st August, 1988)]

(i)

"Net Cost means Operating Expenses plus Capital Recovery minus Revenue;

Explanation 1. - Where support is to be extended towards Operation and Maintenance only, Net Cost shall mean Operating Expenses minus Revenue;

Explanation 2. - Where support is extended towards general infrastructure, infrastructure for provision of mobile services and broadband connectivity, Net Cost shall mean a percentage of Capital Recovery, as determined by the Administrator from time to time.

(j)

"Operating Expenses" means the annual Operating Cost incurred on operation and maintenance of the specified facilities as may be determined by the Administrator;

(k)

"Revenue" means the annual charges including usage charge and applicable rental from the specified Service, without any deduction of any kind whatsoever except taxes relating to the specified Service, if any, paid to the Government;

(l)

"Secondary Switching Area" means the area in which the country is divided by the Telegraph Authority, and is co-terminus with a Long Distance Charging Area;

(m)

"Universal Service Obligation" means the obligation to provide access to [* * *]

[Omitted by G.S.R. 812(E), dated 26th July, 1988 (w.e.f. 1st August, 1988)]

telegraph services to people in the rural and remote areas at affordable and reasonable prices;

(n)

"Universal Service Provider" means the person who has entered into an Agreement with the Administrator for the purpose of implementation of Universal Service Obligation;

(o)

"Village Public Telephone" means the first public telephone installed in a village.

524.

Administration of the Universal Service Obligation Fund.

- The Administrator shall have powers to,---

(i)

formulate bidding procedures including its terms and conditions for the purposes of implementation of Universal Service Obligation;

(ii)

evaluate the bids called for the purposes of implementation of Universal Service Obligation;

(iii)

enter into Agreement with the Universal Service Provider for the purposes of implementation of Universal Service Obligation.

(iv)

settle the claim of Universal Service Provider after due verification, and make disbursements accordingly from the Fund.

(v)

specify relevant formats, procedures and records to be maintained and furnished by the Universal Service Provider;

(vi)

Monitor the performance of the Universal Service Provider as per the procedure specified by him from time to time.

525.

Scope of support from Universal Service Obligation Fund.

(1)

Financial Support from the Fund shall be provided to meet the Net Cost of providing the specified Universal Service Obligation as per the procedure specified by the Administrator from time to time, and the period for which such support shall be provided and the services covered shall be governed by an Agreement entered into with the Universal Service Provider.

(1A)

[Financial Support from the Fund shall also be provided for funding the consultancy assistance or advisory support sought-

(i)

in formulation or design of a USOF scheme;

(ii)

in administration of a USOF scheme;

(iii)

in mid-term review of USOF scheme;

(iv)

in improving contract management, monitoring and enforcement capabilities of USOF for a scheme; and

(v)

in conducting impact assessment or evaluation or as the case may be, social audit of a USOF scheme.]

(2)

The following services shall be supported by the Fund, namely :-

(i)

Stream-I : Provision of Public Telecom and Information Services :-

(a)

Operation and Maintenance of Village Public Telephone in the revenue villages identified as per Census 1991 and Installation of Village Public Telephone in the additional revenue villages as per Census 2001.-For installation of Village Public Telephone in the revenue villages, identified as per 1991 Census, only the Operating Expenses and Revenue shall be taken into account for determining the Net Cost. For the additional revenue villages identified as per 2001

census, Capital Recovery in addition shall also be taken into account for determining the Net Cost :

Provided that in the case of the Village Public Telephone which are still to be installed in the villages identified as per Census 1991, Capital Recovery shall also be taken into account while determining the Net Cost;

(aa)

[For household Direct Exchange Lines installed prior to 1st day of April, 2002, an amount of maximum Two thousand Crore rupees per annum for a period of three years shall be reimbursed to the eligible operators, from the date the Indian Telegraph (Amendment) Rules, 2008 come into force, for operational sustainability of rural wirelines in lieu of Access Deficit Charges being phased out.]

[Inserted by G.S.R. 812(E), dated 26th July, 1988.]

(b)

Provision of additional rural community phones in areas after achieving the target of one Village Public Telephone in every revenue village. Where in a village the population is more than 2000 and no public call office is existing, a second public phone shall be installed and for the purposes of determining the Net Cost, Capital Recovery, Operating Expenses and Revenue shall be taken into account;

(c)

Replacement of Multi Access Radio Relay Technology Village Pubic Telephone installed before 1st day of April, 2002.-Capital Recovery Operating Expenses and Revenue shall be taken into account for determining the Net Cost;

(d)

[* * *]

[Omitted by G.S.R. 812(E), dated 26th July, 1988 (w.e.f. 1st August, 1988)]

(e)

[* * *]

[Omitted by G.S.R. 812(E), dated 26th July, 1988 (w.e.f. 1st August, 1988)]

(ii)

Stream-II--Provision of household telephones in rural and remote areas as may be determined by the Central Government from time to time :

(a)

For household Direct Exchange Lines installed prior to 1st day of April, 2002, the difference in rental actually charged from rural subscribers and rent prescribed by Telecom Regulatory Authority of India for such subscriber shall be reimbursed until such time the Access Deficit charges prescribed by Telecom Regulatory Authority of India from time to time take into account such difference;

(b)

For household Direct Exchange Lines installed after 1st day of April, 2002, Capital Recovery, Operational Expenses and Revenue shall be taken into account to determine the Net Cost.

Note. - Unless otherwise specified by the Central Government, the Short Distance Charging Area shall be taken as a unit for the purpose of arriving at the Net Cost for activities specified in item (b) of Stream II.

(iii)

Stream III-Creation of infrastructure for provision of Mobile Services in rural and remote areas.

(a)

the assets constituting the infrastructure for provision of mobile services shall be determined by the Central Government from time to time.

(b)

A percentage of the Capital Recovery for the infrastructure for provision of mobile services shall be taken into account to determine the Net Cost.

(iv)

Stream IV-Provision of Broadband connectivity to villages in a phased manner.--A percentage of the Capital Recovery for the infrastructure for broadband connectivity shall be taken into account to determine the Net Cost.

["(a) for extending the Broadband connectivity including last mile connectivity up to all Gram Panchayats or villages, under the Bharat Net project, the Capital expenses and Operating expenses net of revenue incurred by M/s Bharat Broadband Network Limited (BBNL) shall be funded by the Universal Service Obligation Fund (USOF) for a period of five years from the 27th March,2017.";]

[Inserted by Notification No G.S.R. 507(E), dated 22.5.2017 (w.e.f. 3.12.1990).]

(v)

Stream V-Creation of general infrastructure in rural and remote areas for development of telecommunication facilities.

(a)

The items of general infrastructure to be taken up for development shall be determined by the Central Government from time to time.

(b)

A percentage of the Capital Recovery for the development of general infrastructure shall be taken into account to determine the Net Cost.

Note. - Unless otherwise specified by the Central Government, the revenue district/group of revenue districts shall be taken as a unit for the purpose of arriving at the Net Cost for the activities specified in Streams III, IV and V.

(vi)

Stream VI-Induction of new technological developments in the telecom sector in rural and remote areas.-Pilot projects to establish new technological developments in the telecom sector, which can be deployed in the rural and remote areas, may be supported with the approval of the Central Government.

526.

Criteria for selection of Universal Service Provider.

- The selection of the Universal Service Provider shall be made by a bidding process from amongst the eligible operators, except for household Direct Exchange Lines referred to in [item (a), item (aa), item (ab) and item (ac)]

[Substituted by Notification No. G.S.R. 297 (E), dated 28.3.2017 (w.e.f. 3.12.1990).]

[of clause(iii), item (a) of clause (iv)']

[Substituted 'of clause (iii)' by Notification No G.S.R. 507(E), dated 22.5.2017 (w.e.f. 3.12.1990).]

[and clause (iv)]

[Inserted by G.S.R. 812(E), dated 26th July, 1988.]

of sub-rule (2) of Rule 525 and the Agreement signed as a result of the bidding process shall not be treated as grant of fresh license under the Indian Telegraph Act, 1885 (

13 of 1885

).

[Explanation.

[Substituted by G.S.R. 812(E), dated 26th July, 1988.]

- For the purposes of this rule, "eligible operators" means the Basic Service Operators, Cellular Mobile Service Providers, Unified Access Service Licensees and Infrastructure Providers and Internet Service Providers.]

[Inserted by Notification No. G.S.R. 540(E), dated 31.5.2017 (w.e.f. 3.12.1990)]

527.

Release of Funds to Universal Service Providers.

- Fund shall be released to the Universal Service Provider in a manner and at such intervals as may be specified in the Agreement.

[Part XI]

[Inserted by Notification No. G.S.R. 1131(E), dated 5.9.2017 (w.e.f. 3.12.1990).]

Testing and Certification of Telegraph

528.

Definitions.

- Testing and certification of telegraph - in this part, unless the context otherwise requires,—

"Original Equipment Manufacturer" means a manufacturer of telegraph under whose brand the telegraph is sold or proposed to be sold.

529.

Mandatory Testing.

- Any telegraph which is used or capable of being used with any telegraph established, maintained or worked under the licence granted by the Central Government in accordance with the provisions of section 4 of the Indian Telegraph Act, 1885 (hereinafter referred to as the said Act), shall have to undergo prior mandatory testing and certification in respect of parameters as determined by the telegraph authority from time to time:

Provided that the telegraph imported for the purpose of research and development or demonstration in India or as sample for mandatory testing or personally accompanied on inward foreign travel to India which is for personal use in India and not prohibited to be imported or used under the said Act or any other law for the time being in force, may be exempted by an order issued in this regard by the telegraph authority from time to time, from the requirement of mandatory testing:

Provided further that the telegraph authority may by notification in the Official Gazette exempt certain category or categories of telegraph except those specified in the proviso from such mandatory testing.

530.

Authority for testing.

(1)

The testing shall be carried out by the telegraph authority or any other agency designated by the telegraph authority.

(2)

The fee charged for testing carried out by the telegraph authority from the person who offers the telegraph for testing shall not exceed rupees fifty lakhs as specified by notification and the telegraph authority after compliance of the parameters set forth both for testing and certification shall issue a test certificate for the telegraph, as per the procedures prescribed by the telegraph authority.

(3)

The validity of the test certificate shall be as specified in the certificate and the certificate may be renewed on payment of prescribed fee, after following the prescribed procedures.

531.

Responsibility for mandatory testing.

- It shall be the responsibility of the Original Equipment Manufacturer in India for getting the mandatory testing and certification done before sale of equipment in India and to print the details of telegraph as prescribed by the telegraph authority such as specification, warning and certificate number and its validity on the outside body of the telegraph.

532.

Responsibility of importer for testing.

- It shall be the responsibility of the person importing telegraph for sale in India or the foreign Original Equipment Manufacturer to offer the telegraph for testing and certification by the telegraph authority or its designated body before sale.

533.

Responsibility of foreign original equipment manufacturer.

- The foreign Original Equipment Manufacturer shall not dispatch any quantity of the telegraph for sale in India after expiry of the validity of the test certificate.

534.

Recertification.

- When a telegraph has been certified, the dealer or distributor or agency of the Indian or foreign Original Equipment Manufacturer shall not be required to get the telegraph certified again provided that the model or brand of such telegraph is not different in any manner from the one which has been certified and shall carry details of certification on the body of the telegraph as prescribed by the telegraph authority.

535.

Bar on sale of uncertified telegraph.

- No person shall sell any telegraph in respect of which mandatory certification is required by the telegraph authority or any designated agency, referred to in rule 530, unless it is certified by such authority or agency.

536.

Removal of uncertified telegraph.

(1)

Any person licensed or permitted to establish, maintain or work a telegraph under the said Act shall, on detection of use of uncertified telegraph by a user, ensure its removal by the user or, in case of his failure in such removal, withdrawal of service or connectivity to network within seven days of its detection and all such cases shall be brought to the notice of the telegraph authority in each week.

(2)

No telegraph in respect of which mandatory certification is required, shall be used by the licensee in its network unless it is certified.

537.

Contravention and notices.

(1)

If any person contravenes the provisions of this Part, in respect of any telegraph, the telegraph authority may,

(i)

issue notice to the person who contravenes the provisions of law pertaining to conditions of license or permission granted under section 4 of the Act,

(ii)

take action in accordance with the terms and conditions of the licence or permission, if uncertified telegraph is used by the person so licensed or permitted, or if such person fails to get uncertified telegraph removed from the users of his network or service;

(iii)

take custody of such telegraph and order to destroy the telegraph whether imported or of Indian origin, if the person i.e. the importer or the Original Equipment Manufacturer in case of indigenous item is unable to get the mandatory certification done within one hundred and eighty days from the date of issue of notice of violation;

(2)

The person referred to in sub-rule(1) may be permitted to apply for Certification to the telegraph authority for such telegraph on payment of ten times of prescribed fee and the telegraph authority after observing the procedures as specified may issue the Certificate.

Related AI tags, queries and research notes

Translation